

Tiger Field Rehabilitation Improvements Rebid

Category:	Parks and Landscaping	Project ID #:	1007923234
Street Address:	834 E Main St Blackshear GA 31516	Staff Estimate Value	\$1,000,000.00
County:	Pierce	Stage:	BIDDING - Biddate Set
Bid Date:	6/16/2026 , 11:00AM		
Architect:			
Documents Available:	Plans, Specs available in Insight	Plans available from Statewide Engineering	
Last Update:	5/20/2026	Project reviewed, Stage confirmed as Biddate Set	

Project Description

Scope

Renovation of a playground / park / athletic field in Blackshear, Georgia. Completed plans call for the renovation of a playground / park / athletic field. The Scope of Work Includes: Rehabilitation improvements for Tiger Field Recreation Park All proposals shall be accompanied by a Bid Bond in favor of the Owner in the amount of at least five percent (5%) of the lump sum bid for the complete work: such Bid Bond representing that the Bidder, if awarded a Contract, will promptly enter into a Contract and furnish Performance Bond and Payment Bonds as provided by the law and approved by the Attorney for the Owner. Performance Bond shall be equal to 100 Percent (100%) of the contract amount and Payment Bond shall be equal to 100 percent (100%) of the Contract amount. The Bid Bond shall be forfeited to the Owner as liquidated damages if the Bidder fails to execute the Contract and provide Performance and Payment Bonds within (10) days after being notified that he has been awarded the Contract. All work on the project must be completed within 270 consecutive calendar days of the Notice to Proceed Date. Phasing of the project shall be as follows: Required work on the southern portion of the project which includes walking track and southern parking lot construction will receive a Notice to Proceed to start work August 3, 2026. The required work on the northern portion of the project, which includes the ball field, drainage, fencing, and parking lot construction will receive a Notice to Proceed beginning on December 1, 2026. Contract Time will be stopped and recorded, if applicable once the southern portion work is completed and then time will resume on December 1, 2026. The Owner reserves the right to reject all bids and to waive informalities, and to accept any Bid which in its opinion may be in the best interest of the Owner. The Owner has the right to add or to delete from the Contract once it has been awarded. No bids shall be withdrawn for a period of 60 days after the opening of the bids. Contractors shall submit all questions in writing to Mark Dill via email or fax. Email address is mark.dill@swecivil.com. Fax number is 912-383-6895. Deadline for all questions is Tuesday, June 9, 2026 at 9:00am). All questions received and answers will be provided to all contractors in an addendum and listed on the Georgia Procurement Registry.

Notes

Bid Date: 06/16/2026 11:00AM Rebid update from 04/30/2026 at 11:00 AM ET Pierce County Board of Commissioners, 312 Nichols Street, Suite 5, Blackshear, Georgia 31516 Bids Open: 06/16/2026 11:00AM The meeting will be held at Pierce County Board of Commissioners' Office and will be opened to the public. Proposals can be mailed or delivered to the attention of Donna Golding, County Clerk for the Pierce County Board of Commissioners, 312 Nichols Street, Suite 5 Blackshear, Georgia 31516. Proposals received after the designated time will not be considered. The Pierce County Board of Commissioners may select a successful low bidder after evaluation of all bids. Development include(s): Renovation

Details

[Division 2]: Grading.

Design Team

Company Role	Company Name	Contact Name	Contact Status	Address	Phone	Email	Fax
Owner	Pierce County Board of Commissioners			312 Nichols St # 5, Blackshear, GA 31516 , Blackshear, GA 31516	(912) 449-2022		
Civil Engineer	Statewide Engineering	Stanley Evans	Active	516 East Ashley Street , Douglas, GA 31533	(912) 384-7723	mark.dill@swecivil.com	(912) 383-6895

Project Events

Event	Date	Details
End Date	12/1/2026	
Start Date	8/3/2026	Estimated Start Date
Bid Date	6/16/2026 , 11:00AM	Rebid update from 04/30/2026 at 11:00 AM ET Pierce County Board of Commissioners, 312 Nichols Street, Suite 5, Blackshear, Georgia 31516
Bids Open	6/16/2026 , 11:00AM	The meeting will be held at Pierce County Board of Commissioners' Office and will be opened to the public. Proposals can be mailed or delivered to the attention of Donna Golding, County Clerk for the Pierce County Board of Commissioners, 312 Nichols Street, Suite 5 Blackshear, Georgia 31516. Proposals received after the designated time will not be considered. The Pierce County Board of Commissioners may select a successful low bidder after evaluation of all bids.

Additional Details

Listed On:	1/29/2026	Floor Area:	
Contract Type:		Work Type:	Alteration
Stage Comments 1:		Floors Below Grade:	
Stage Comments 2:		Owner Type:	County
Bid Date:	6/16/2026	Mandatory Pre Bid Conference:	
Invitation #:	13-01090 (P24AP01327), 24-3552	Start Date:	8/3/2026
Structures:	1	Completion Date:	12/1/2026
Single Trade Project:		Site Area:	
Floors Above Grade:		LEED-Registered Project:	
Parent Project ID:		Units:	
Parking Spaces:			

Bidders

Company Name	Contact Name	Contact Status	Added Date	Address	Phone	Email	Bidding Role	Bid Rank	Bid Value	Fax Number
RH Tyson Construction, Inc.	Zack Daniel	Active	2/21/2026	6155 Sundance Road , Blackshear, GA 31516	(912) 449-3633	zack@rhtys.com	Prospective Bidder - General Contractor			(912) 449-9963
Pope Construction Co.	Jamie Munsey	Active	5/20/2026	3006 Northside Dr. , Statesboro, GA 30458	(912) 764-6138	jmunsey@popeconstructionco.com	Bidder - General Contractor			(912) 764-9408
E B Greene & Sons \Greene Concrete Construction	Bruce Greene	Active	2/21/2026	289 Perry House Rd , Fitzgerald, GA 31750	(229) 423-9781	ebgreene@windstream.net	Prospective Bidder - General Contractor			(229) 423-0399
Tyco Construction & Industrial Services, Inc	TJ Harris	Active	2/21/2026	6197 Bowen Road , Blackshear, GA 31516	(404) 416-2003	tj@tycoconstructioninc.com	Prospective Bidder - General Contractor			

Planholders

Company Name	Contact Name	Contact Status	Address	Phone	Email	Fax
Thrift Brothers LLC	Joshua Leach	Active	3810 Needham Road , Waycross, GA 31503	(912) 282-9366	thriftbrothers@yahoo.com	(912) 548-8027
S&W Farms	Kanner Stephens	Active	14167 Lanes Bridge Rd. , Odum, GA 31555	(912) 202-8387	mysamsung150@gmail.com	
The Scruggs Company	William Thomas	Active	216 W Blackshear Avenue , Waycross, GA 31503	(912) 387-8444	bwallace@scruggs.com	

Buyer Activity Report

Status	Activity Level	Contact	Company Name	Source	Phone	Email	Business Type	Trades	Last Active
--------	----------------	---------	--------------	--------	-------	-------	---------------	--------	-------------

New		Michael Sharpe	Altamaha Building Systems, Inc.		(912) 366-8486	absi.michaelsharpe@gmail.com	Subcontract or	General Requirements, Summary, Price and Payment Procedures, Administrative Requirements, Survey and...	4/29/2026
New		Rashad Watson	HighFy Contracting		(303) 879-2826	info@highfycontracting.com	Subcontract or	General Requirements, Summary, Price and Payment Procedures, Administrative Requirements, Survey and...	4/20/2026
New		Brian Bunevich	Asphalt Surface Enterprises			bbunevich@asecourts.com	Subcontract or	General Requirements, Summary, Price and Payment Procedures, Administrative Requirements, Survey and...	4/17/2026
New		Zach Simpkins	Elrock Build Co.		(470) 215-9953	zachsimpkins@elrockbuild.com	Subcontract or	General Requirements, Summary, Price and Payment Procedures, Administrative Requirements, Survey and...	4/13/2026
New		D Barber	Altamaha Building Systems, Inc.		(912) 366-8486	altamahabuilding@gmail.com	Subcontract or	General Requirements, Summary, Price and Payment Procedures, Administrative Requirements, Survey and...	3/30/2026
New		Parker Dalton	Insurance Group of America		(615) 905-1693	parker.dalton@iga.biz	Subcontract or	General Requirements, Summary, Price and Payment Procedures, Administrative Requirements, Survey and...	3/4/2026
New		Cam Lanier	Evergreen Siteworks, LLC		(706) 773-3167	clanier@evergreensiteworks.com	Subcontract or	General Requirements, Summary, Price and Payment Procedures, Administrative Requirements, Survey and...	2/22/2026

Contracts

Classification	Conditions	Bonding	Bid Date	Bids To	Bid Type
General Contractor		Bid:5.00%,Perf:100.00%,Pay:100.00%	6/16/2026	Owner	Open Bidding

History

History

User	Viewed	First Viewed Date	Currently Tracked?	Date Tracked
Sean Conroy	True	5/11/2026	False	

ADVERTISEMENT FOR BID
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

The Pierce County Board of Commissioners will receive separate, sealed bids until **11:00am** (local-time), **Monday, March 2, 2026**, for furnishing all materials, labor, tools, equipment, and incidentals necessary for the installation of **rehabilitation improvements for Tiger Field Recreation Park for the county's awarded, Land and Water Conservation Fund Project, Grant Number: 13-01090 (P24AP01327).** **Project shall be funded from the Department of Natural Resources and /or other local funds specified).**as funded by the Georgia Department of Community Affairs. Bids will be opened and read.

The meeting will be held at **Pierce County Board of Commissioners' Office** and will be opened to the public. Proposals can be mailed or delivered to the attention of **Donna Golding, County Clerk** for the **Pierce County Board of Commissioners, 312 Nichols Street, Suite 5 Blackshear, Georgia 31516.** Proposals received after the designated time will not be considered. **The Pierce County Board of Commissioners** may select a successful low bidder after evaluation of all bids.

There will be a **Mandatory Pre-Bid Conference** held at **11:00am on Monday, February 16, 2026.** This conference will be held at the **Pierce County Board of Commissioners' Office** located at **312 Nichols Street, Suite 5 Blackshear, Georgia 31516.** This pre-bid conference is intended for all contractors submitting a proposal as the prime contractor. It is also encouraged to have all sub-contractors and product vendors present.

The Scope of Work Includes:
Rehabilitation improvements for Tiger Field Recreation Park.

All proposals shall be accompanied by a Bid Bond in favor of the Owner in the amount of at least five percent (5%) of the lump sum bid for the complete work: such Bid Bond representing that the Bidder, if awarded a Contract, will promptly enter into a Contract and furnish Performance Bond and Payment Bonds as provided by the law and approved by the Attorney for the Owner. Performance Bond shall be equal to 100 Percent (100%) of the contract amount and Payment Bond shall be equal to 100 percent (100%) of the Contract amount.

The Bid Bond shall be forfeited to the Owner as liquidated damages if the Bidder fails to execute the Contract and provide Performance and Payment Bonds within (10) days after being notified that he has been awarded the Contract.

All work on the project must be completed within **180 consecutive calendar days of the Notice to Proceed Date.** **All work for the ballfield and northern parking lot must be completed prior to September 1, 2026; to allow for the 2026 recreational football season and all its amenities to be in place and operational.**

Copies of the plans and specifications may be obtained from Statewide Engineering, Inc., 516 East Ashley Street, Douglas, Georgia 31533, 912-384-7723 for \$200.00 per set for full printed specification and plans, or \$50.00 for specifications and plans emailed in pdf format (non-refundable). Plans and Specifications are also on file (for view only) at the **Pierce County Board of Commissioners' Office.** **All Bidders must receive a bid package from the Engineer in order to be considered certified. Bids**

from non-certified Bidders will not be considered.

Contractors shall submit all questions in writing to Mark Dill via email or fax. Email address is mark.dill@swecivil.com. Fax number is 912-383-6895. Deadline for all questions is Tuesday, **February 24, 2026 at 9:00am**. All questions received and answers will be provided to all contractors in an addendum and listed on the Georgia Procurement Registry.

This agreement is for services related to a project that is subject to the Build America, Buy America Act (BABAA) requirements under Title IX of the Infrastructure Investment and Jobs Act (“IIJA”), Pub. L. 177-58. Absent an approved waiver, all iron, steel, manufactured products, and construction materials used in this project must be produced in the United States, as further outlined by the Office of Management and Budget’s Memorandum M-22-11, Initial Implementation Guidance on Application of Buy America Preference in Federal Financial Assistance Programs for Infrastructure, April 18, 2022.

The Georgia Department of Transportation Standard Specifications, 2021 Edition, any applicable Supplemental Specifications, 2024 Edition, Special Provisions, or any other provision contained within this contract will be applicable to this project. All materials, workmanship, testing, etc. shall meet the Georgia Department of Transportation Specifications.

The Owner reserves the right to reject all bids and to waive informalities, and to accept any Bid which in its opinion may be in the best interest of the Owner. The Owner has the right to add or to delete from the Contract once it has been awarded. No bids shall be withdrawn for a period of 60 days after the opening of the bids.

Pierce County Board of Commissioners

By:

Chairman: Neal Bennett



**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

Prepared by Statewide Engineering, Inc.
Contact Information: mark.dill@swecivil.com

Contractors:

Please find the attached Rehabilitation Project for Tiger Field, located in Pierce County, Georgia that is out for bid for the Pierce County Board of Commissioners.

Bid Opening is scheduled for Monday, March 2, 2026, at 11:00am at the Pierce County Board of Commissioners Office located at 312 Nichols Street, Suite 5, Blackshear, Georgia 31516.

There will be a **Mandatory Pre-Bid Conference** held at **11:00am on Monday, February 16, 2026**. This conference will be held at the **Pierce County Board of Commissioners' Office** located at **312 Nichols Street, Suite 5 Blackshear, Georgia 31516**. This pre-bid conference is intended for all contractors submitting a proposal as the prime contractor. It is also encouraged to have all sub-contractors and product vendors present.

Engineer's Estimate is \$1,000,000.00.

If you are interested in submitting a bid proposal, please respond to this email and send a check for \$50.00 to Statewide Engineering for the PDF version of the specifications and construction plans and so that I can officially at your name to certified list of bidders.

With this project, there are 2 attachments:

- 1) Bid Specifications and Contract Documents
- 2) Construction Plans

Respectfully,

Mark Dill
Statewide Engineering, Inc.
516 Ashley Street E
Douglas, GA 31533

Phone: 912-384-7723
Direct No: 912-292-0642
Fax: 912-383-6895
Cell: 912-592-4776

Website: swecivil.com

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

Prepared by Statewide Engineering, Inc.
Contact Information: mark.dill@swecivil.com

Plan Holders List

No.	Company Name	Company Address Phone Number & Fax Numbers	Company Contact	Addendums Issued/Date
1				
2				
3				
4				
5				

Last Update: February 4, 2026

CONTRACT DOCUMENTS

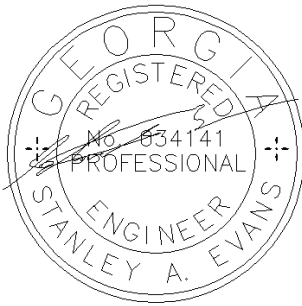
AND

SPECIFICATIONS

FOR

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS



JANUARY 2026

Prepared By:



STATEWIDE ENGINEERING, INC.

**516 East Ashley Street
Douglas, Georgia 31533
912-384-7723
912-383-6895 Fax
www.swecivil.com**

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

TABLE OF CONTENTS

<u>Section</u>	<u>Title</u>
<i><u>Bidding Requirements</u></i>	
00030	Advertisement for Bids
00100	Instructions to Bidders
00300	Proposal
00301	Summary Sheet
00410	Bid Bond
00420	Affidavit of Non-collusion
00430	Equal Employment Opportunity Clause (EEO)
00440	Certification of Non-Segregated Facilities
00450	Contractor Certification Regarding Debarment
00460	Drug-Free Work Place
00470	<u>Contractor Affidavit under O.C.G.A. § 13-10-91(b)(1)</u>
00480	<u>Subcontractor Affidavit under O.C.G.A. § 13-10-91(b)(3)</u>
00480A	<u>Sub-subcontractor Affidavit under O.C.G.A. § 13-10-91(b)(4)</u>
00490	Pre-Oath Award
004100	SAVE Affidavit
<i><u>Contract Documents</u></i>	
00510	Notice of Award
00520	Notice to Proceed
00530	Contract Agreement
00610	Performance Bond
00620	Payment Bond
00660	Certificate of Owner's Attorney
<i><u>Applicable Technical Specifications</u></i>	
00710	General Conditions
01010	Summary of Work
01150	Measurement and Payment

01252	Weather Delays
01300	Submittal
01340	Shop Drawings
01600	General Materials
01610	Transportation
01620	Storage
01720	Project Record Documents
01750	Guarantee

Required Project Attachments

Attachment "A"	Applicable Georgia Department of Transportation Special Provisions
Attachment "B"	Failure or Delay in Completing Work on Time
Attachment "C"	Pay Request Form
Attachment "D"	Prompt Payment Special Provision
Attachment "E"	Retainage
Attachment "F"	Interim Waiver and Release Upon Payment
Attachment "G"	Final Release of Liens and Claims
Attachment "H"	Insurance Requirements
Attachment "I"	Contractor Qualifications
Attachment "J"	Project Addendum(s)
Attachment "K"	Project Change Order(s)
Attachment "L"	Bid Award Recommendations
Attachment "M"	Buy America Build America
Attachment "N"	LWCF Plaque Order Form

**ADVERTISEMENT FOR BID
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

The Pierce County Board of Commissioners will receive separate, sealed bids until **11:00am** (local-time), **Monday, March 2, 2026**, for furnishing all materials, labor, tools, equipment, and incidentals necessary for the installation of **rehabilitation improvements for Tiger Field Recreation Park for the county's awarded, Land and Water Conservation Fund Project, Grant Number: 13-01090 (P24AP01327). Project shall be funded from the Department of Natural Resources and /or other local funds specified**), as funded by the Georgia Department of Community Affairs. Bids will be opened and read.

The meeting will be held at **Pierce County Board of Commissioners' Office** and will be opened to the public. Proposals can be mailed or delivered to the attention of **Donna Golding, County Clerk** for the **Pierce County Board of Commissioners, 312 Nichols Street, Suite 5 Blackshear, Georgia 31516**. Proposals received after the designated time will not be considered. **The Pierce County Board of Commissioners** may select a successful low bidder after evaluation of all bids.

There will be a **Mandatory Pre-Bid Conference** held at **11:00am on Monday, February 16, 2026**. This conference will be held at the **Pierce County Board of Commissioners' Office** located at **312 Nichols Street, Suite 5 Blackshear, Georgia 31516**. This pre-bid conference is intended for all contractors submitting a proposal as the prime contractor. It is also encouraged to have all sub-contractors and product vendors present.

The Scope of Work Includes:
Rehabilitation improvements for Tiger Field Recreation Park.

All proposals shall be accompanied by a Bid Bond in favor of the Owner in the amount of at least five percent (5%) of the lump sum bid for the complete work: such Bid Bond representing that the Bidder, if awarded a Contract, will promptly enter into a Contract and furnish Performance Bond and Payment Bonds as provided by the law and approved by the Attorney for the Owner. Performance Bond shall be equal to 100 Percent (100%) of the contract amount and Payment Bond shall be equal to 100 percent (100%) of the Contract amount.

The Bid Bond shall be forfeited to the Owner as liquidated damages if the Bidder fails to execute the Contract and provide Performance and Payment Bonds within (10) days after being notified that he has been awarded the Contract.

All work on the project must be completed within **180 consecutive calendar days of the Notice to Proceed Date**. **All work for the ballfield and northern parking lot must be completed prior to September 1, 2026; to allow for the 2026 recreational football season and all its amenities to be in place and operational.**

Copies of the plans and specifications may be obtained from Statewide Engineering, Inc., 516 East Ashley Street, Douglas, Georgia 31533, 912-384-7723 for \$200.00 per set for full printed specification and plans, or \$50.00 for specifications and plans emailed in pdf format (non-refundable). Plans and Specifications are also on file (for view only) at the **Pierce County Board of Commissioners' Office**. **All Bidders must receive a bid package from the Engineer in order to be considered certified. Bids**

from non-certified Bidders will not be considered.

Contractors shall submit all questions in writing to Mark Dill via email or fax. Email address is mark.dill@swecivil.com. Fax number is 912-383-6895. Deadline for all questions is Tuesday, **February 24, 2026 at 9:00am**. All questions received and answers will be provided to all contractors in an addendum and listed on the Georgia Procurement Registry.

This agreement is for services related to a project that is subject to the Build America, Buy America Act (BABAA) requirements under Title IX of the Infrastructure Investment and Jobs Act (“IIJA”), Pub. L. 177-58. Absent an approved waiver, all iron, steel, manufactured products, and construction materials used in this project must be produced in the United States, as further outlined by the Office of Management and Budget’s Memorandum M-22-11, Initial Implementation Guidance on Application of Buy America Preference in Federal Financial Assistance Programs for Infrastructure, April 18, 2022.

The Georgia Department of Transportation Standard Specifications, 2021 Edition, any applicable Supplemental Specifications, 2024 Edition, Special Provisions, or any other provision contained within this contract will be applicable to this project. All materials, workmanship, testing, etc. shall meet the Georgia Department of Transportation Specifications.

The Owner reserves the right to reject all bids and to waive informalities, and to accept any Bid which in its opinion may be in the best interest of the Owner. The Owner has the right to add or to delete from the Contract once it has been awarded. No bids shall be withdrawn for a period of 60 days after the opening of the bids.

Pierce County Board of Commissioners

By:

Chairman: Neal Bennett



INSTRUCTIONS TO BIDDERS

1. INTENTION - It is intended that the Project Documents shall cover the complete work to which they relate.
2. DEFINITION - Where the following words, or the pronouns used instead, occur herein, they shall have the following meanings:

"Owner" shall mean **Pierce County, Georgia** party of the first part to the "Contract Agreement" or its authorized representative.

"Engineer" shall mean Statewide Engineering, Inc. of Douglas, Georgia, acting for the County or other representatives duly authorized by them.

"Contractor" shall mean the party of the second part to the "Contract Agreement" or the legal authorized representative of such party.
3. LOCATION - The work described by these specifications is located in **Pierce County, Georgia, (The project is located at Tiger Field Recreation Park in Pierce County).**
4. WORK TO BE DONE - The Scope of Work Includes:
Rehabilitation improvements for Tiger Field Recreation Park.
5. SITE EXAMINATION - The Bidder is expected and requested to examine the location of the work, and to inform himself fully as to the structural and mechanical conditions; the conformation of the ground; the character, quality, and quantity of the materials to be encountered; the character of equipment and facilities needed preliminary to, and during, the prosecution of the work; the general and local conditions; and all other matters which can in any way affect the work to be done under the contract.
6. COMPLETE WORK REQUIRED - The Construction Specifications, Drawings, and all other documents are an essential part of the contract; requirements occurring in one are as binding as though occurring in all. Documents are intended to be cooperative, and to describe and provide for the complete work. In case of discrepancies on the Drawings, figured dimensions shall govern. In case of omissions from the Construction Specifications as to items of equipment, and materials and the quantities thereof, the Drawings shall govern. It shall be the responsibility of the Bidder to call to the attention of the Engineer obvious omissions of those magnitudes which would affect the strength, adequacy, function, completeness or cost of any part of the work and in ample time for amendment by Addendum prior to the Bid opening date.
7. DRAWINGS - The character, location, and essential details of the work are shown upon a set of drawings prepared by Statewide Engineering, Inc., entitled:

PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552
TIGER FIELD REHABILITATION IMPROVEMENTS

The Drawings and Specifications shall form a part of the Contract for the Work. The drawings shall be supplemented by working drawings as are necessary. All authorized alterations affecting the requirements and information given on the Drawings shall be in writing.

8. INTERPRETATION OF PROJECT DOCUMENTS - If any person contemplating submitting a bid for the proposed contract is in doubt as to the true meaning of any part of the Drawings, Construction Specifications or other documents, or as to the scope of any part of the work, he must submit to the Engineer a written request for an interpretation to be issued before the Bid opening date. Interpretations of the Project Documents will be made only by Addendum; a copy of each Addendum will be mailed or delivered to each person receiving a set of the Project Documents. The Engineer will not be responsible for other interpretations of the Project Documents. **Bidder shall return a receipt of addendum acceptance by either fax or email prior to the bid opening.** Oral instructions do not form a part of the bidding documents.

Contractors shall submit all questions in writing to Mark Dill via email or fax. Mark's email address is mark.dill@swe.us.com. Fax number is 912-383-6895. **Deadline for all questions is (Tuesday, February 24, 2026 at 9:00am).** All questions received and answers will be provided to all contractors in an addendum such as this. Any questions submitted after this deadline will not be answered since an addendum can't be issued within the minimum 72-hour timeframe prior to bid opening.

9. MATERIAL AND WORK BY OWNER - The Owner will neither furnish materials nor perform labor for construction of work under this contract, unless otherwise stipulated elsewhere in the Project Documents.
10. PROPOSALS - All proposals must be made upon the Proposal forms provided and shall be for materials and work called for in the Specifications and shown on the Drawings. Bid prices must be shown for each item in the Proposal. The total amount bid for the work in the Proposal shall be given in words and/or figures in the spaces provided. The correct total amount bid for the complete work is defined as the correct sum total of the amounts bid for the individual items in the Proposal. The correct amount bid for each unit price item is defined as the correct product of the quantity listed for the item and the unit price bid.
- Note: If proposal has any alternates, additive, or deductions, then each should be bid, or the Bid Proposal will be considered non-responsive and the bid rejected.
 - Note: All line items in the Bid Proposal must have a submitted unit price and total. Unit Price times the line item quantity should equal the Total Price for each line item. Any math discrepancy found in the Total Price for each line item upon review by the Engineer, will be corrected. The Unit Price will prevail if any math discrepancy is found. All Total Prices added together shall equal to the Total Base Bid plus or minus any alternates to arrive at the Low Bid Proposal.

- Note: Rounding of the Total Price for any line item is not acceptable. The unit price submitted times the line item quantity must correctly equal the submitted Total Price for that line item. Unit Prices shall be submitted with the correct numbers of digits. (i.e. if the unit price submitted is \$22.39, this is acceptable, if the unit price submitted is \$22.388, this is not acceptable. The bidder can either decide to submit \$22.39 or \$22.38, and which ever number is used, when multiplied by the line item quantity it must correctly equal the Total Price.
- Note: Every fillable blank on this Bid Proposal must be completed or the bid will be considered non-responsive and the bid rejected.
- Note: No pencil or erasable ink will be accepted on this proposal. No white out or correction tape will be accepted. Any modifications made to this proposal prior to submission must be initialed by the person signing the Bid Proposal.

The bids must be enclosed in a sealed envelope, addressed to **Pierce County, Georgia**. The envelope shall be marked **"Proposal for rehabilitation of Tiger Field Recreation Park for the county's awarded, Land and Water Conservation Fund Project, Grant Number: 13-01090 (P24AP01327). "**

11. ALTERNATE EQUIPMENT OR MATERIAL - Any reference to an item of equipment or material by a specific manufacturer's trade name in the specifications is intended merely as a standard. All manufacturers must be able to furnish equipment as specified. Even though named in the Specifications, equipment offered with smaller or light-weight members, inferior or inefficient mechanism or devices compared to that specified will not be approved for the project.
12. NOTICE OF SPECIAL CONDITIONS - Attention is particularly called to those parts of the Contract Documents and Specifications which deal with the following:
 - a. Applicable Georgia Department of Transportation Specifications-**Referenced in Attachment "A"**
 - b. Failure or Delay in Completing Work on Time-**Referenced in Attachment "B"**
 - c. Pay Request Form- **Referenced in Attachment "C"**
 - d. Prompt Payment Special Provision-**Referenced in Attachment "D"**
 - e. Retainage-**Referenced in Attachment "E"**
 - f. Interim Waiver and Release Upon Payment-**Referenced in Attachment "F"**
 - g. Final Release of Liens-**Referenced in Attachment "G"**
 - h. Insurance Requirements-**Referenced in Attachment "H"**
 - i. Contractor Qualifications-**Referenced in Attachment "I"**
 - j. Project Addendum(s) If Applicable-**Referenced in Attachment "J"**
 - k. Project Change Order(s) If Applicable-**Referenced in Attachment "K"**
 - l. Bid Award Recommendations- **Referenced in Attachment "L"**
 - m. Buy American Clause – Referenced in **Attachment "M"**
 - n **LWCF Plaque Order Form: Referenced in Attachment "N"**
13. SALES TAX AND/OR USE TAX - Bidders shall include in amounts bid in the proposal an allowance for payment of State Sales Tax and/or Use Tax on all taxable materials specified to be furnished by the Contractor and incorporated into the work under this contract.
14. AUTHORITY TO SIGN - If a Proposal is made by an individual, his name and Post Office address must be shown. If made by a firm, or partnership, the name and Post Office address of each member of the firm or partnership, must be shown. If made by a Corporation, the person, or persons, signing the Proposal must show the name of the State under the laws of which the

Corporation is chartered and his, or their, authority for signing same, and names, titles and addresses of the President, Secretary, and Treasurer, and the Corporate Authority for doing business in the State of Georgia.

15. BID SECURITY - Each Proposal must be accompanied by a certified check or by a Bid Bond in an amount equal to not less than five percent (5%) of the amount of the Bid. The Bid Bond must be from a Surety which has a minimum A- or better Financial Strength Rating and a minimum Class VI (25 million to 50 million) Financial Size Category. In addition to the Bid Bond, a Letter of Bondability must be submitted. The Bid Bond shall guarantee that the Successful Bidder will acknowledge acceptance of award within ten (10) days from the date of the notice of award of contract, and will, within twenty (20) days of acknowledgment, enter into an Agreement with the Owner, and execute to the Owner a Performance Bond and Payment Bond, each equal to 100% of the contract amount, the agreement and bonds to be in the form set forth in this document. If for any reason whatsoever, the Bidder withdraws from the competition after the Bid opening time, or refuses to execute the required agreement and bonds, if his Bid is accepted, the Owner may retain the amount of the certified check, or proceed on the Bid Bond. The surety on the Performance Bond and Payment Bond shall be a surety company authorized to do business in the State of Georgia and shall be countersigned by an agent residing in the State of Georgia. The bonds and surety thereon, shall be subject to approval by the Attorney for the Owner.
16. POWER OF ATTORNEY - Attorneys-in-fact who sign Bid Bonds or Contract Bonds must file with each bond a certified and effectively dated copy of their Power of Attorney.
17. TELEGRAPHIC MODIFICATION - Any Bidder may modify his Bid by telegraphic communication at any time prior to the scheduled closing time for receipt of bids, provided such telegraphic communication is received by the Owner prior to the closing time, and provided further, the Owner is satisfied that a written confirmation of the telegraphic modification over the signature of the Bidder was mailed prior to the closing time. The telegraphic communication should not reveal the bid price but should provide the addition or subtraction or other modifications so that the final prices or terms will not be known by the Owner until the sealed bid is opened. If written confirmation is not received within two (2) days from the closing time, no consideration will be given to the telegraphic modification.
18. RECEIPT AND OPENING OF BIDS – Proposals must be filed with the Owner at or before the hour specified in the Advertisement. Proposals filed after the specified hour will not be considered. Proposals sent by mail must be mailed with sufficient time allowed for the Proposal to reach the Owner prior to the opening of bids.

The Owner may consider informal any Bid not prepared and submitted in accordance with the provisions hereof and may waive any informalities or reject all bids. Any Bid may be withdrawn prior to the above scheduled time for the opening of bids or authorized postponement thereof. Any Bid received after the time and date specified shall not be considered. No bidder may withdraw a Bid within 60 days after the actual date of opening thereof. Conditional bids will not be considered.

Bidders are encouraged to be present at the opening of Proposals, which will be in public.

19. DETERMINATION OF LOW BID - The Contract will be awarded, if it is awarded, to the low, responsible, responsive bidder. The Owner will decide which is the low, responsible, responsive bidder. Responsiveness shall be defined by (a) the completeness and regularity of the bid form, (b) a bid form without excisions or special conditions, and (c) a bid form having no substitute bids for any items except as allowed under these Specifications. Responsibility will be based on

whether the Bidder involved (a) maintains a permanent place of business; (b) has adequate plant and equipment to do the work properly and within the time limit established; (c) has suitable financial status to meet obligations incident to the work; and (d) has appropriate technical experience.

20. CONSIDERATION FOR QUALIFICATION OF LOW BIDDER.

Numerous factors are considered in determining if the Contractor is qualified to construct **Pierce County's Project**. **For a Contractor to be considered as "qualified", the apparent low bidder will provide the required Contractor Qualifications as related in Attachment "L" with the submitted bid and will meet the requirements as detailed in Item No.19,**

Determination of Low Bid. The low bidder may also be asked to provide documentation and information as requested relating to the history of its company that includes its' philosophy of doing business, its' background, expertise, experience, past performance, ability to provide the qualified construction and services proposed herein. This reference material shall include evidence of having performed satisfactory construction of work similar in scope and magnitude. Inclusive in this evidence shall be a list of projects, date completed, nature, size, and value of the project; and complete names, mailing addresses, and telephone numbers of contact persons for the owner and the design professional for each of the projects. **Contractor Evaluations may be requested from previous clients.** A list of all supervisory personnel to be engaged on this project shall be submitted listing name, education, experience, and licensure/certifications.

If the Contractor has recently purchased an established business and has proof of prior success in either this business or a closely related business or has proof of the qualifications of a superintendent, contractor may provide written documentation and verification. **Pierce County, Georgia** reserves the right to accept or reject newly formed companies solely based on information provided in this response and from its own investigation of the company.

21. RETURN OF BID SECURITY - The Owner will, within ten (10) days following the Bid opening, return Bid security of all Bidders, except the Bid Security posted by the three lowest Bidders; upon the award and execution of the Contract, the remaining Bid securities will be promptly returned.

22. RIGHT TO REJECT BIDS - The Owner reserves the right to reject any or all bids, and to waive informalities. Unless all Bids are rejected with good cause, the contract will be awarded to the low, responsive, responsible bidder. All bids shall not be rejected without proper justification. Unauthorized conditions, limitations and provisions attached to the Proposal, except as provided herein, will render it informal and cause its rejection. If so determined by the Engineer, unbalanced bids will be rejected. Any Bidder may withdraw his bid, either personally or by telegraphic or written request, at any time prior to the Bid opening time.

23. SUBCONTRACTS - The Bidder's attention is directed to the General Conditions concerning subcontracts. The Bidder is specifically advised that any person, firm or other party to whom it is proposed to award a subcontract under this Contract:

- a. Must be acceptable to the Owner. Approval will not be given until the Contractor submits to the Owner a written statement concerning the proposed award to the Subcontractor, which statement shall contain such information as the Owner may require.
- b. Must provide insurance equal to that of the bidding contractor. **Refer to Attachment "H" for project specific insurance requirements.**

Approval of the proposed subcontract award cannot be given by the Owner unless and until the proposed Subcontractor has submitted the Certification and/or other evidence showing that it has fully complied with any reporting requirements to which is or was subject.

Although the Bidder is not required to attach such Certifications by proposed Subcontractors to his Bid, the Bidder is hereby advised of this requirement so that appropriate action can be taken to prevent subsequent delay in subcontract awards.

24. COORDINATION WITH OTHER CONTRACTORS - Cooperation and adjustment with other contractors is essential to properly coordinate the construction efforts of all contractors, utility owners, and subcontractors engaged in the work within and adjacent to the project site. In case of interference between the operations of the different contractors, utility owners, and subcontractors, the Owner will be the sole judge of the rights of each and the sequence of work necessary to expedite the completion of the project; and in all cases, his decision will be accepted as final.
25. ALLOWABLE TIME FOR COMPLETION - The time allowed for completion for all work to be done under this contract shall begin after notification by the Engineer to proceed with the work. Such notification will be issued upon completion of the contract agreements, and in accordance with an approved construction schedule, arranged to be within the contract time for completion. All work on the project must be completed within **180 consecutive calendar days of the Notice to Proceed Date. All work for the ballfield and northern parking lot must be completed prior to September 1, 2026; to allow for the 2026 recreational football season and all its amenities to be in place and operational.**
26. LIQUIDATED DAMAGES - It is essential this project be completed within the allowable time for completion. The allowable time provides for more than adequate time to complete the required work under typical weather patterns. For this reason, The Contractor shall pay the Owner liquidated damages in the amount of **\$3,500.00 per calendar day** for failure or delay in completing the work within the allowable time provided for **all work for the ballfield and northern parking lot that is required to be completed prior to September 1, 2026 which will allow for the 2026 recreational football season and all its amenities to be in place and operational.** All remaining items the Contractor shall pay the Owner liquidated damages in the amount of **\$2,000.00 per calendar day** for failure or delay in completing the work within the allowable time provided. The funds generated by the liquidated damages will be utilized by the Owner to reimburse the Engineer for additional cost incurred by the Engineer for the additional professional services required to complete the project beyond the contract completion date. The Engineer has no authority to issue a time extension for this project. The Engineer will not attempt to negotiate any extension with the Owner; this is the sole responsibility of the Contractor.
27. EEO CLAUSE - During the performance of this contract, the Contractor agrees as follows:
 - (1) The Contractor will not discriminate against any employees or applicants for employment because of race, color, religion, sex, or national origin. The Contractor will take take affirmative action to ensure that applicants are employed and that employees are treated during employment without regard to their race, color, religion, sex, or national origin. Such action shall include, but not be limited to the following: employment, upgrading, demotion or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. The Contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices to be provided setting forth the provisions of this nondiscrimination clause.
 - (2) The Contractor will, in all solicitations or advertisements for employees placed by or on behalf of the contractor, state that all qualified applicants will receive consideration for

employment without regard to race, color, religion, sex or national origin.

- (3) The Contractor will send to each labor union or representative of workers with which he has a collective bargaining agreement or other contract or understanding, a notice to be provided advising the said labor union or workers' representatives of the Contractor's commitments under this section, and shall post copies of the notice in conspicuous places available to employees and applicants for employment.
- (4) The Contractor will comply with all provisions of Executive Order 11246 of September 24, 1965, and of rules, regulations and relevant orders of the Secretary of Labor.
- (5) The Contractor will furnish all information and reports required by Executive Order 11246 of September 24, 1965, and by rules, regulations and orders of the Secretary of Labor, or pursuant thereto, and will permit access to his books, records, and accounts by the administering agency and the Secretary of Labor for purposes of investigation to ascertain compliance with such rules, regulations and orders.
- (6) In the event of the Contractor's noncompliance with the nondiscrimination clauses of this contract, or with any of the said rules, regulations or orders, this contract may be canceled, terminated or suspended in whole or in part and the Contractor may be declared ineligible for further Government contracts or federally assisted construction contracts in accordance with procedures authorized in Executive Order 11246 of September 24, 1965, and such other sanctions may be imposed and remedies invoked as provided in Executive Order 11246 of September 24, 1965, or by rule, regulation or order of the Secretary of Labor, or as otherwise provided by law.
- (7) The Contractor will include that portion of the sentence immediately preceding paragraph (1) and the provisions of paragraphs (1) through (7) in every subcontract or purchase order unless exempted by rules, regulations or orders of the Secretary of Labor issued pursuant to Section 204 of Executive Order 11246 of September 24, 1965, so that such provisions will be binding upon each subcontractor or vendor. The Contractor will take such action with respect to any subcontract or purchase order as the administering agency may direct as a means of enforcing such provisions, including sanctions for noncompliance. Provided, however, that in the event a Contractor becomes involved in, or is threatened with litigation with a subcontractor or vendor as a result of such direction by the administering agency the contractor may request the United States to enter into such litigation to protect the interests of the United States.
28. SPECIAL NOTICE - The information and requirements included as Instructions to Bidders are neither inclusive nor exclusive and the Bidder or Contractor shall make no claim for lack of notice because information or requirements are stated elsewhere in the Contract Documents, but are not repeated herein.
29. The Georgia Department of Transportation Standard Specifications, 2021 Edition, any applicable Supplemental Specifications, 2024 Edition, Special Provisions, or any other provision contained within this contract will be applicable to this project. All materials, workmanship, testing, etc. shall meet the Georgia Department of Transportation Specifications.
30. The Contractor shall not sublet, sell, transfer, assign, or otherwise dispose of the Contract or Contracts, or any portion thereof, or of his/her right, title, or interest therein, without written consent of the Engineer. For Subcontracts, consent of the Engineer will not be considered until after award of the Contract. **In case such consent is given, the Contractor will be permitted to sublet a portion thereof, but shall perform, with his/her own organization, work amounting to not less than thirty percent (30%) of the total Contract cost, including materials,**

equipment, and labor. As further exception, any items designated as Specialty Items may be performed by Subcontract and the cost of any such Specialty Items so performed by Subcontract may be deducted from the total cost before computing the amount of work required to be performed by the Contractor with his/her own organization. Purchase of materials by the Prime Contractor for use by a Subcontractor will not be allowed when computing the 30% requirement. No Subcontracts, or transfer of Contract, shall in any case release the Prime Contractor of his/her liability under the Contract and Bonds. No Subcontractor shall commence work in advance of the written approval of the Subcontract by the Department or Engineer. Except for certain items exempted by the State Transportation Board, or for Subcontracts totaling \$250,000 or less, each Subcontractor shall be prequalified or registered with the Department of Transportation. Each Subcontract for a Registered Subcontractor shall not exceed \$1,000,000 and Subcontracts for Prequalified Contractors shall not exceed their current capacity. Prequalified or Registered Subcontractors shall be qualified or registered with the Department in accordance with Chapter 672-5 of the Rules and Regulations Governing the Prequalification of Prospective Bidders adopted by the State Transportation Board. In the event any portion of a Subcontract is further sublet, all of the provisions governing subletting, including registration and written approval by the Engineer, shall apply. This Sub-Section shall not apply to Contracts between the Department and counties, municipalities, or other State agencies. All subcontract agreements between the Prime Contractor and subcontractor shall be in writing and shall contain all of the Federal-Aid requirements and pertinent provisions of the Prime Contract. The Prime Contractor shall, upon request by the Engineer, furnish copies of any subcontract agreement to the Department within ten (10) days of such request. This provision applies to all subcontracts, including second or multi-tier subcontracts. According to the provisions stated above, the following items are designated Specialty Items for general transportation system construction and building construction whenever they appear in the Contract.

31. A Pre-Construction Meeting is required prior to any construction of the project. The Contractor is required to be present at this meeting.
32. Contractor shall verify bid quantities with plan requirements prior to ordering/purchasing materials. Owner nor Engineer will be responsible for any costs or restocking fees for materials purchased and not used due to a discrepancy between bid quantities shown and actual project requirements.
33. Any request for substitute or "or equal" shall include the Manufacturer's Certification of compliance with the Build America, Buy America Act (BABAA) requirements mandated by Title IX of the Infrastructure Investment and Jobs Act ("IIJA"), Pub. L. 177-58. If the Instructions include a Federal requirements section, include the following: BABAA requirements apply to this project.
34. The following required list of items must be enclosed with every bid submitted or your bid will be rejected. **Please check to make sure that all items are enclosed, and forms are completed before sealing envelope.**

****If any item is missing, bid will be considered as an incomplete bid and rejected.****

1. Bid Bond or Certified Check - **If Bid Bond is submitted a Letter of Bondability must also be submitted. Also, minimum requirements established in Item No.15, Bid Security shall apply.**
2. Proposal
3. Certificate of Insurance
4. Affidavit of Non-Collusion
5. Equal Employment Opportunity Clause

6. Certification of Non-Segregated Facilities
7. Contractor Certification Regarding Debarment
8. Drug Free Work Place
9. Contractor Affidavit under O.C.G.A. § 13-10-91(b)(1)
10. Subcontractor Affidavit under O.C.G.A. § 13-10-91(b)(3)
11. Sub-subcontractor Affidavit under O.C.G.A. § 13-10-91(b)(4)
12. Pre-Oath Award
13. SAVE Affidavit
15. Contractor Qualifications as referenced in Advertisement to Bid and Attachment “L”.

PROPOSAL
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

TO: PIERCE COUNTY, GEORGIA

Submitted _____, 20____

The undersigned, as BIDDER, hereby declares that the only person or persons interested in the Proposal as Principal or Principals is or are named herein; that no person other than those named herein has an interest in this Proposal or in the CONTRACT to be entered into; that this Proposal is made without connection with any other person, company and parties making a Proposal; and that this Proposal is, in all respects, fair and made in good faith without collusion or fraud.

The BIDDER further declares that he has examined the site of the WORK and has informed himself fully in regard to all conditions pertaining to the place where the WORK is to be done; that he has examined the Specifications and Drawings for the work and contractual documents relative thereto; that he has read the Instructions to Bidders, General Conditions, and Supplemental General Conditions furnished prior to the Bid opening date; and that he has satisfied himself relative to the work to be performed.

The BIDDER proposes and agrees that, if he becomes the SUCCESSFUL BIDDER on the basis of this Proposal, he will contract with **Pierce County, Georgia** (herein called the "OWNER"), in the form of contract illustrated to furnish all necessary equipment, materials, tools, machinery, apparatus, means of transportation, and all necessary labor to complete the construction of the work in full, and in complete accord with the shown, noted, described, specified and reasonably intended requirements of the Specifications, Drawings, and Contract Documents to the full and entire satisfaction of the OWNER, with a definite understanding that no money will be allowed for extra work except as set forth in the General Conditions and other Contract Documents, for the following prices.

TIGER FIELD REHABILITATION IMPROVEMENTS

Item	DOT Item #	Description	Qty	Units	Unit Price	Total Bid Cost
1000	163-0232	Temporary Grassing	5.36	AC		
1010	163-0240	Mulch	16.08	TN		
1020	163-0531	Construct and Remove Temporary Sediment Barrier or Baled Straw Check Dam	10	EA		
1030	163-0301	Construct and Remove Construction Exits	2	EA		
1040	165-0010	Maintenance of Type A Silt Fence	824	LF		
1050	165-0041	Maint of Erosion Control Check Dams/Ditch Checks	10	EA		
1060	165-0101	Maintenance of Construction Exit	2	EA		
1070	167-1000	Water Quality Monitoring and Sampling	2	EA		
1080	167-1500	Water Quality Inspection	6	MO		
1090	167-9999	Prepare & Submit Notice of Intent and Notice of Termination to EPD GEOS as Responsible Official, Including payment of EPD Land Disturbance Fees (5.36 ac. x \$80/ac = \$428.80)	1	LS		

Item	DOT Item #	Description	Qty	Units	Unit Price	Total Bid Cost
1100	171-0010	Temp Silt Fence Type A	1,650	LF		
1110	210-0100	Grading Complete	1	LS		
1120	301-2140	Soil Cement Base Course 6 Inch	8775	SY		
1130	301-5000	Portland Cement	176	TN		
1140	402-3113	Recycled Asph Conc 12.5 MM SuperPave GP 1 or 2 Incl Bitum Matl, & H Lime (NEW PARKING LOTS)	675	TN		
1150	402-3113	Recycled Asph Conc 12.5 MM SuperPave GP 1 or 2 Incl Bitum Matl, & H Lime (RESURFACING)	331	TN		
1160	413-0750	Tack Coat	285	GAL		
1170	415-0000	Asphaltic Concrete Open Graded Cracked Relief Interlayer (Leveling, Roadway)	18	TN		
1180	415-0000	Asphaltic Concrete Open Graded Cracked Relief Interlayer (Leveling, Walking Track)	152	TN		
1190	432-5010	Asphalt Milling at Variable Depth	2592	SY		
1200	441-0104	Conc Sidewalk, 4 In	390	SY		
1210	550-5120	Storm Drain Pipe 12 Inch (HDPE)	164	LF		
1220	550-5150	Storm Drain Pipe 15 Inch (HDPE)	109	LF		
1230	550-5180	Storm Drain Pipe 18 Inch (HDPE)	166	LF		
1240	550-5240	Storm Drain Pipe 24 Inch (HDPE)	450	LF		
1250	550-5300	Storm Drain Pipe 30 Inch (HDPE)	304	LF		
1260	603-2180	Stone Dumped Rip Rap Type 3	50	SY		
1270	603-7000	Plastic Filter Fabric	50	SY		
1280	653-1704	Thermoplastic Solid Traffic Stripe, 24 In White	45	LF		
1290	653-1906	Thermoplastic Solid Traffic Stripe, 6 In, White	3460	LF		
1300	653-6004	Thermoplastic Traffic Striping, White	190	SY		
1310	668-1000	Catch Basin, GP 1	1	EA		
1320	668-2100	Drop Inlet, GP 1 (Std 9031- S)	1	EA		
1330	700-0001	Permanent Grassing	5.36	AC		
1340	700-8000	Fertilizer, Mixed Grade	3.5	TN		
1350	713-3012	Wood Fiber Blanket, Tp 2 Shoulder	25,942	SY		
1360	999-9753	ADS Nyoplast Drain Basin (Drop Inlet)	4	EA		
1370	999-9754	ADS Nyoplast Yard Drain	4	EA		
1380	999-9755	Tiger Field Commercial Name Sign	1	EA		
1390	999-9756	Galvanized Chainlink Man Gate 4'	5	EA		

Item	DOT Item #	Description	Qty	Units	Unit Price	Total Bid Cost
1400	999-9757	Galvanized Chainlink Man Gate 6'	1	EA		
1410	999-9758	Galvanized Chainlink Sliding Gate 28'	1	EA		
1420	999-9759	Chainlink Double Swing Gate 12' (24' Opening)	3	EA		
1430	999-9760	Chainlink Fence 4'	3,364	LF		
1440	999-9761	Chainlink Fence 6'	66	LF		
1450	999-9762	KorKat 5 Row Delux Bleachers (NA-0515DLX-CL)	7	EA		
1460	999-9763	KorKat Bleacher Shade 5-Row (HC261411SG)	7	EA		
1470	999-9764	Sanitary Sewer Service 4" PVC	385	LF		
1480	999-9765	Sanitary Sewer Clean-out	5	EA		
1490	999-9766	Concrete Steps w/ Handrail	1	EA		
1500	999-9767	Sidewalk Handrail	300	LF		
1510	999-9768	Concrete 4 In Slab	617	SY		
1520	999-9769	Concrete Wheel Stops	33	EA		
1530	999-9770	Handicap Symbol Thermoplastic Pavement Mrk.	7	EA		
1540	999-9771	Handicap Parking Sign	7	EA		
1550	999-9999	Field Testing	1	LS		
Total Base Bid						

Total Base Bid = _____

The following required list of items must be enclosed with every bid submitted or your bid will be rejected. **Please check to make sure that all items are enclosed and forms are completed before sealing envelope.**

_____ 1. Bid Bond or Certified Check - **If Bid Bond is submitted a Letter of Bondability must also be submitted. Also, minimum requirements established in Item No.15, Bid Security shall apply.**

_____ 2. Proposal

_____ 3. Certificate of Insurance

_____ 4. Affidavit of Non-Collusion

_____ 5. Equal Employment Opportunity Clause

_____ 6. Certification of Non-Segregated Facilities

_____ 7. Contractor Certification Regarding Debarment

_____ 8. Drug Free Work Place

_____ 9. Contractor Affidavit and Agreement-Immigration Reform and Control Act

_____ 10. Sub-Contractor Affidavit and Agreement-Immigration Reform and Control Act

_____ 11. Sub-SubContractor Affidavit and Agreement-Immigration Reform and Control Act

_____ 12. Pre-Oath Award

_____ 13. SAVE Affidavit

_____ 14. Contractor's Notice of Contractor's Qualification as issued by the Georgia Department of Transportation.

_____ 15. Contractor's Utility License

Prepared By: _____ Title: _____

Company: _____ Date: _____

Checked by: _____

The undersigned, as BIDDER, hereby acknowledges receipt of the following Addenda:

Addendum No. _____ Date Received: _____

Addendum No. _____ Date Received: _____

Addendum No. _____ Date Received: _____

Tabulation of Sub-Contractor used in Bid Proposal

The following tabulation lists the various Contractors whose prices were used in preparation of the Bid and who will be used to accomplish the respective items of work.

MANDATORY REQUIREMENT TO PROVIDE A LIST OF ALL PROPOSED SUBCONTRACTORS UTILIZED ON THIS PROJECT. FAILURE TO PROVIDE FULL LIST MAY SUBJECT PROPOSAL TO BE REJECTED. OWNER/ENGINEER HAS THE RIGHT TO APPROVE OR DISAPPROVE ANY PROPOSED SUBCONTRACTOR. ANY CHANGES TO SUBCONTRACTORS LISTED SHALL BE APPROVED BY THE OWNER/ENGINEER BEFORE ANY WORK PERFORMED.

Description of Work	Sub-Contractor/Address	Percentage of Work

NOTE: BIDS shall include sales tax and all other applicable taxes and fees.

The apparent low bid will be determined based meeting all criteria of Item No.19 and No.20 in the Instruction to Bidders, and then on the sum of the total base bid and any alternates or additives chosen by the owner. If this bid has no alternate or additive bid items then the lowest bid will be determined based on the lowest numerical value of the "Total Base Bid".

Note: Bidders attention is directed to Section 01150-Measurement and Payment of the Technical Specifications which specify the items for which payment will be made. The Contractor shall distribute (include) all costs associated with the construction of the project into the items listed for which payment will be made.

The above unit prices shall include any and all costs for labor, materials, equipment, bailing, dewatering, sheeting and shoring, demolition, removal, disposal, replacement, overhead, profit, insurance, etc., to cover the finished work of the several kinds called for, complete, in-place and fully operational.

Payment will only be made for the items, listed within the Bid Schedule.

Bidder/Contractors shall include any/all costs for work incidental to a pay item within the applicable pay items. For any/all work for which a specific pay item is not provided, the bidder/contractor shall distribute the costs for such among the items for which payment is allowed. After the Contract is awarded, the Contractor shall only be paid for the pay items listed. Failure of a Bidder/Contractor to include/distribute any/all costs for the complete work within the items listed shall not be considered sufficient reason for additional payment to the Contractor.

The Work shall be performed in accordance with the Construction Drawings and Technical Specifications of these Contract Documents.

Bidder understands that the owner reserves the right to reject any or all bids and to waive any informalities in the bidding.

The bidder agrees that this bid shall be good and may not be withdrawn for a period of 60 calendar days after the scheduled closing time for receiving bids.

Upon receipt of written notice of the acceptance of this bid, Bidder will execute the formal Contract attached within 10 days and deliver a Surety Bond or Bonds as required by Article 20 of the General Conditions. The bid security attached in the sum of _____

_____ (\$ _____) is to become the property of the Owner in the event the contract and bond are not executed within the time above set forth, as liquidated damages for the delay and additional expense to the Owner caused thereby.

Respectfully submitted by:

Name _____

(Title) _____

(Seal)- if bid by a corporation

Name of Company _____

Business Address and Zip Code

END PROPOSAL

BID BOND
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

STATE OF GEORGIA
PIERCE COUNTY

KNOW ALL MEN BY THESE PRESENTS that we, _____ (herein called the "BIDDER") submitted a Bid to **Pierce County, Georgia** (herein called the "OWNER") dated the day of _____, 20____, for procuring and installing products for the project entitled "**Pierce County, Georgia rehabilitation improvements for Tiger Field Recreation Park for the county's awarded, Land and Water Conservation Fund Project, Grant Number: 13-01090 (P24AP01327). Project shall be funded from the Department of Natural Resources and /or other local funds specified**). (herein called the "PROJECT"); that the BIDDER and we, _____ (herein called the "SURETY") are firmly bound to the OWNER in the sum of _____ (\$_____) in lawful United States currency; and that we, the BIDDER and the SURETY, jointly and severally, bind our respective assigns, successors, heirs, executors, and administrators to our obligations to pay the OWNER that sum.

THE CONDITION OF THIS OBLIGATION is that if Bid is not selected by the OWNER as being the lowest, or lower, responsible Bid, then this obligation shall be void, otherwise this obligation shall remain in full force and effect.

THE FURTHER CONDITION OF THIS OBLIGATION is that if the Bid is selected by the OWNER as being the lowest, or lower, responsive, responsible Bid; and if the Bidder shall execute and deliver the CONTRACT AGREEMENT, PERFORMANCE BOND, AND PAYMENT BOND, and shall, in all other respects, perform the acts required by the acceptance of the Bid; then this obligation shall be void, otherwise this obligation shall remain in full force and effect.

THE FURTHER CONDITION OF THIS OBLIGATION is that the SURETY, for value received, stipulates and agrees that extensions to the time limit in which the OWNER may accept Bids shall not invalidate the SURETY's obligation under this bond, and that the SURETY does hereby waive notice of extensions to that time limit.

IN WITNESS WHEREOF the BIDDER and the SURETY have executed this BID BOND on this _____ day of _____, 20____.

(BIDDERS Seal if Corporation)

(Bona Fide BIDDERS Name)

Continuation of Bid Bond

By: _____ L.S.

(Print Name and Title of Signer)

(SURETY's Name) (SURETY's Seal)

By: _____ L.S.

(Print Name and Title of Signer)

Countersigned:

By: _____ L.S.
Agent, Resident of the State of Georgia

AFFIDAVIT OF NON-COLLUSION
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

The following affidavit is to accompany the bid:

STATE OF _____
COUNTY OF _____

Being of lawful age, being first duly sworn, on oath says that he/she is the agent authorized by the bidder to submit the attached bid. Affidavit further states as bidder, that they have not been a party to any collusion among bidders in restraint of competition by agreement to bid at a fixed price or to refrain from bidding; or with any office of **Pierce County, Georgia**, or any of their employees as to quantity, quality or price in the prospective contract; or any discussion between bidders and any official of **Pierce County, Georgia** or any of their employees concerning exchange of money or other things of value for special consideration in submitting a sealed bid for:

Contractor Name: _____
Address: _____
City/State/Zip Code: _____

Signature: _____
Title: _____
Date: _____

Witness: _____
Date: _____

Notary:
Subscribed and sworn to before me this _____ day of _____ 20_____

Signature _____
Seal Exp. Date: _____
(Seal)

EQUAL EMPLOYMENT OPPORTUNITY (EEO) CLAUSE
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

The following is to accompany the bid:

During the performance of this contract, the Contractor agrees as follows:

- 1.) The Contractor will not discriminate against any employee or applicant for employment because of race, color, religion, sex or national origin. The Contractor will take affirmative action to ensure that applicants are employed, and the employees are treated during employment without regard to their race, color, religion, sex or national origin. Such action shall include, but not be limited to the following: Employment, upgrading, demotion, or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. The Contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices to be provided setting forth the provisions of this nondiscrimination clause.
- 2.) The Contractor will, in all solicitations or advertisements for employees placed by or on behalf of the Contractor, state that all qualified applicants will receive consideration for employment without regard to race, color, religion, sex or national origin.
- 3.) The Contractor will send to each labor union or representative of workers with which he has a collective bargaining agreement or other contract or understanding, a notice to be provided advising the said labor union or workers' representative of the Contractor's commitments under this section, and shall post copies of the notice in conspicuous places available to employees and applicants for employment.
- 4.) The Contractor will comply with all provisions of Executive Order 11246 of September 24, 1965, and of the rules, regulations and relevant orders of the Secretary of Labor.
- 5.) The Contractor will furnish all information and reports required by Executive Order 11246 of September 24, 1965, and by rules, regulations and orders of the Secretary of Labor, or pursuant thereto, and will permit access to his books, records and accounts by the administering agency and the Secretary of Labor for purposes of investigation to ascertain compliance with such rules, regulations and orders.
- 6.) In the event of the Contractor's noncompliance with the nondiscrimination clauses of this contract or with any of the said rules, regulations, or orders, this contract may be canceled, terminated or suspended in whole or in part and the contractor may be declared ineligible for further Government contracts or federally assisted construction contracts in accordance with procedures authorized in Executive Order 11246 of September 24, 1965, and such other sanctions may be imposed and remedies invoked as provided in Executive Order 11246 of September 24, 1965, or by the rule, regulation, or order of the Secretary of Labor, or as otherwise provided by law.

7.) The Contractor will include the portion of the sentence immediately preceding paragraph (1) and the provisions of paragraphs (1) through (7) in every subcontract or purchase order unless exempted by rules, regulations, or orders of the Secretary of Labor issued pursuant to Section 204 of Executive Order 11246 of September 24, 1965, so that such provisions will be binding upon each subcontractor or vendor. The Contractor will take such action with respect to any subcontract or purchase order as the administering agency may direct as a means of enforcing such provisions, including sanctions for noncompliance. Provided, however, that in the event a Contractor becomes involved in, or is threatened with litigation with a subcontractor or vendor as a result of such direction by the administering agency the contractor may request the United States to enter into such litigation to protect the interests of the United States.

Contractor Name: _____

Address: _____

City/State/Zip Code: _____

Signature: _____

Title: _____

Date: _____

CERTIFICATION OF NON-SEGREGATED FACILITIES
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

The following is to accompany the bid:

We, _____ Company)
Certify that we do not and will not maintain or provide for our employees any. Segregated facilities at any of our establishments, and that we do not and will not permit our employees to perform their services at any location, under our control, where segregated facilities are maintained. We understand and agree that breach of this certification is a violation of Equal Opportunity clause required by Executive Order 11246, amended.

As used in this certification, the term "segregated facilities" means any waiting rooms, work areas, rest rooms and wash rooms, restaurants and other eating areas, time clocks, locker rooms and other storage or dressing areas, parking lots, drinking fountains, recreation or entertainment areas, transportation and housing facilities provided for employees which are segregated by explicit directive or are in fact segregated on the basis of race, creed, color, or .national origin, because of habit, local custom or otherwise.

We further agree that (except where we have obtained identical certifications from proposed Subcontractors for specific time periods) we will obtain identical certifications from proposed Subcontractors prior to the award of subcontracts exceeding \$10,000 which are not exempt from the provisions of the Equal Opportunity clause; that we will retain such certification in our files; and that we will forward the following notice to such proposed Subcontractors (except where the proposed Subcontractors have submitted identical certifications for specific time periods).

NOTICE TO PROSPECTIVE SUBBUILDERS OF REQUIREMENT FOR CERTIFICATION OF NON-SEGREGATED FACILITIES. A certification of non-segregated facilities as required by the 9 May 1967 order on Elimination of Segregated Facilities, by the Secretary of Labor (32 Fed. Reg. 7439, 19 May 1967), must be submitted from the provisions either for each subcontract or for all subcontracts during a period (i.e. quarterly, semi-annually, or annually).

NOTE: Whoever knowingly and willfully makes any false, fictitious or fraudulent representation may be liable to criminal prosecution under 18 U.S.C. 1001.

(Name of Company)

By: _____

Date: _____

Title: _____

**CONTRACTOR CERTIFICATION REGARDING DEBARMENT
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

The following is to accompany the bid:

**ACCEPTABLE ALTERNATE WORK SHEET FOR CONTRACTOR CERTIFICATION
REGARDING DEBARMENT, SUSPENSION, INELIGIBILITY AND VOLUNTARY
EXCLUSION (LOWER-TIER PARTICIPANT) FOR HUD PROGRAMS**

Certification regarding Debarment, Suspension, Ineligibility and Voluntary Exclusion- Lower-Tier Covered Transactions pursuant to 24 Code of Federal Regulations, Part 24.51O(b).

1. By signing and submitting this proposal, the prospective lower-tier participant certifies that neither it, its principals nor affiliates, is presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction by any Federal department or agency. Further, the Participant provides the certification set out below.
2. The certification in this clause is a material representation of fact upon which reliance was placed when this transaction was entered into. If it is later determined that an erroneous certification was rendered, in addition to other remedies available to the Federal Government, the Department or agency with which this transaction originated may pursue available remedies.
3. Further, the Participant shall provide immediate written notice to the person to which this proposal is submitted if at any time the Participant learns that this certification was erroneous when submitted or has become erroneous by reason of changed circumstances.
4. By submitting this proposal, it is agreed that should the proposed covered transaction be entered into, the Participant will not knowingly enter into any lower-tier covered transaction with a person who is debarred, suspended, declared ineligible, or voluntarily excluded from participation in this covered transaction unless authorized by the agency with which this transaction originated.
5. It is further agreed that by submitting this proposal, the Participant will include this Certification, without modification, in all lower-tier covered transactions and in all solicitations for lower-tier covered transactions.

Continuation of Contractor Certification Regarding Debarment

Contractor Name _____ Date _____

Title _____ Address _____

City _____ State _____ Zip _____

NON-CERTIFICATION:

As the perspective lower-tier participant, I am unable to certify to statements in this Certification as explained in the attachment to this proposal.

Contractor Name _____ Date _____

Title _____ Address _____

City _____ State _____ Zip _____

The penalty for making false statements is prescribed in the U.S. Criminal Code, 18 U.S.C. 1001.

DRUG FREE WORK-PLACE CERTIFICATION
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

The following is to accompany the bid:

The undersigned certifies that the provisions of Code Sections 550-24-1 through 50-24-6 of the Office Code of Georgia annotated, relating to the "Drug Free Workplace Act", have been complied with in full. The undersigned further certifies that:

(1) A drug-free workplace will be provided for the Contractor's employees during the performance of the contract; and

(2) Contractor who hires a subcontractor to work in a drug-free workplace shall secure from that subcontractor the following written certification: 'As part of the subcontracting agreement with

(Contractor's Name) _____

(Subcontractor's Name) _____

certifies to the Contractor that a drug free workplace will be provided for the subcontractor's employees during the performance of this contract pursuant to paragraph (7) of subsection of Code Section 50-24-3.

Also, the undersigned further certifies that he will not engage in the unlawful manufacture, distribution, dispensation, possession, or use of a controlled substance or marijuana during the performance of the contract.

Contractor Name: _____

Address: _____

City/State/Zip Code: _____

Signature: _____

Title: _____

Date: _____

Witness: _____

Date: _____

Notary:

Subscribed and sworn to before me this _____ day of _____ 20_____

Signature _____

Seal Exp. Date: _____

(Seal)

CONTRACTOR AFFIDAVIT AND AGREEMENT
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

The following is to accompany the bid:

Contractor Affidavit under O.C.G.A. § 13-10-91(b)(l)

The undersigned contractor ("Contractor") executes this Affidavit to comply with O.C.G.A. § 13-10-91 related to any contract to which Contractor is a party that is subject to O.C.G.A. § 13-10-91 and hereby verifies its compliance with O.C.G.A. § 13-10-91, attesting as follows:

- a) The Contractor has registered with, is authorized to use and uses the federal work authorization program commonly known as E-Verify, or any subsequent replacement program;
- b) The Contractor will continue to use the federal work authorization program throughout the contract period, including any renewal or extension thereof;
- c) The Contractor will notify the public employer in the event the Contractor ceases to utilize the federal work authorization program during the contract period, including renewals or extensions thereof;
- d) The Contractor understands that ceasing to utilize the federal work authorization program constitutes a material breach of Contract;
- e) The Contractor will contract for the performance of services in satisfaction of such contract only with subcontractors who present an affidavit to the Contractor with the information required by O.C.G.A. § 13-10-91(a), (b), and (c);
- f) The Contractor acknowledges and agrees that this Affidavit shall be incorporated into any contract(s) subject to the provisions of O.C.G.A. § 13-10-91 for the project listed below to which Contractor is a party after the date hereof without further action or consent by Contractor; and
- g) Contractor acknowledges its responsibility to submit copies of any affidavits, drivers' licenses, and identification cards required pursuant to O.C.G.A. § 13-10-91 to the public employer within five business days of receipt.

Federal Work Authorization User Identification
Authorization

Number Date of

Name of Contractor

Name of Project

Name of Public Employer

Continuation of Contractor Affidavit under O.C.G.A. § 13-10-91(b)(1)

I hereby declare under penalty of perjury that the foregoing is true and correct.

Executed on _____, _____, 20__ in _____ city, _____ state.

Signature of Authorized Officer or Agent

Printed Name and Title of Authorized Officer or Agent

SUBSCRIBED AND SWORN BEFORE ME
ON THIS THE _____ DAY OF _____, 20__

NOTARY PUBLIC

My Commission Expires: _____

SUB-CONTRACTOR AFFIDAVIT
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

The following is to accompany the bid:

Subcontractor Affidavit under O.C.G.A. § 13-10-91(b)(3)

By executing this affidavit, the undersigned subcontractor verifies its compliance with O.C.G.A. § 13-10-91, stating affirmatively that the individual, firm or corporation which is engaged in the physical performance of services under a contract with _____
(name of contractor) on behalf of _____
(name of public employer) has registered with, is authorized to use and uses the federal work authorization program commonly known as E-Verify, or any subsequent replacement program, in accordance with the applicable provisions and deadlines established in O.C.G.A. § 13-10-91. Furthermore, the undersigned subcontractor will continue to use the federal work authorization program throughout the contract period and the undersigned subcontractor will contract for the physical performance of services in satisfaction of such contract only with sub-subcontractors who present an affidavit to the subcontractor with the information required by O.C.G.A. § 13-10-91(b). Additionally, the undersigned subcontractor will forward notice of the receipt of an affidavit from a sub-subcontractor to the contractor within five business days of receipt. If the undersigned subcontractor receives notice that a sub-subcontractor has received an affidavit from any other contracted sub-subcontractor, the undersigned subcontractor must forward, within five business days of receipt, a copy of the notice to the contractor. Subcontractor hereby attests that its federal work authorization user identification number and date of authorization are as follows:

Federal Work Authorization User Identification Number

Date of Authorization

Name of Subcontractor

Name of Project

Name of Public Employer

Continuation of Subcontractor Affidavit under O.C.G.A. § 13-10-91(b)(3)

I hereby declare under penalty of perjury that the foregoing is true and correct.

Executed on _____, _____, 20__ in _____ city, _____ state.

Signature of Authorized Officer or Agent

Printed Name and Title of Authorized Officer or Agent

SUBSCRIBED AND SWORN BEFORE ME
ON THIS THE _____ DAY OF _____, 20__

NOTARY PUBLIC

My Commission Expires: _____

SUB-SUBCONTRACTOR AFFIDAVIT
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

The following is to accompany the bid:

Sub-subcontractor Affidavit under O.C.G.A. § 13-10-91(b)(4)

By executing this affidavit, the undersigned sub-subcontractor verifies its compliance with O.C.G.A. § 13-10-91, stating affirmatively that the individual, firm or corporation which is engaged in the physical performance of services under a contract with _____
(name of subcontractor or sub-subcontractor with whom such
sub-subcontractor has privity of contract) and _____ (name
of contractor) on behalf of _____ (name of public
employer) has registered with, is authorized to use and uses the federal work authorization program commonly known as E-Verify, or any subsequent replacement program, in accordance with the applicable provisions and deadlines established in O.C.G.A. § 13-10-91. Furthermore, the undersigned sub-subcontractor will continue to use the federal work authorization program throughout the contract period and the undersigned sub-subcontractor will contract for the physical performance of services in satisfaction of such contract only with sub-subcontractors who present an affidavit to the sub-subcontractor with the information required by O.C.G.A. § 13-10-91(b). The undersigned sub-subcontractor shall submit, at the time of such contract, this affidavit to _____ (name of subcontractor
or sub-subcontractor with whom such sub-contractor has privity of contract). Additionally, the undersigned sub-subcontractor will forward notice of the receipt of any affidavit from a sub-subcontractor to _____ (name of
subcontractor or sub-subcontractor with whom such sub-subcontractor has privity of contract)
Sub-subcontractor hereby attests that its federal work authorization user identification number and date of authorization are as follows:

Federal Work Authorization User Identification Number

Date of Authorization

Name of Sub-subcontractor

Name of Project

Name of Public Employer

Continuation of Sub-subcontractor Affidavit under O.C.G.A. § 13-10-91(b)(4)

I hereby declare under penalty of perjury that the foregoing is true and correct.

Executed on _____, _____, 20__ in _____ city, _____ state.

Signature of Authorized Officer or Agent

Printed Name and Title of Authorized Officer or Agent

SUBSCRIBED AND SWORN BEFORE ME
ON THIS THE _____ DAY OF _____, 20__

NOTARY PUBLIC

My Commission Expires: _____

PRE-OATH AWARD
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

STATE OF GEORGIA
PIERCE COUNTY

The following is to accompany the bid:

In accordance with O.C.G.A.36-91-21(e), we, the undersigned of _____
_____ being first duly sworn, deposes and says that:

We have not directly or indirectly violated O.C.G.A. 36-91-21 (d), and more specifically, we have not

- Prevented or attempted to prevent competition in such bidding or proposals by any means whatever,
- Prevented or endeavored to prevent anyone from making a bid or proposal thereof by any means whatever, nor
- Caused or induced another to withdraw a bid or proposal for the work.

We, the undersigned, to the best of our knowledge, affirm that no other officers, agents or other persons acted for or represented the Contractor in the bidding for and procurement of this Contract.

Signature: _____	Printed Name: _____	Title: _____	Date: _____
------------------	---------------------	--------------	-------------

Sworn to and subscribed before me this ____ day of _____, 20__.

Notary Public
My commission expires: _____

(Notary Seal)

**SAVE AFFIDAVIT
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

**STATE OF GEORGIA
PIERCE COUNTY**

The following is to accompany the bid:

[Name of natural person applying on behalf of individual, business, corporation, partnership or other private entity]

By executing this affidavit under oath, as an applicant for a **Pierce County, Georgia** contract as referenced in O.C.G.A. § 50-36-1 and the August 1, 2010, "Report of the Attorney General on Public Benefits", I am stating the following with respect to my ability to enter into a contract with **Pierce County, Georgia**:

1) _____ I am a United States citizen

OR

2) _____ I am a legal permanent resident 18 years of age or older or I am an otherwise qualified alien or non-immigrant under the Federal Immigration and Nationality Act 18 years of age or older and lawfully present in the United States.

In making the above representation under oath, I understand that any person who knowingly and willfully makes a false, fictitious, or fraudulent statement or representation in an affidavit shall be guilty of a violation of O.C.G.A. § 16-10-20.

This ____ day of _____, 20__.

Signature of Applicant: _____

Printed Name: _____

Alien Registration number for non-citizens: _____

SUBSCRIBED AND SWORN BEFORE ME ON THIS THE ____ DAY OF _____, 20__.

Notary Public: _____

My Commission Expires: _____

(Notary Seal)

NOTICE OF AWARD
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

TO: _____

PROJECT DESCRIPTION: "Pierce County, Georgia, rehabilitation improvements for Tiger Field Recreation Park for the county's awarded, Land and Water Conservation Fund Project, Grant Number: 13-01090 (P24AP01327). Project shall be funded from the Department of Natural Resources and /or other local funds specified).

The OWNER has considered the BID submitted by you for the above-described WORK in response to its Advertisement for Bids dated _____, and Information for Bidders.

You are hereby notified that your TOTAL BASE BID has been accepted for items in the amount of \$ _____. **No over-runs will be allowed on this project without prior approval for the OWNER and ENGINEER.**

Contractor shall verify bid quantities with plan requirements prior to ordering/purchasing materials. Owner nor Engineer will be responsible for any costs or restocking fees for materials purchased and not used due to a discrepancy between bid quantities shown and actual project requirements. Bidder understands that the owner reserves the right to reject any or all bids and to waive any informalities in the bidding.

You are required by the Information for Bidders to execute the Agreement and furnish the required CONTRACTOR'S PERFORMANCE and PAYMENT BONDS and Certificates of Insurance within ten (10) calendar days from the date of this Notice.

If Contractor fails to execute said Agreement and to furnish said BONDS within ten (10) days from the date of this Notice, said OWNER will be entitled to consider all your rights arising out of the OWNER'S acceptance of your BID as abandoned and as a forfeiture of your BID BOND. The OWNER will be entitled to such other rights as may be granted by law.
--

You are required to return an acknowledged copy of the NOTICE OF AWARD to the OWNER.
Dated this ____ day of _____, 20__.

PIERCE COUNTY, GEORGIA
Owner

By: _____
Title: _____

Continuation of Bid Award

ACCEPTANCE OF NOTICE

Receipt of the above NOTICE OF AWARD is hereby acknowledged this the ____ day of _____, 20 ____.

Contractor

By: _____

Title: _____

NOTICE TO PROCEED
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

To: _____

Date: _____
Project: Ga Outdoor Stewardship Trust
Fund Project, Ga DNR and Land and
Water Conservation Fund Project, Grant
Number: 13-01090(P24AP01327)
Tiger Field Rehabilitation Improvement

Please consider this your official Notice to Proceed on the project named above. You are hereby authorized to proceed with construction as of _____, 20____. Contract time will begin to be counted on this day. All work on the project must be completed within **180 consecutive calendar days of the Notice to Proceed Date. All work for the ballfield and northern parking lot must be completed prior to September 1, 2026; to allow for the 2026 recreational football season and all its amenities to be in place and operational.** The date of completion of all work is therefore _____, 20____.

Construction is not permitted on the following holidays: Memorial Day, Labor Day, the week of July 4th, Thanksgiving- Starting at 12:00pm Wednesday prior until the following Monday, Christmas and New Year - Starting on Christmas Eve until January 2. If January 2nd falls during a weekend day, then work will resume the following Monday. Also refer to Specification Section 1252, "Weather Delays".

Please ensure that all submittals required by the Contract Documents have been submitted and reviewed by the Owner's Engineer prior to ordering any related materials or completing any related work. Work cannot begin until all applicable submittals have been reviewed, which means that contract time will be counted but no work will be allowed.

Contractor shall verify bid quantities with plan requirements prior to ordering/purchasing materials. Owner nor Engineer will be responsible for any costs or restocking fees for materials purchased and not used due to a discrepancy between bid quantities shown and actual project requirements.

PIERCE COUNTY, GEORGIA
OWNER

By: _____
Title: _____

Continuation of Notice of Proceed

ACCEPTANCE OF NOTICE

Receipt of the above NOTICE TO PROCEED is hereby acknowledged by this the ____ day of _____,
20__.

CONTRACTOR

By:_____

Title:_____

Employer Identification Number:_____

**CONTRACT AGREEMENT
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

This AGREEMENT made and entered into on the ____ day of _____, 20__, by and between **PIERCE COUNTY, GEORGIA**, party of the first part (hereinafter call the "OWNER") and _____, party of the second part (hereinafter called the "CONTRACTOR").

WITNESSETH:

That the CONTRACTOR, for the consideration hereinafter fully set out, hereby agrees with the OWNER as follows:

1. That the CONTRACTOR will furnish all equipment, tools, materials, skill and labor of every description, necessary to carry out and to complete in a good, firm, substantial and workmanlike manner the construction of all the work specified under:

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

In strict conformity with the Drawings and Specifications dated **January 2026**, and entitled **“Pierce County, Georgia, rehabilitation improvements for Tiger Field Recreation Park for the county’s awarded, Land and Water Conservation Fund Project, Grant Number: 13-01090 (P24AP01327). Project shall be funded from the Department of Natural Resources and /or other local funds specified).**and the Specifications hereinafter set forth, which Drawings and Specifications, together with the Foregoing Proposal made by the CONTRACTOR, Advertisement for Bids, Instruction to Bidders, General Conditions, Supplemental General Conditions, this Agreement, Performance and Payment Bonds, and all Addenda hereto annexed, shall form essential parts of this Agreement, as if fully contained herein. The WORK covered by this Agreement includes all work shown on the Drawings, specified, and listed in the attached Proposal.

2. That the CONTRACTOR shall commence the work to be performed under this Agreement on a date to be specified in a written order of the OWNER's ENGINEER and shall fully complete all work hereunder, except as otherwise provided in these documents for extension of the time limit, within **180 consecutive calendar days**. It is essential this project be completed within the allowable time for completion. The allowable time provides for more than adequate time to complete the required work under typical weather patterns. For this reason, The Contractor shall pay the Owner liquidated

damages in the amount of **\$3,500.00 per calendar day** for failure or delay in completing the work within the allowable time provided for **all work for the ballfield and northern parking lot that is required to be completed prior to September 1, 2026 which will allow for the 2026 recreational football season and all its amenities to be in place and operational. All remaining items** the Contractor shall pay the Owner liquidated damages in the amount of **\$2,000.00 per calendar day** for failure or delay in completing the work within the allowable time provided. The funds generated by the liquidated damages will be utilized by the Owner to reimburse the Engineer for additional cost incurred by the Engineer for the additional professional services required to complete the project beyond the contract completion date.

3. The CONTRACTOR shall perform and comply with all conditions, stipulations and requirements specified in the deeds, easements or other documents pertaining to all aspects of this Project.

4. The OWNER hereby agrees to pay to the CONTRACTOR for the faithful performance of this Agreement, subject to additions and deductions as provided in the Contract Documents, in lawful money of the United States, the sum of _____

Dollars (\$ _____).

5. The OWNER shall make partial payments to the CONTRACTOR on the basis of an estimate of WORK, duly certified and approved by Statewide Engineering, Inc. project manager, performed during the preceding calendar month by the CONTRACTOR, including materials delivered to the site, and until such WORK has been accepted by **Pierce County, Georgia**. No payment shall be made if the Contractor is not in compliance with all terms and provisions of this contract. Contractor shall provide such documents as are required by the attorney for the Owner prior to the payment of any money each month in order to assure the Owner that all laborers, material men, vendors, and subcontractors have been paid.

6. Upon submission by the CONTRACTOR of evidence satisfactory to the OWNER that all payrolls, material bills and other cost incurred by the CONTRACTOR in connection with the construction of the WORK have been paid in full, final payment on account of this Agreement shall be made within thirty (30) days after the completion by the CONTRACTOR of all work covered by this Agreement and the acceptance of such work by the OWNER.

7. It is further mutually agreed between the parties hereto that if, at any time after the execution of this Agreement and the surety bonds hereto attached for its faithful performance, for any reason, such bond ceases to be adequate to cover the performance of the work, the CONTRACTOR shall, at his expense within five (5) days after the receipt of notice from the OWNER to do so, furnish an additional bond or bonds in such form and amount, and with such surety or sureties as shall be satisfactory to the OWNER. In such event no further repayment to the CONTRACTOR shall be deemed to be due under this Agreement until such new or additional security for the faithful performance of the work shall be furnished in manner and form satisfactory to the OWNER.

8. The OWNER may, at any time as the need arises, issue change orders to increase or decrease the amount due under the contract documents.

9. Contractor shall verify bid quantities with plan requirements prior to ordering/purchasing materials. Owner nor Engineer will be responsible for any costs or restocking fees for materials purchased and not used due to a discrepancy between bid quantities shown and actual project requirements. The bidder understands that the owner reserves the right to reject any or all bids and to waive any informalities in the bidding.

10. All requirements of the Build America, Buy America (BABA) Act, 41 USC 8301 note, and all applicable rules and notices, as may be amended, shall be complied with if applicable to the infrastructure project. Pursuant to HUD’s Notice, “Public Interest Phased Implementation Waiver for FY 2022 and 2023 of Build America, Buy America Provisions as Applied to Recipients of HUD Federal Financial Assistance” (88 FR 17001), any funds obligated by HUD on or after the applicable listed effective dates, are subject to BABA requirements, unless excepted by a waiver.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement under their respective seals on the day and date first above written in six (6) counterparts, each of which shall without proof or accounting for the other counterparts, be deemed an original contract.

ATTEST (As to CONTRACTOR*)

(Contractor)

Signed and sealed in the presence of:

_____.L.S.

By:_____.L.S

Print Name / Title

Print Name / Title

_____.L.S.

Secretary

Print Name / Title

Print Name

_____.Date

(SEAL)

Continuation of Contract Agreement

ATTEST: (As to OWNER*)

**PIERCE COUNTY BOARD OF
COMMISSIONERS**

(Owner)

By: _____ L.S

By: _____ L.S.

Print Name / Title

Print Name / Title

Date

(SEAL)

***NOTE:** *If the CONTRACTOR is a corporation, the Agreement shall be signed by the President, or Vice-President, attested by the Secretary and the corporate seal affixed. If the CONTRACTOR is a partnership, the Agreement shall be signed in the partnership name by one of the partners, with indication that he is a general partner.*

PERFORMANCE BOND
P PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

STATE OF GEORGIA
PIERCE COUNTY

BOND NO. _____

KNOW ALL MEN BY THESE PRESENTS, that we, _____, as Principal, (hereinafter known as "Contractor"), and we, _____, as Surety, do hereby acknowledge ourselves indebted and firmly bound and held unto the **Pierce County, Georgia**, for use and benefit of those entitled thereto, in the sum of _____

_____ (\$ _____) dollars for the payment of which will and truly to be made, in lawful money of the United States, we do hereby bind ourselves, successors, assigns, heirs and personal representatives.

BUT THE CONDITION OF THE FOREGOING OBLIGATION OR BOND IS THIS:

WHEREAS, the owner has engaged the said Contractor for the sum of _____

_____ (\$ _____) dollars for construction of the
“**Pierce County, Georgia, rehabilitation improvements for Tiger Field Recreation Park for the county’s awarded, Land and Water Conservation Fund Project, Grant Number: 13-01090 (P24AP01327). Project shall be funded from the Department of Natural Resources and /or other local funds specified).**as more fully appears in a written Contract Agreement bearing the date of _____, 20____, a copy of which Contract Agreement is by reference hereby made a part hereof.

Now, THEREFORE, if said Contractor shall fully and faithfully perform all the undertakings and obligations under said Contract Agreement hereinbefore referred to and shall fully indemnify and save harmless the said Owner from all costs and damage whatsoever which it may suffer by reason of any failure on the part of said Contractor to do so. and shall fully reimburse and repay the said Owner any and all outlay and expense which it may incur in making good any such default, and shall correct all defects in products and workmanship appearing within one year of the completion of all Work, then this obligation shall be null and void, otherwise, it shall remain in full force and effect.

And for value received it is hereby stipulated and agreed that no change, extension of time, alteration or addition to the terms of the said Contract Agreement, or in the Work to be performed thereunder, or the Specifications accompanying the same in any wise affect the obligations under this Contract Agreement or Bond, and notice is hereby waived of any such damage, extension of time, alteration or addition to the terms of the Contract Agreement or to the Work or to the Contract Documents.

This bond is given pursuant to and in accordance with the provision of O.C.G.A. Section 36-10-1 et. seq. and 36-82-100 et. seq. and all the provisions of the law referring to this character of Bond as set forth in said Sections or as may be hereinafter enacted, and these are hereby made a part hereof to the same extent as if set out herein in full.

WITNESS WHEREOF, the said Contractor has hereunder affixed its signature and seal, and said Surety has hereunto caused to be affixed its corporate signature and seal, by its duly authorized officers on this day of _____, 20____, executed in six counterparts.

CONTRACTOR-PRINCIPAL: _____

By: _____

Name: _____

Title: _____

ATTEST: _____

Name: _____

(Please Print)

(SEAL)

Title: _____

Note: Attestation for a corporation must be by the corporate secretary; for a partnership by another partner; for an individual by a notary.

SURETY: _____

By: _____

Name: _____

WITNESS: _____

Name: _____

(Please Print)

(SEAL)

Title: _____

Note: Surety companies executing Bonds must appear on the Treasury Department's most current list (Circular 570 as amended) and be authorized to transact business in the state where the Project is located.

PAYMENT BOND
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

STATE OF GEORGIA
PIERCE COUNTY

BOND NO. _____

KNOW ALL MEN BY THESE PRESENTS, that we, _____, as Principal, (hereinafter known as "Contractor"), and we, _____, as Surety, are held and firmly bound unto the **Pierce County, Georgia** (hereinafter called the "Owner"), in the penal sum of

_____ (\$ _____) lawful money of the United States, for the payment of which sum will and truly to be made, we bind ourselves, our heirs, personal representatives, successors and assigns, jointly and severally, firmly by these presents.

WHEREAS, said Contractor has entered into a certain Contract Agreement with said Owner, dated _____, 20____, for **"Pierce County, Georgia, rehabilitation improvements for Tiger Field Recreation Park for the county's awarded, Land and Water Conservation Fund Project, Grant Number: 13-01090 (P24AP01327). Project shall be funded from the Department of Natural Resources and /or other local funds specified).** (hereinafter called the "Contract"), which Contract Agreement and the Contract Documents for said Work shall be deemed a part hereof as fully as if set out herein.

NOW, THEREFORE, the condition of this obligation is such, that if said Contractor and all subcontractors to whom any portion of the Work provided for in said Contract Agreement is sublet and all assignees of said Contractor and of such subcontractors shall promptly make payments to all persons supplying them with labor, products, services, or supplies for or in the prosecution of the Work provided for in such Contract Agreement, or in any amendment or extension of or addition to said Contract Agreement, and for the payment of reasonable attorney's fees, incurred by the claimant in suits on this Bond, then the above obligation shall be void; otherwise, it shall remain in full force and effect.

HOWEVER, this Bond is subject to the following conditions and limitations:

- (a) Any person, firm or corporation that has furnished labor, products, or supplies for or in the prosecution of the Work provided for in said Contract Agreement shall have a direct right of action against the Contractor and Surety on this Bond, which right of action shall be asserted in a proceeding, instituted in the county in which the Work provided for in said Contract Agreement is to be performed or in any county in which Contractor or Surety does business. Such right of action shall be asserted in proceedings instituted in the name of the claimant or claimants for its use and benefit against said Contractor and Surety or either party (but not later than one year after the final settlement of said Contract Agreement) in which action such claim or claims shall be adjudicated and judgement rendered thereon.
- (b) The Principal and Surety hereby designate and appoint the _____, as the agent of each party to receive and accept service of process or other pleading issued or filed in any proceeding instituted on this Bond and hereby consent that such service shall be the same as personal

service on the Contractor and/or Surety.

(c) In no event shall the Surety be liable for a greater sum than the penalty of this Bond, or subject to any suit, action or proceeding thereon that is instituted later than one year after the final settlement of said Contract Agreement.

(d) This Bond is given pursuant to and in accordance with provisions of O.C.G.A. Section 13-10-1 et. seq. and 36-82-100 et. seq. hereinafter, and all the provisions of law referring to this character of Bond as set forth in said Sections or as may be hereinafter enacted, and these are hereby made a part hereof to the same extent as if set out herein in full.

IN WITNESS WHEREOF, the said Contractor has hereunder affixed its signature and seal, and said Surety has hereunto cause to be affixed its corporate signature and seal, by its duly authorized officers on this ____ day of _____, 20____, executed in six counterparts.

CONTRACTOR-PRINCIPAL: _____

By: _____

Name: _____
(Please Print)

Title: _____

ATTEST: _____

Name: _____
(Please Print)

Title: _____

(SEAL)

Note: Attestation for a corporation must be by the corporate secretary; for a partnership by another partner; for an individual by a notary.

SURETY: _____

By: _____

Name: _____

WITNESS: _____

Name: _____
(Please Print)

Title: _____

(SEAL)

Note: Surety companies executing Bonds must appear on the Treasury Department's most current list (Circular 570 as amended) and be authorized to transact business in the state where the Project is located.

CERTIFICATE OF OWNER’S ATTORNEY
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

I, the undersigned, _____, the duly authorized and acting legal representative of **Pierce County, Georgia**, do hereby certify as follows:

I have examined the attached contract and performance and payment bonds and the manner of execution thereof, and I am of the opinion that each of the aforesaid agreements has been duly executed by the proper parties thereto acting through their duly authorized representatives; that said representatives have full power and authority to execute said agreements on behalf of the respective parties named thereon; and that the foregoing agreements constitute valid and legally binding obligations upon the parties executing the same in accordance with terms, conditions and provisions thereof.

By: _____
Date: _____

This document has important legal consequences; consultation with an attorney is encouraged with respect to its use or modification. This document should be adapted to the particular circumstances of the contemplated Project and the Controlling Law.

STANDARD GENERAL CONDITIONS OF THE CONSTRUCTION CONTRACT FUNDING AGENCY EDITION

Prepared by

ENGINEERS JOINT CONTRACT DOCUMENTS COMMITTEE

and

Issued and Published Jointly By



PROFESSIONAL ENGINEERS IN PRIVATE PRACTICE
a practice division of the
NATIONAL SOCIETY OF PROFESSIONAL ENGINEERS

AMERICAN COUNCIL OF ENGINEERING COMPANIES

AMERICAN SOCIETY OF CIVIL ENGINEERS

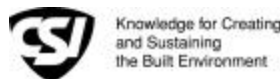
This document has been approved and endorsed by

The Associated General Contractors of America



and the

Construction Specification Institute



These General Conditions have been prepared for use with the Suggested Forms of Agreement Between Owner and Contractor Funding Agency Edition No. C-521 (2002 Edition). Their provisions are interrelated and a change in one may necessitate a change in the other. Comments concerning their usage are contained in the EJCDC Construction Documents, General and Instructions (No. C-001, 2002 Edition). For guidance in the preparation of Supplementary Conditions, see Guide to the Preparation of Supplementary Conditions (No. C-800, 2002 Edition).

Copyright © 2002 National Society of Professional Engineers
1420 King Street, Alexandria, VA 22314-2794
(703) 684-2882

American Council of Engineering Companies
1015 15th Street N.W., Washington, DC 20005
(202) 347-7474

American Society of Civil Engineers
1801 Alexander Bell Drive, Reston, VA 20191-4400
(800) 548-2723

TABLE OF CONTENTS

	Page
Article 1 – Definitions and Terminology	7
1.01 Defined Terms	7
1.02 Terminology	10
Article 2 – Preliminary Matters	11
2.01 Delivery of Bonds and Evidence of Insurance	11
2.02 Copies of Documents	11
2.03 Commencement of Contract Times; Notice to Proceed	12
2.04 Starting the Work	12
2.05 Before Starting Construction	12
2.06 Preconstruction Conference	12
2.07 Initial Acceptance of Schedules	12
Article 3 – Contract Documents: Intent, Amending, Reuse	13
3.01 Intent	13
3.02 Reference Standards	13
3.03 Reporting and Resolving Discrepancies	13
3.04 Amending and Supplementing Contract Documents	14
3.05 Reuse of Documents	14
3.06 Electronic Data	14
Article 4 – Availability of Lands; Subsurface and Physical Conditions; Hazardous Environmental Conditions; Reference Points	15
4.01 Availability of Lands	15
4.02 Subsurface and Physical Conditions	15
4.03 Differing Subsurface or Physical Conditions	16
4.04 Underground Facilities	17
4.05 Reference Points	17
4.06 Hazardous Environmental Condition at Site	18
Article 5 – Bonds and Insurance	19
5.01 Performance, Payment, and Other Bonds	19
5.02 Licensed Sureties and Insurers	19
5.03 Certificates of Insurance	20
5.04 Contractor’s Liability Insurance	20
5.05 Owner’s Liability Insurance	21
5.06 Property Insurance	21
5.07 Waiver of Rights	22
5.08 Receipt and Application of Insurance Proceeds	23
5.09 Acceptance of Bonds and Insurance; Option to Replace	23
5.10 Partial Utilization, Acknowledgment of Property Insurer	23
Article 6 – Contractor’s Responsibilities	23
6.01 Supervision and Superintendence	23
6.02 Labor; Working Hours	24
6.03 Services, Materials, and Equipment	24
6.04 Progress Schedule	24
6.05 Substitutes and “Or-Equals”	24
6.06 Concerning Subcontractors, Suppliers, and Others	26
6.07 Patent Fees and Royalties	28
6.08 Permits	28

6.09	Laws and Regulations	28
6.10	Taxes	28
6.11	Use of Site and Other Areas	29
6.12	Record Documents	29
6.13	Safety and Protection	29
6.14	Safety Representative.....	30
6.15	Hazard Communication Programs	30
6.16	Emergencies	30
6.17	Shop Drawings and Samples	30
6.18	Continuing the Work	32
6.19	Contractor's General Warranty and Guarantee	32
6.20	Indemnification.....	33
6.21	Delegation of Professional Design Services	33
Article 7 – Other Work at the Site		34
7.01	Related Work at Site	34
7.02	Coordination	34
7.03	Legal Relationships.....	35
Article 8 – Owner's Responsibilities		35
8.01	Communications to Contractor.....	35
8.02	Replacement of Engineer.....	35
8.03	Furnish Data.....	35
8.04	Pay When Due.....	35
8.05	Lands and Easements; Reports and Tests	35
8.06	Insurance	35
8.07	Change Orders	35
8.08	Inspections, Tests, and Approvals	35
8.09	Limitations on Owner's Responsibilities	36
8.10	Undisclosed Hazardous Environmental Condition	36
8.11	Evidence of Financial Arrangements	36
Article 9 – Engineer's Status During Construction		36
9.01	Owner's Representative	36
9.02	Visits to Site	36
9.03	Project Representative.....	36
9.04	Authorized Variations in Work	37
9.05	Rejecting Defective Work.....	37
9.06	Shop Drawings, Change Orders and Payments.....	37
9.07	Determinations for Unit Price Work	37
9.08	Decisions on Requirements of Contract Documents and Acceptability of Work	37
9.09	Limitations on Engineer's Authority and Responsibilities	38
Article 10 – Changes in the Work; Claims		38
10.01	Authorized Changes in the Work.....	38
10.02	Unauthorized Changes in the Work.....	38
10.03	Execution of Change Orders	39
10.04	Notification to Surety	39
10.05	Claims	39
Article 11 – Cost of the Work; Allowances; Unit Price Work		40
11.01	Cost of the Work.....	40
11.02	Allowances.....	42
11.03	Unit Price Work	42

Article 12 – Change of Contract Price; Change of Contract Times	43
12.01 Change of Contract Price	43
12.02 Change of Contract Times	44
12.03 Delays	44
Article 13 – Tests and Inspections; Correction, Removal or Acceptance of Defective Work	45
13.01 Notice of Defects.....	45
13.02 Access to Work.....	45
13.03 Tests and Inspections	45
13.04 Uncovering Work.....	46
13.05 Owner May Stop the Work.....	46
13.06 Correction or Removal of Defective Work	46
13.07 Correction Period.....	46
13.08 Acceptance of Defective Work.....	47
13.09 Owner May Correct Defective Work.....	47
Article 14 – Payments to Contractor and Completion.....	48
14.01 Schedule of Values.....	48
14.02 Progress Payments.....	48
14.03 Contractor’s Warranty of Title.....	50
14.04 Substantial Completion	50
14.05 Partial Utilization.....	51
14.06 Final Inspection	51
14.07 Final Payment.....	52
14.08 Final Completion Delayed.....	53
14.09 Waiver of Claims	53
Article 15 – Suspension of Work and Termination	53
15.01 Owner May Suspend Work.....	53
15.02 Owner May Terminate for Cause.....	53
15.03 Owner May Terminate For Convenience.....	54
15.04 Contractor May Stop Work or Terminate.....	55
Article 16 – Dispute Resolution.....	55
16.01 Methods and Procedures	55
Article 17 – Miscellaneous.....	55
17.01 Giving Notice	55
17.02 Computation of Times	56
17.03 Cumulative Remedies.....	56
17.04 Survival of Obligations.....	56
17.05 Controlling Law	56
17.06 Headings.....	56
Article 18 – Federal Requirements.....	56
18.01 Agency Not a Party	56
18.02 Contract Approval.....	56
18.03 Conflict of Interest.....	56
18.04 Gratuities.....	57
18.05 Audit and Access to Records	57
18.06 Small, Minority and Women’s Businesses	57
18.07 Anti-Kickback.....	57
18.08 Clean Air and Pollution Control Acts	58
18.09 State Energy Policy.....	58
18.10 Equal Opportunity Requirements	58

18.11	Restrictions on Lobbying	58
18.12	Environmental Requirements.....	59

GENERAL CONDITIONS

ARTICLE 1 – DEFINITIONS AND TERMINOLOGY

1.01 *Defined Terms*

- A. Wherever used in the Bidding Requirements or Contract Documents and printed with initial capital letters, the terms listed below will have the meanings indicated which are applicable to both the singular and plural thereof. In addition to terms specifically defined, terms with initial capital letters in the Contract Documents include references to identified articles and paragraphs, and the titles of other documents or forms.
1. *Addenda* – Written or graphic instruments issued prior to the opening of Bids which clarify, correct, or change the Bidding Requirements or the proposed Contract Documents.
 2. *Agency* – The Federal or state agency named as such in the Agreement.
 3. *Agreement* – The written instrument which is evidence of the agreement between Owner and Contractor covering the Work.
 4. *Application for Payment* – The form acceptable to Engineer which is to be used by Contractor during the course of the Work in requesting progress or final payments and which is to be accompanied by such supporting documentation as is required by the Contract Documents.
 5. *Asbestos* – Any material that contains more than one percent asbestos and is friable or is releasing asbestos fibers into the air above current action levels established by the United States Occupational Safety and Health Administration.
 6. *Bid* – The offer or proposal of a Bidder submitted on the prescribed form setting forth the prices for the Work to be performed.
 7. *Bidder* – The individual or entity who submits a Bid directly to Owner.
 8. *Bidding Documents* – The Bidding Requirements and the proposed Contract Documents (including all Addenda).
 9. *Bidding Requirements* – The Advertisement or Invitation to Bid, Instructions to Bidders, bid security of acceptable form, if any, and the Bid Form with any supplements.
 10. *Change Order* – A document recommended by Engineer which is signed by Contractor and Owner and Agency and authorizes an addition, deletion, or revision in the Work or an adjustment in the Contract Price or the Contract Times, issued on or after the Effective Date of the Agreement.
 11. *Claim* – A demand or assertion by Owner or Contractor seeking an adjustment of Contract Price or Contract Times, or both, or other relief with respect to the terms of the Contract. A demand for money or services by a third party is not a Claim.
 12. *Contract* – The entire and integrated written agreement between the Owner and Contractor concerning the Work. The Contract supersedes prior negotiations, representations, or agreements, whether written or oral.
 13. *Contract Documents* – Those items so designated in the Agreement. Only printed or hard copies of the items listed in the Agreement are Contract Documents. Approved Shop Drawings, other Contractor's

submittals, and the reports and drawings of subsurface and physical conditions are not Contract Documents.

14. *Contract Price* – The moneys payable by Owner to Contractor for completion of the Work in accordance with the Contract Documents as stated in the Agreement (subject to the provisions of Paragraph 11.03 in the case of Unit Price Work).
15. *Contract Times* – The number of days or the dates stated in the Agreement to: (i) achieve Milestones, if any, (ii) achieve Substantial Completion; and (iii) complete the Work so that it is ready for final payment as evidenced by Engineer's written recommendation of final payment.
16. *Contractor* – The individual or entity with whom Owner has entered into the Agreement.
17. *Cost of the Work* – See Paragraph 11.01.A for definition.
18. *Drawings* – That part of the Contract Documents prepared or approved by Engineer which graphically shows the scope, extent, and character of the Work to be performed by Contractor. Shop Drawings and other Contractor submittals are not Drawings as so defined.
19. *Effective Date of the Agreement* – The date indicated in the Agreement on which it becomes effective, but if no such date is indicated, it means the date on which the Agreement is signed and delivered by the last of the two parties to sign and deliver.
20. *Engineer* – The individual or entity named as such in the Agreement.
21. *Field Order* – A written order issued by Engineer which requires minor changes in the Work but which does not involve a change in the Contract Price or the Contract Times.
22. *General Requirements* – Sections of Division 1 of the Specifications. The General Requirements pertain to all sections of the Specifications.
23. *Hazardous Environmental Condition* – The presence at the Site of Asbestos, PCBs, Petroleum, Hazardous Waste, or Radioactive Material in such quantities or circumstances that may present a substantial danger to persons or property exposed thereto in connection with the Work.
24. *Hazardous Waste* – The term Hazardous Waste shall have the meaning provided in Section 1004 of the Solid Waste Disposal Act (42 USC Section 6903) as amended from time to time.
25. *Laws and Regulations; Laws or Regulations* – Any and all applicable laws, rules, regulations, ordinances, codes, and orders of any and all governmental bodies, agencies, authorities, and courts having jurisdiction.
26. *Liens* – Charges, security interests, or encumbrances upon Project funds, real property, or personal property.
27. *Milestone* – A principal event specified in the Contract Documents relating to an intermediate completion date or time prior to Substantial Completion of all the Work.
28. *Notice of Award* – The written notice by Owner to the Successful Bidder stating that upon timely compliance by the Successful Bidder with the conditions precedent listed therein, Owner will sign and deliver the Agreement.
29. *Notice to Proceed* – A written notice given by Owner to Contractor fixing the date on which the Contract Times will commence to run and on which Contractor shall start to perform the Work under the Contract Documents.

- 30. *Owner* – The individual or entity with whom Contractor has entered into the Agreement and for whom the Work is to be performed.
- 31. *PCBs* – Polychlorinated biphenyls.
- 32. *Petroleum* – Petroleum, including crude oil or any fraction thereof which is liquid at standard conditions of temperature and pressure (60 degrees Fahrenheit and 14.7 pounds per square inch absolute), such as oil, petroleum, fuel oil, oil sludge, oil refuse, gasoline, kerosene, and oil mixed with other non-Hazardous Waste and crude oils.
- 33. *Progress Schedule* – A schedule, prepared and maintained by Contractor, describing the sequence and duration of the activities comprising the Contractor's plan to accomplish the Work within the Contract Times.
- 34. *Project* – The total construction of which the Work to be performed under the Contract Documents may be the whole, or a part.
- 35. *Project Manual* – The bound documentary information prepared for bidding and constructing the Work. A listing of the contents of the Project Manual, which may be bound in one or more volumes, is contained in the table(s) of contents.
- 36. *Radioactive Material* – Source, special nuclear, or byproduct material as defined by the Atomic Energy Act of 1954 (42 USC Section 2011 et seq.) as amended from time to time.
- 37. *Related Entity* – An officer, director, partner, employee, agent, consultant, or subcontractor.
- 38. *Resident Project Representative* – The authorized representative of Engineer who may be assigned to the Site or any part thereof.
- 39. *Samples* – Physical examples of materials, equipment, or workmanship that are representative of some portion of the Work and which establish the standards by which such portion of the Work will be judged.
- 40. *Schedule of Submittals* – A schedule, prepared and maintained by Contractor, of required submittals and the time requirements to support scheduled performance of related construction activities.
- 41. *Schedule of Values* – A schedule, prepared and maintained by Contractor, allocating portions of the Contract Price to various portions of the Work and used as the basis for reviewing Contractor's Applications for Payment.
- 42. *Shop Drawings* – All drawings, diagrams, illustrations, schedules, and other data or information which are specifically prepared or assembled by or for Contractor and submitted by Contractor to illustrate some portion of the Work.
- 43. *Site* – Lands or areas indicated in the Contract Documents as being furnished by Owner upon which the Work is to be performed, including rights-of-way and easements for access thereto, and such other lands furnished by Owner which are designated for the use of Contractor.
- 44. *Specifications* – That part of the Contract Documents consisting of written requirements for materials, equipment, systems, standards and workmanship as applied to the Work, and certain administrative requirements and procedural matters applicable thereto.
- 45. *Subcontractor* – An individual or entity having a direct contract with Contractor or with any other Subcontractor for the performance of a part of the Work at the Site.

- 46. *Substantial Completion* – The time at which the Work (or a specified part thereof) has progressed to the point where, in the opinion of Engineer, the Work (or a specified part thereof) is sufficiently complete, in accordance with the Contract Documents, so that the Work (or a specified part thereof) can be utilized for the purposes for which it is intended. The terms “substantially complete” and “substantially completed” as applied to all or part of the Work refer to Substantial Completion thereof.
- 47. *Successful Bidder* – The Bidder submitting a responsive Bid to whom Owner makes an award.
- 48. *Supplementary Conditions* – That part of the Contract Documents which amends or supplements these General Conditions.
- 49. *Supplier* – A manufacturer, fabricator, supplier, distributor, materialman, or vendor having a direct contract with Contractor or with any Subcontractor to furnish materials or equipment to be incorporated in the Work by Contractor or any Subcontractor.
- 50. *Underground Facilities* – All underground pipelines, conduits, ducts, cables, wires, manholes, vaults, tanks, tunnels, or other such facilities or attachments, and any encasements containing such facilities, including those that convey electricity, gases, steam, liquid petroleum products, telephone or other communications, cable television, water, wastewater, storm water, other liquids or chemicals, or traffic or other control systems.
- 51. *Unit Price Work* – Work to be paid for on the basis of unit prices.
- 52. *Work* – The entire construction or the various separately identifiable parts thereof required to be provided under the Contract Documents. Work includes and is the result of performing or providing all labor, services, and documentation necessary to produce such construction, and furnishing, installing, and incorporating all materials and equipment into such construction, all as required by the Contract Documents.
- 53. *Work Change Directive* – A written statement to Contractor issued on or after the Effective Date of the Agreement and signed by Owner and Agency upon recommendation of the Engineer ordering an addition, deletion, or revision in the Work, or responding to differing or unforeseen subsurface or physical conditions under which the Work is to be performed or to emergencies. A Work Change Directive will not change the Contract Price or the Contract Times but is evidence that the parties expect that the change ordered or documented by a Work Change Directive will be incorporated in a subsequently issued Change Order following negotiations by the parties as to its effect, if any, on the Contract Price or Contract Times.

1.02 Terminology

- A. The following words or terms are not defined but, when used in the Bidding Requirements or Contract Documents, have the following meaning.
- B. *Intent of Certain Terms or Adjectives*
 - 1. The Contract Documents include the terms “as allowed,” “as approved,” “as ordered,” “as directed” or terms of like effect or import to authorize an exercise of professional judgment by Engineer. In addition, the adjectives “reasonable,” “suitable,” “acceptable,” “proper,” “satisfactory,” or adjectives of like effect or import are used to describe an action or determination of Engineer as to the Work. It is intended that such exercise of professional judgment, action or determination will be solely to evaluate, in general, the Work for compliance with the requirements of and information in the Contract Documents and conformance with the design concept of the completed Project as a functioning whole as shown or indicated in the Contract Documents (unless there is a specific statement indicating otherwise). The use of any such term or adjective is not intended to and shall not be effective to assign to Engineer any duty or authority to supervise or direct the performance of the Work or any duty or authority to undertake responsibility contrary to the provisions of Paragraph 9.09 or any other provision of the Contract Documents.

C. *Day*

1. The word “day” means a calendar day of 24 hours measured from midnight to the next midnight.

D. *Defective*

1. The word “defective,” when modifying the word “Work,” refers to Work that is unsatisfactory, faulty, or deficient in that it:
 - a. does not conform to the Contract Documents, or
 - b. does not meet the requirements of any applicable inspection, reference standard, test, or approval referred to in the Contract Documents, or
 - c. has been damaged prior to Engineer’s recommendation of final payment (unless responsibility for the protection thereof has been assumed by Owner at Substantial Completion in accordance with Paragraph 14.04 or 14.05).

E. *Furnish, Install, Perform, Provide*

1. The word “furnish,” when used in connection with services, materials, or equipment, shall mean to supply and deliver said services, materials, or equipment to the Site (or some other specified location) ready for use or installation and in usable or operable condition.
2. The word “install,” when used in connection with services, materials, or equipment, shall mean to put into use or place in final position said services, materials, or equipment complete and ready for intended use.
3. The words “perform” or “provide,” when used in connection with services, materials, or equipment, shall mean to furnish and install said services, materials, or equipment complete and ready for intended use.
4. When “furnish,” “install,” “perform,” or “provide” is not used in connection with services, materials, or equipment in a context clearly requiring an obligation of Contractor, “provide” is implied.

- F. Unless stated otherwise in the Contract Documents, words or phrases which have a well-known technical or construction industry or trade meaning are used in the Contract Documents in accordance with such recognized meaning.

ARTICLE 2 – PRELIMINARY MATTERS

2.01 *Delivery of Bonds and Evidence of Insurance*

- A. When Contractor delivers the executed counterparts of the Agreement to Owner, Contractor shall also deliver to Owner such bonds as Contractor may be required to furnish.
- B. *Evidence of Insurance:* Before any Work at the Site is started, Contractor and Owner shall each deliver to the other, with copies to each additional insured identified in the Supplementary Conditions, certificates of insurance (and other evidence of insurance which either of them or any additional insured may reasonably request) which Contractor and Owner respectively are required to purchase and maintain in accordance with Article 5.

2.02 *Copies of Documents*

- A. Owner shall furnish to Contractor up to ten printed or hard copies of the Drawings and Project Manual. Additional copies will be furnished upon request at the cost of reproduction.

2.03 *Commencement of Contract Times; Notice to Proceed*

- A. The Contract Times will commence to run on the thirtieth day after the Effective Date of the Agreement or, if a Notice to Proceed is given, on the day indicated in the Notice to Proceed. A Notice to Proceed may be given at any time within 30 days after the Effective Date of the Agreement.

2.04 *Starting the Work*

- A. Contractor shall start to perform the Work on the date when the Contract Times commence to run. No Work shall be done at the Site prior to the date on which the Contract Times commence to run.

2.05 *Before Starting Construction*

- A. *Preliminary Schedules:* Within 10 days after the Effective Date of the Agreement (unless otherwise specified in the General Requirements), Contractor shall submit to Engineer for timely review:
 - 1. a preliminary Progress Schedule;
 - 2. a preliminary Schedule of Submittals; and
 - 3. a preliminary Schedule of Values for all of the Work which includes quantities and prices of items which when added together equal the Contract Price and subdivides the Work into component parts in sufficient detail to serve as the basis for progress payments during performance of the Work. Such prices will include an appropriate amount of overhead and profit applicable to each item of Work.

2.06 *Preconstruction Conference*

- A. Before any Work at the Site is started, a conference attended by Owner, Contractor, Engineer, Agency, and others as appropriate will be held to establish a working understanding among the parties as to the Work and to discuss the schedules referred to in Paragraph 2.05.A, procedures for handling Shop Drawings and other submittals, processing Applications for Payment, and maintaining required records.

2.07 *Initial Acceptance of Schedules*

- A. At least 10 days before submission of the first Application for Payment a conference attended by Contractor, Engineer, and others as appropriate will be held to review for acceptability to Engineer as provided below the schedules submitted in accordance with Paragraph 2.05.A. Contractor shall have an additional 10 days to make corrections and adjustments and to complete and resubmit the schedules. No progress payment shall be made to Contractor until acceptable schedules are submitted to Engineer.
 - 1. The Progress Schedule will be acceptable to Engineer if it provides an orderly progression of the Work to completion within the Contract Times. Such acceptance will not impose on Engineer responsibility for the Progress Schedule, for sequencing, scheduling, or progress of the Work nor interfere with or relieve Contractor from Contractor's full responsibility therefor.
 - 2. Contractor's Schedule of Submittals will be acceptable to Engineer if it provides a workable arrangement for reviewing and processing the required submittals.
 - 3. Contractor's Schedule of Values will be acceptable to Engineer as to form and substance if it provides a reasonable allocation of the Contract Price to component parts of the Work.

ARTICLE 3 – CONTRACT DOCUMENTS: INTENT, AMENDING, REUSE

3.01 *Intent*

- A. The Contract Documents are complementary; what is required by one is as binding as if required by all.
- B. It is the intent of the Contract Documents to describe a functionally complete Project (or part thereof) to be constructed in accordance with the Contract Documents. Any labor, documentation, services, materials, or equipment that may reasonably be inferred from the Contract Documents or from prevailing custom or trade usage as being required to produce the intended result will be provided whether or not specifically called for at no additional cost to Owner.
- C. Clarifications and interpretations of the Contract Documents shall be issued by Engineer as provided in Article 9.

3.02 *Reference Standards*

- A. *Standards, Specifications, Codes, Laws, and Regulations*
 - 1. Reference to standards, specifications, manuals, or codes of any technical society, organization, or association, or to Laws or Regulations, whether such reference be specific or by implication, shall mean the standard, specification, manual, code, or Laws or Regulations in effect at the time of opening of Bids (or on the Effective Date of the Agreement if there were no Bids), except as may be otherwise specifically stated in the Contract Documents.
 - 2. No provision of any such standard, specification, manual or code, or any instruction of a Supplier shall be effective to change the duties or responsibilities of Owner, Contractor, or Engineer, or any of their subcontractors, consultants, agents, or employees from those set forth in the Contract Documents. No such provision or instruction shall be effective to assign to Owner, or Engineer, or any of their Related Entities, any duty or authority to supervise or direct the performance of the Work or any duty or authority to undertake responsibility inconsistent with the provisions of the Contract Documents.

3.03 *Reporting and Resolving Discrepancies*

- A. *Reporting Discrepancies*
 - 1. *Contractor's Review of Contract Documents Before Starting Work:* Before undertaking each part of the Work, Contractor shall carefully study and compare the Contract Documents and check and verify pertinent figures therein and all applicable field measurements. Contractor shall promptly report in writing to Engineer any conflict, error, ambiguity, or discrepancy which Contractor may discover and shall obtain a written interpretation or clarification from Engineer before proceeding with any Work affected thereby.
 - 2. *Contractor's Review of Contract Documents During Performance of Work:* If, during the performance of the Work, Contractor discovers any conflict, error, ambiguity, or discrepancy within the Contract Documents or between the Contract Documents and any provision of any Law or Regulation applicable to the performance of the Work or of any standard, specification, manual or code, or of any instruction of any Supplier, Contractor shall promptly report it to Engineer in writing. Contractor shall not proceed with the Work affected thereby (except in an emergency as required by Paragraph 6.16.A) until an amendment or supplement to the Contract Documents has been issued by one of the methods indicated in Paragraph 3.04.
 - 3. Contractor shall not be liable to Owner or Engineer for failure to report any conflict, error, ambiguity, or discrepancy in the Contract Documents unless Contractor knew or reasonably should have known thereof.
- B. *Resolving Discrepancies*

1. Except as may be otherwise specifically stated in the Contract Documents, the provisions of the Contract Documents shall take precedence in resolving any conflict, error, ambiguity, or discrepancy between the provisions of the Contract Documents and:
 - a. the provisions of any standard, specification, manual, code, or instruction (whether or not specifically incorporated by reference in the Contract Documents); or
 - b. the provisions of any Laws or Regulations applicable to the performance of the Work (unless such an interpretation of the provisions of the Contract Documents would result in violation of such Law or Regulation).

3.04 *Amending and Supplementing Contract Documents*

- A. The Contract Documents may be amended to provide for additions, deletions, and revisions in the Work or to modify the terms and conditions thereof by either a Change Order or a Work Change Directive.
- B. The requirements of the Contract Documents may be supplemented, and minor variations and deviations in the Work may be authorized, by one or more of the following ways:
 1. A Field Order;
 2. Engineer's approval of a Shop Drawing or Sample; (Subject to the provisions of Paragraph 6.17.D.3) or
 3. Engineer's written interpretation or clarification.

3.05 *Reuse of Documents*

- A. Contractor and any Subcontractor or Supplier shall not:
 1. have or acquire any title to or ownership rights in any of the Drawings, Specifications, or other documents (or copies of any thereof) prepared by or bearing the seal of Engineer or Engineer's consultants, including electronic media editions; or
 2. reuse any of such Drawings, Specifications, other documents, or copies thereof on extensions of the Project or any other project without written consent of Owner and Engineer and specific written verification or adaption by Engineer.
- B. The prohibition of this Paragraph 3.05 will survive final payment, or termination of the Contract. Nothing herein shall preclude Contractor from retaining copies of the Contract Documents for record purposes.

3.06 *Electronic Data*

- A. Copies of data furnished by Owner or Engineer to Contractor or Contractor to Owner or Engineer that may be relied upon are limited to the printed copies (also known as hard copies). Files in electronic media format of text, data, graphics, or other types are furnished only for the convenience of the receiving party. Any conclusion or information obtained or derived from such electronic files will be at the user's sole risk. If there is a discrepancy between the electronic files and the hard copies, the hard copies govern.
- B. Because data stored in electronic media format can deteriorate or be modified inadvertently or otherwise without authorization of the data's creator, the party receiving electronic files agrees that it will perform acceptance tests or procedures within 60 days, after which the receiving party shall be deemed to have accepted the data thus transferred. Any errors detected within the 60-day acceptance period will be corrected by the transferring party.

- C. When transferring documents in electronic media format, the transferring party makes no representations as to long term compatibility, usability, or readability of documents resulting from the use of software application packages, operating systems, or computer hardware differing from those used by the data's creator.

ARTICLE 4 – AVAILABILITY OF LANDS; SUBSURFACE AND PHYSICAL CONDITIONS; HAZARDOUS ENVIRONMENTAL CONDITIONS; REFERENCE POINTS

4.01 *Availability of Lands*

- A. Owner shall furnish the Site. Owner shall notify Contractor of any encumbrances or restrictions not of general application but specifically related to use of the Site with which Contractor must comply in performing the Work. Owner will obtain in a timely manner and pay for easements for permanent structures or permanent changes in existing facilities. If Contractor and Owner are unable to agree on entitlement to or on the amount or extent, if any, of any adjustment in the Contract Price or Contract Times, or both, as a result of any delay in Owner's furnishing the Site or a part thereof, Contractor may make a Claim therefor as provided in Paragraph 10.05.
- B. Upon reasonable written request, Owner shall furnish Contractor with a current statement of record legal title and legal description of the lands upon which the Work is to be performed and Owner's interest therein as necessary for giving notice of or filing a mechanic's or construction lien against such lands in accordance with applicable Laws and Regulations.
- C. Contractor shall provide for all additional lands and access thereto that may be required for temporary construction facilities or storage of materials and equipment.

4.02 *Subsurface and Physical Conditions*

- A. *Reports and Drawings:* The Supplementary Conditions identify:
 - 1. those reports of explorations and tests of subsurface conditions at or contiguous to the Site that Engineer has used in preparing the Contract Documents; and
 - 2. those drawings of physical conditions in or relating to existing surface or subsurface structures at or contiguous to the Site (except Underground Facilities) that Engineer has used in preparing the Contract Documents.
- B. *Limited Reliance by Contractor on Technical Data Authorized:* Contractor may rely upon the general accuracy of the "technical data" contained in such reports and drawings, but such reports and drawings are not Contract Documents. Such "technical data" is identified in the Supplementary Conditions. Except for such reliance on such "technical data," Contractor may not rely upon or make any claim against Owner or Engineer, or any of their Related Entities with respect to:
 - 1. the completeness of such reports and drawings for Contractor's purposes, including, but not limited to, any aspects of the means, methods, techniques, sequences, and procedures of construction to be employed by Contractor, and safety precautions and programs incident thereto; or
 - 2. other data, interpretations, opinions, and information contained in such reports or shown or indicated in such drawings; or
 - 3. any Contractor interpretation of or conclusion drawn from any "technical data" or any such other data, interpretations, opinions, or information.

4.03 *Differing Subsurface or Physical Conditions*

- A. *Notice:* If Contractor believes that any subsurface or physical condition at or contiguous to the Site that is uncovered or revealed either:
1. is of such a nature as to establish that any “technical data” on which Contractor is entitled to rely as provided in Paragraph 4.02 is materially inaccurate; or
 2. is of such a nature as to require a change in the Contract Documents; or
 3. differs materially from that shown or indicated in the Contract Documents; or
 4. is of an unusual nature, and differs materially from conditions ordinarily encountered and generally recognized as inherent in work of the character provided for in the Contract Documents;

then Contractor shall, promptly after becoming aware thereof and before further disturbing the subsurface or physical conditions or performing any Work in connection therewith (except in an emergency as required by Paragraph 6.16.A), notify Owner and Engineer in writing about such condition. Contractor shall not further disturb such condition or perform any Work in connection therewith (except as aforesaid) until receipt of written order to do so.

- B. *Engineer’s Review:* After receipt of written notice as required by Paragraph 4.03.A, Engineer will promptly review the pertinent condition, determine the necessity of Owner’s obtaining additional exploration or tests with respect thereto, and advise Owner in writing (with a copy to Contractor) of Engineer’s findings and conclusions.

C. *Possible Price and Times Adjustments*

1. The Contract Price or the Contract Times, or both, will be equitably adjusted to the extent that the existence of such differing subsurface or physical condition causes an increase or decrease in Contractor’s cost of, or time required for, performance of the Work; subject, however, to the following:
 - a. such condition must meet any one or more of the categories described in Paragraph 4.03.A; and
 - b. with respect to Work that is paid for on a Unit Price Basis, any adjustment in Contract Price will be subject to the provisions of Paragraphs 9.07 and 11.03.
2. Contractor shall not be entitled to any adjustment in the Contract Price or Contract Times if:
 - a. Contractor knew of the existence of such conditions at the time Contractor made a final commitment to Owner with respect to Contract Price and Contract Times by the submission of a Bid or becoming bound under a negotiated contract; or
 - b. the existence of such condition could reasonably have been discovered or revealed as a result of any examination, investigation, exploration, test, or study of the Site and contiguous areas required by the Bidding Requirements or Contract Documents to be conducted by or for Contractor prior to Contractor’s making such final commitment; or
 - c. Contractor failed to give the written notice as required by Paragraph 4.03.A.
3. If Owner and Contractor are unable to agree on entitlement to or on the amount or extent, if any, of any adjustment in the Contract Price or Contract Times, or both, a Claim may be made therefor as provided in Paragraph 10.05. However, Owner and Engineer, and any of their Related Entities shall not be liable to Contractor for any claims, costs, losses, or damages (including but not limited to all fees and charges of

engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) sustained by Contractor on or in connection with any other project or anticipated project.

4.04 *Underground Facilities*

A. *Shown or Indicated:* The information and data shown or indicated in the Contract Documents with respect to existing Underground Facilities at or contiguous to the Site is based on information and data furnished to Owner or Engineer by the owners of such Underground Facilities, including Owner, or by others. Unless it is otherwise expressly provided in the Supplementary Conditions:

1. Owner and Engineer shall not be responsible for the accuracy or completeness of any such information or data; and
2. the cost of all of the following will be included in the Contract Price, and Contractor shall have full responsibility for:
 - a. reviewing and checking all such information and data,
 - b. locating all Underground Facilities shown or indicated in the Contract Documents,
 - c. coordination of the Work with the owners of such Underground Facilities, including Owner, during construction, and
 - d. the safety and protection of all such Underground Facilities and repairing any damage thereto resulting from the Work.

B. *Not Shown or Indicated*

1. If an Underground Facility is uncovered or revealed at or contiguous to the Site which was not shown or indicated, or not shown or indicated with reasonable accuracy in the Contract Documents, Contractor shall, promptly after becoming aware thereof and before further disturbing conditions affected thereby or performing any Work in connection therewith (except in an emergency as required by Paragraph 6.16.A), identify the owner of such Underground Facility and give written notice to that owner and to Owner and Engineer. Engineer will promptly review the Underground Facility and determine the extent, if any, to which a change is required in the Contract Documents to reflect and document the consequences of the existence or location of the Underground Facility. During such time, Contractor shall be responsible for the safety and protection of such Underground Facility.
2. If Engineer concludes that a change in the Contract Documents is required, a Work Change Directive or a Change Order will be issued to reflect and document such consequences. An equitable adjustment shall be made in the Contract Price or Contract Times, or both, to the extent that they are attributable to the existence or location of any Underground Facility that was not shown or indicated or not shown or indicated with reasonable accuracy in the Contract Documents and that Contractor did not know of and could not reasonably have been expected to be aware of or to have anticipated. If Owner and Contractor are unable to agree on entitlement to or on the amount or extent, if any, of any such adjustment in Contract Price or Contract Times, Owner or Contractor may make a Claim therefor as provided in Paragraph 10.05.

4.05 *Reference Points*

A. Owner shall provide engineering surveys to establish reference points for construction which in Engineer's judgment are necessary to enable Contractor to proceed with the Work. Contractor shall be responsible for laying out the Work, shall protect and preserve the established reference points and property monuments, and shall make no changes or relocations without the prior written approval of Owner. Contractor shall report to Engineer whenever any reference point or property monument is lost or destroyed or requires relocation because

of necessary changes in grades or locations, and shall be responsible for the accurate replacement or relocation of such reference points or property monuments by professionally qualified personnel.

4.06 *Hazardous Environmental Condition at Site*

- A. *Reports and Drawings:* Reference is made to the Supplementary Conditions for the identification of those reports and drawings relating to a Hazardous Environmental Condition identified at the Site, if any, that have been utilized by the Engineer in the preparation of the Contract Documents.
- B. *Limited Reliance by Contractor on Technical Data Authorized:* Contractor may rely upon the general accuracy of the “technical data” contained in such reports and drawings, but such reports and drawings are not Contract Documents. Such “technical data” is identified in the Supplementary Conditions. Except for such reliance on such “technical data,” Contractor may not rely upon or make any claim against Owner or Engineer, or any of their Related Entities with respect to:
 - 1. the completeness of such reports and drawings for Contractor’s purposes, including, but not limited to, any aspects of the means, methods, techniques, sequences and procedures of construction to be employed by Contractor and safety precautions and programs incident thereto; or
 - 2. other data, interpretations, opinions and information contained in such reports or shown or indicated in such drawings; or
 - 3. any Contractor interpretation of or conclusion drawn from any “technical data” or any such other data, interpretations, opinions or information.
- C. Contractor shall not be responsible for any Hazardous Environmental Condition uncovered or revealed at the Site which was not shown or indicated in Drawings or Specifications or identified in the Contract Documents to be within the scope of the Work. Contractor shall be responsible for a Hazardous Environmental Condition created with any materials brought to the Site by Contractor, Subcontractors, Suppliers, or anyone else for whom Contractor is responsible.
- D. If Contractor encounters a Hazardous Environmental Condition or if Contractor or anyone for whom Contractor is responsible creates a Hazardous Environmental Condition, Contractor shall immediately: (i) secure or otherwise isolate such condition; (ii) stop all Work in connection with such condition and in any area affected thereby (except in an emergency as required by Paragraph 6.16.A); and (iii) notify Owner and Engineer (and promptly thereafter confirm such notice in writing). Owner shall promptly consult with Engineer concerning the necessity for Owner to retain a qualified expert to evaluate such condition or take corrective action, if any.
- E. Contractor shall not be required to resume Work in connection with such condition or in any affected area until after Owner has obtained any required permits related thereto and delivered to Contractor written notice: (i) specifying that such condition and any affected area is or has been rendered safe for the resumption of Work; or (ii) specifying any special conditions under which such Work may be resumed safely. If Owner and Contractor cannot agree as to entitlement to or on the amount or extent, if any, of any adjustment in Contract Price or Contract Times, or both, as a result of such Work stoppage or such special conditions under which Work is agreed to be resumed by Contractor, either party may make a Claim therefor as provided in Paragraph 10.05.
- F. If after receipt of such written notice Contractor does not agree to resume such Work based on a reasonable belief it is unsafe, or does not agree to resume such Work under such special conditions, then Owner may order the portion of the Work that is in the area affected by such condition to be deleted from the Work. If Owner and Contractor cannot agree as to entitlement to or on the amount or extent, if any, of an adjustment in Contract Price or Contract Times as a result of deleting such portion of the Work, then either party may make a Claim therefor as provided in Paragraph 10.05. Owner may have such deleted portion of the Work performed by Owner’s own forces or others in accordance with Article 7.

- G. To the fullest extent permitted by Laws and Regulations, Owner shall indemnify and hold harmless Contractor, Subcontractors, and Engineer, and the officers, directors, partners, employees, agents, consultants, and subcontractors of each and any of them from and against all claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) arising out of or relating to a Hazardous Environmental Condition, provided that such Hazardous Environmental Condition: (i) was not shown or indicated in the Drawings or Specifications or identified in the Contract Documents to be included within the scope of the Work, and (ii) was not created by Contractor or by anyone for whom Contractor is responsible. Nothing in this Paragraph 4.06.G shall obligate Owner to indemnify any individual or entity from and against the consequences of that individual's or entity's own negligence.
- H. To the fullest extent permitted by Laws and Regulations, Contractor shall indemnify and hold harmless Owner and Engineer, and the officers, directors, partners, employees, agents, consultants, and subcontractors of each and any of them from and against all claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) arising out of or relating to a Hazardous Environmental Condition created by Contractor or by anyone for whom Contractor is responsible. Nothing in this Paragraph 4.06. H shall obligate Contractor to indemnify any individual or entity from and against the consequences of that individual's or entity's own negligence.
- I. The provisions of Paragraphs 4.02, 4.03, and 4.04 do not apply to a Hazardous Environmental Condition uncovered or revealed at the Site.

ARTICLE 5 – BONDS AND INSURANCE

5.01 *Performance, Payment, and Other Bonds*

- A. Contractor shall furnish performance and payment bonds, each in an amount at least equal to the Contract Price as security for the faithful performance and payment of all of Contractor's obligations under the Contract Documents. These bonds shall remain in effect until one year after the date when final payment becomes due or until completion of the correction period specified in Paragraph 13.07, whichever is later, except as provided otherwise by Laws or Regulations or by the Contract Documents. Contractor shall also furnish such other bonds as are required by the Contract Documents.
- B. All bonds shall be in the form prescribed by the Contract Documents except as provided otherwise by Laws or Regulations, and shall be executed by such sureties as are named in the current list of "Companies Holding Certificates of Authority as Acceptable Sureties on Federal Bonds and as Acceptable Reinsuring Companies" as published in Circular 570 (amended) by the Financial Management Service, Surety Bond Branch, U.S. Department of the Treasury. All bonds signed by an agent must be accompanied by a certified copy of the agent's authority to act.
- C. If the surety on any bond furnished by Contractor is declared bankrupt or becomes insolvent or its right to do business is terminated in any state where any part of the Project is located or it ceases to meet the requirements of Paragraph 5.01.B, Contractor shall promptly notify Owner and Engineer and shall, within 20 days after the event giving rise to such notification, provide another bond and surety, both of which shall comply with the requirements of Paragraphs 5.01.B and 5.02.

5.02 *Licensed Sureties and Insurers*

- A. All bonds and insurance required by the Contract Documents to be purchased and maintained by Owner or Contractor shall be obtained from surety or insurance companies that are duly licensed or authorized in the jurisdiction in which the Project is located to issue bonds or insurance policies for the limits and coverages so required. Such surety and insurance companies shall also meet such additional requirements and qualifications as may be provided in the Supplementary Conditions.

5.03 *Certificates of Insurance*

- A. Contractor shall deliver to Owner, with copies to each additional insured identified in the Supplementary Conditions, certificates of insurance (and other evidence of insurance requested by Owner or any other additional insured) which Contractor is required to purchase and maintain.
- B. Owner shall deliver to Contractor, with copies to each additional insured identified in the Supplementary Conditions, certificates of insurance (and other evidence of insurance requested by Contractor or any other additional insured) which Owner is required to purchase and maintain.

5.04 *Contractor's Liability Insurance*

- A. Contractor shall purchase and maintain such liability and other insurance as is appropriate for the Work being performed and as will provide protection from claims set forth below which may arise out of or result from Contractor's performance of the Work and Contractor's other obligations under the Contract Documents, whether it is to be performed by Contractor, any Subcontractor or Supplier, or by anyone directly or indirectly employed by any of them to perform any of the Work, or by anyone for whose acts any of them may be liable:
 - 1. claims under workers' compensation, disability benefits, and other similar employee benefit acts;
 - 2. claims for damages because of bodily injury, occupational sickness or disease, or death of Contractor's employees;
 - 3. claims for damages because of bodily injury, sickness or disease, or death of any person other than Contractor's employees;
 - 4. claims for damages insured by reasonably available personal injury liability coverage which are sustained:
 - a. by any person as a result of an offense directly or indirectly related to the employment of such person by Contractor, or
 - b. by any other person for any other reason;
 - 5. claims for damages, other than to the Work itself, because of injury to or destruction of tangible property wherever located, including loss of use resulting therefrom; and
 - 6. claims for damages because of bodily injury or death of any person or property damage arising out of the ownership, maintenance or use of any motor vehicle.
- B. The policies of insurance required by this Paragraph 5.04 shall:
 - 1. with respect to insurance required by Paragraphs 5.04.A.3 through 5.04.A.6 inclusive, include as additional insureds (subject to any customary exclusion regarding professional liability) Owner and Engineer, and any other individuals or entities identified in the Supplementary Conditions, all of whom shall be listed as additional insureds, and include coverage for the respective officers, directors, partners, employees, agents, consultants and subcontractors of each and any of all such additional insureds, and the insurance afforded to these additional insureds shall provide primary coverage for all claims covered thereby;
 - 2. include at least the specific coverages and be written for not less than the limits of liability provided in the Supplementary Conditions or required by Laws or Regulations, whichever is greater;
 - 3. include completed operations insurance;

4. include contractual liability insurance covering Contractor's indemnity obligations under Paragraphs 6.11 and 6.20;
5. contain a provision or endorsement that the coverage afforded will not be canceled, materially changed or renewal refused until at least 30 days prior written notice has been given to Owner and Contractor and to each other additional insured identified in the Supplementary Conditions to whom a certificate of insurance has been issued (and the certificates of insurance furnished by the Contractor pursuant to Paragraph 5.03 will so provide);
6. remain in effect at least until final payment and at all times thereafter when Contractor may be correcting, removing, or replacing defective Work in accordance with Paragraph 13.07; and
7. with respect to completed operations insurance, and any insurance coverage written on a claims-made basis, remain in effect for at least two years after final payment.
 - a. Contractor shall furnish Owner and each other additional insured identified in the Supplementary Conditions, to whom a certificate of insurance has been issued, evidence satisfactory to Owner and any such additional insured of continuation of such insurance at final payment and one year thereafter.

5.05 *Owner's Liability Insurance*

- A. In addition to the insurance required to be provided by Contractor under Paragraph 5.04, Owner, at Owner's option, may purchase and maintain at Owner's expense Owner's own liability insurance as will protect Owner against claims which may arise from operations under the Contract Documents.

5.06 *Property Insurance*

- A. Unless otherwise provided in the Supplementary Conditions, Contractor shall purchase and maintain property insurance upon the Work at the Site in the amount of the full replacement cost thereof (Contractor shall be responsible for any deductible or self-insured retention.). This insurance shall:
 1. include the interests of Owner, Contractor, Subcontractors, and Engineer, and any other individuals or entities identified in the Supplementary Conditions, and the officers, directors, partners, employees, agents, consultants and subcontractors of any of them, each of whom is deemed to have an insurable interest and shall be listed as an insured or additional insured;
 2. be written on a Builder's Risk "all-risk" or open peril or special causes of loss policy form that shall at least include insurance for physical loss or damage to the Work, temporary buildings, falsework, and materials and equipment in transit, and shall insure against at least the following perils or causes of loss: fire, lightning, extended coverage, theft, vandalism and malicious mischief, earthquake, collapse, debris removal, demolition occasioned by enforcement of Laws and Regulations, water damage (other than caused by flood), and such other perils or causes of loss as may be specifically required by the Supplementary Conditions;
 3. include expenses incurred in the repair or replacement of any insured property (including but not limited to fees and charges of engineers and architects);
 4. cover materials and equipment stored at the Site or at another location that was agreed to in writing by Owner prior to being incorporated in the Work, provided that such materials and equipment have been included in an Application for Payment recommended by Engineer;
 5. allow for partial utilization of the Work by Owner;
 6. include testing and startup; and

7. be maintained in effect until final payment is made unless otherwise agreed to in writing by Owner, Contractor, and Engineer with 30 days written notice to each other additional insured to whom a certificate of insurance has been issued.
- B. Contractor shall purchase and maintain such boiler and machinery insurance or additional property insurance as may be required by the Supplementary Conditions or Laws and Regulations which will include the interests of Owner, Contractor, Subcontractors, and Engineer, and any other individuals or entities identified in the Supplementary Conditions, and the officers, directors, partners, employees, agents, consultants and subcontractors of each and any of them, each of whom is deemed to have an insurable interest and shall be listed as an insured or additional insured.
- C. All the policies of insurance (and the certificates or other evidence thereof) required to be purchased and maintained in accordance with Paragraph 5.06 will contain a provision or endorsement that the coverage afforded will not be canceled or materially changed or renewal refused until at least 30 days prior written notice has been given to Owner and Contractor and to each other additional insured to whom a certificate of insurance has been issued and will contain waiver provisions in accordance with Paragraph 5.07.
- D. Owner shall not be responsible for purchasing and maintaining any property insurance specified in this Paragraph 5.06 to protect the interests of Contractor, Subcontractors, or others in the Work to the extent of any deductible amounts that are identified in the Supplementary Conditions. The risk of loss within such identified deductible amount will be borne by Contractor, Subcontractors, or others suffering any such loss, and if any of them wishes property insurance coverage within the limits of such amounts, each may purchase and maintain it at the purchaser's own expense.

5.07 *Waiver of Rights*

- A. Owner and Contractor intend that all policies purchased in accordance with Paragraph 5.06 will protect Owner, Contractor, Subcontractors, and Engineer, and all other individuals or entities identified in the Supplementary Conditions to be listed as insureds or additional insureds (and the officers, directors, partners, employees, agents, consultants and subcontractors of each and any of them) in such policies and will provide primary coverage for all losses and damages caused by the perils or causes of loss covered thereby. All such policies shall contain provisions to the effect that in the event of payment of any loss or damage the insurers will have no rights of recovery against any of the insureds or additional insureds thereunder. Owner and Contractor waive all rights against each other and their respective officers, directors, partners, employees, agents, consultants and subcontractors of each and any of them for all losses and damages caused by, arising out of or resulting from any of the perils or causes of loss covered by such policies and any other property insurance applicable to the Work; and, in addition, waive all such rights against Subcontractors, and Engineer, and all other individuals or entities identified in the Supplementary Conditions to be listed as insured or additional insured (and the officers, directors, partners, employees, agents, consultants and subcontractors of each and any of them) under such policies for losses and damages so caused. None of the above waivers shall extend to the rights that any party making such waiver may have to the proceeds of insurance held by Contractor as trustee or otherwise payable under any policy so issued.
- B. Owner waives all rights against Contractor, Subcontractors, and Engineer, and the officers, directors, partners, employees, agents, consultants and subcontractors of each and any of them for:
 1. loss due to business interruption, loss of use, or other consequential loss extending beyond direct physical loss or damage to Owner's property or the Work caused by, arising out of, or resulting from fire or other perils whether or not insured by Owner; and
 2. loss or damage to the completed Project or part thereof caused by, arising out of, or resulting from fire or other insured peril or cause of loss covered by any property insurance maintained on the completed Project or part thereof by Owner during partial utilization pursuant to Paragraph 14.05, after Substantial Completion pursuant to Paragraph 14.04, or after final payment pursuant to Paragraph 14.07.

- C. Any insurance policy maintained by Owner covering any loss, damage or consequential loss referred to in Paragraph 5.07.B shall contain provisions to the effect that in the event of payment of any such loss, damage, or consequential loss, the insurers will have no rights of recovery against Contractor, Subcontractors, or Engineer, and the officers, directors, partners, employees, agents, consultants and subcontractors of each and any of them.

5.08 *Receipt and Application of Insurance Proceeds*

- A. Any insured loss under the policies of insurance required by Paragraph 5.06 will be adjusted with Contractor and made payable to Contractor as fiduciary for the insureds, as their interests may appear, subject to the requirements of any applicable mortgage clause and of Paragraph 5.08.B. Contractor shall deposit in a separate account any money so received and shall distribute it in accordance with such agreement as the parties in interest may reach. If no other special agreement is reached, the damaged Work shall be repaired or replaced, the moneys so received applied on account thereof.
- B. Contractor as fiduciary shall have power to adjust and settle any loss with the insurers unless one of the parties in interest shall object in writing within 15 days after the occurrence of loss to Contractor's exercise of this power. If such objection be made, Contractor as fiduciary shall make settlement with the insurers in accordance with such agreement as the parties in interest may reach. If no such agreement among the parties in interest is reached, Contractor as fiduciary shall adjust and settle the loss with the insurers and, if required in writing by any party in interest, Contractor as fiduciary shall give bond for the proper performance of such duties.

5.09 *Acceptance of Bonds and Insurance; Option to Replace*

- A. If either Owner or Contractor has any objection to the coverage afforded by or other provisions of the bonds or insurance required to be purchased and maintained by the other party in accordance with Article 5 on the basis of non-conformance with the Contract Documents, the objecting party shall so notify the other party in writing within 10 days after receipt of the certificates (or other evidence requested) required by Paragraph 2.01.B. Owner and Contractor shall each provide to the other such additional information in respect of insurance provided as the other may reasonably request. If either party does not purchase or maintain all of the bonds and insurance required of such party by the Contract Documents, such party shall notify the other party in writing of such failure to purchase prior to the start of the Work, or of such failure to maintain prior to any change in the required coverage. Without prejudice to any other right or remedy, the other party may elect to obtain equivalent bonds or insurance to protect such other party's interests at the expense of the party who was required to provide such coverage, and a Change Order shall be issued to adjust the Contract Price accordingly.

5.10 *Partial Utilization, Acknowledgment of Property Insurer*

- A. If Owner finds it necessary to occupy or use a portion or portions of the Work prior to Substantial Completion of all the Work as provided in Paragraph 14.05, no such use or occupancy shall commence before the insurers providing the property insurance pursuant to Paragraph 5.06 have acknowledged notice thereof and in writing effected any changes in coverage necessitated thereby. The insurers providing the property insurance shall consent by endorsement on the policy or policies, but the property insurance shall not be canceled or permitted to lapse on account of any such partial use or occupancy.

ARTICLE 6 – CONTRACTOR'S RESPONSIBILITIES

6.01 *Supervision and Superintendence*

- A. Contractor shall supervise, inspect, and direct the Work competently and efficiently, devoting such attention thereto and applying such skills and expertise as may be necessary to perform the Work in accordance with the Contract Documents. Contractor shall be solely responsible for the means, methods, techniques, sequences, and procedures of construction. Contractor shall not be responsible for the negligence of Owner or Engineer in the

design or specification of a specific means, method, technique, sequence, or procedure of construction which is shown or indicated in and expressly required by the Contract Documents.

- B. At all times during the progress of the Work, Contractor shall assign a competent resident superintendent who shall not be replaced without written notice to Owner and Engineer except under extraordinary circumstances. The superintendent will be Contractor's representative at the Site and shall have authority to act on behalf of Contractor. All communications given to or received from the superintendent shall be binding on Contractor.

6.02 *Labor; Working Hours*

- A. Contractor shall provide competent, suitably qualified personnel to survey and lay out the Work and perform construction as required by the Contract Documents. Contractor shall at all times maintain good discipline and order at the Site.
- B. Except as otherwise required for the safety or protection of persons or the Work or property at the Site or adjacent thereto, and except as otherwise stated in the Contract Documents, all Work at the Site shall be performed during regular working hours. Contractor will not permit the performance of Work on a Saturday, Sunday, or any legal holiday without Owner's written consent (which will not be unreasonably withheld) given after prior written notice to Engineer.

6.03 *Services, Materials, and Equipment*

- A. Unless otherwise specified in the Contract Documents, Contractor shall provide and assume full responsibility for all services, materials, equipment, labor, transportation, construction equipment and machinery, tools, appliances, fuel, power, light, heat, telephone, water, sanitary facilities, temporary facilities, and all other facilities and incidentals necessary for the performance, testing, start-up, and completion of the Work.
- B. All materials and equipment incorporated into the Work shall be as specified or, if not specified, shall be of good quality and new, except as otherwise provided in the Contract Documents. All special warranties and guarantees required by the Specifications shall expressly run to the benefit of Owner. If required by Engineer, Contractor shall furnish satisfactory evidence (including reports of required tests) as to the source, kind, and quality of materials and equipment.
- C. All materials and equipment shall be stored, applied, installed, connected, erected, protected, used, cleaned, and conditioned in accordance with instructions of the applicable Supplier, except as otherwise may be provided in the Contract Documents.

6.04 *Progress Schedule*

- A. Contractor shall adhere to the Progress Schedule established in accordance with Paragraph 2.07 as it may be adjusted from time to time as provided below.
 - 1. Contractor shall submit to Engineer for acceptance (to the extent indicated in Paragraph 2.07) proposed adjustments in the Progress Schedule that will not result in changing the Contract Times. Such adjustments will comply with any provisions of the General Requirements applicable thereto.
 - 2. Proposed adjustments in the Progress Schedule that will change the Contract Times shall be submitted in accordance with the requirements of Article 12. Adjustments in Contract Times may only be made by a Change Order.

6.05 *Substitutes and "Or-Equals"*

- A. Whenever an item of material or equipment is specified or described in the Contract Documents by using the name of a proprietary item or the name of a particular Supplier, the specification or description is intended to

establish the type, function, appearance, and quality required. Unless the specification or description contains or is followed by words reading that no like, equivalent, or “or-equal” item or no substitution is permitted, other items of material or equipment or material or equipment of other Suppliers may be submitted to Engineer for review under the circumstances described below.

1. *“Or-Equal” Items:* If in Engineer’s sole discretion an item of material or equipment proposed by Contractor is functionally equal to that named and sufficiently similar so that no change in related Work will be required, it may be considered by Engineer as an “or-equal” item, in which case review and approval of the proposed item may, in Engineer’s sole discretion, be accomplished without compliance with some or all of the requirements for approval of proposed substitute items. For the purposes of this Paragraph 6.05.A.1, a proposed item of material or equipment will be considered functionally equal to an item so named if:

a. in the exercise of reasonable judgment Engineer determines that:

- 1) it is at least equal in materials of construction, quality, durability, appearance, strength, and design characteristics;
- 2) it will reliably perform at least equally well the function and achieve the results imposed by the design concept of the completed Project as a functioning whole;
- 3) it has a proven record of performance and availability of responsive service; and

b. Contractor certifies that, if approved and incorporated into the Work:

- 1) there will be no increase in cost to the Owner or increase in Contract Times, and
- 2) it will conform substantially to the detailed requirements of the item named in the Contract Documents.

2. Substitute Items

a. If in Engineer’s sole discretion an item of material or equipment proposed by Contractor does not qualify as an “or-equal” item under Paragraph 6.05.A.1, it will be considered a proposed substitute item.

b. Contractor shall submit sufficient information as provided below to allow Engineer to determine that the item of material or equipment proposed is essentially equivalent to that named and an acceptable substitute therefor. Requests for review of proposed substitute items of material or equipment will not be accepted by Engineer from anyone other than Contractor.

c. The procedure requirements for review by Engineer will be as set forth in Paragraph 6.05.A.2.d, as supplemented in the General Requirements and as Engineer may decide is appropriate under the circumstances.

d. Contractor shall make written application to Engineer for review of a proposed substitute item of material or equipment that Contractor seeks to furnish or use. The application:

1) shall certify that the proposed substitute item will:

- a) will perform adequately the functions and achieve the results called for by the general design,
- b) be similar in substance to that specified, and
- c) be suited to the same use as that specified;

- 2) will state:
 - a) the extent, if any, to which the use of the proposed substitute item will prejudice Contractor's achievement of Substantial Completion on time;
 - b) whether or not use of the proposed substitute item in the Work will require a change in any of the Contract Documents (or in the provisions of any other direct contract with Owner for other work on the Project) to adapt the design to the proposed substitute item; and
 - c) whether or not incorporation or use of the proposed substitute item in connection with the Work is subject to payment of any license fee or royalty;
- 3) will identify:
 - a) all variations of the proposed substitute item from that specified, and
 - b) available engineering, sales, maintenance, repair, and replacement services;
- 4) and shall contain an itemized estimate of all costs or credits that will result directly or indirectly from use of such substitute item, including costs of redesign and claims of other contractors affected by any resulting change.

- B. *Substitute Construction Methods or Procedures:* If a specific means, method, technique, sequence, or procedure of construction is expressly required by the Contract Documents, Contractor may furnish or utilize a substitute means, method, technique, sequence, or procedure of construction approved by Engineer. Contractor shall submit sufficient information to allow Engineer, in Engineer's sole discretion, to determine that the substitute proposed is equivalent to that expressly called for by the Contract Documents. The requirements for review by Engineer will be similar to those provided in Paragraph 6.05.A.2.
- C. *Engineer's Evaluation:* Engineer will be allowed a reasonable time within which to evaluate each proposal or submittal made pursuant to Paragraphs 6.05.A and 6.05.B. Engineer may require Contractor to furnish additional data about the proposed substitute item. Engineer will be the sole judge of acceptability. No "or equal" or substitute will be ordered, installed or utilized until Engineer's review is complete, which will be evidenced by either a Change Order for a substitute or an approved Shop Drawing for an "or equal." Engineer will advise Contractor in writing of any negative determination.
- D. *Special Guarantee:* Owner may require Contractor to furnish at Contractor's expense a special performance guarantee or other surety with respect to any substitute.
- E. *Engineer's Cost Reimbursement:* Engineer will record Engineer's costs in evaluating a substitute proposed or submitted by Contractor pursuant to Paragraphs 6.05.A.2 and 6.05.B. Whether or not Engineer approves a substitute item so proposed or submitted by Contractor, Contractor shall reimburse Owner for the charges of Engineer for evaluating each such proposed substitute. Contractor shall also reimburse Owner for the charges of Engineer for making changes in the Contract Documents (or in the provisions of any other direct contract with Owner) resulting from the acceptance of each proposed substitute.
- F. *Contractor's Expense:* Contractor shall provide all data in support of any proposed substitute or "or-equal" at Contractor's expense.

6.06 *Concerning Subcontractors, Suppliers, and Others*

- A. Contractor shall not employ any Subcontractor, Supplier, or other individual or entity (including those acceptable to Owner as indicated in Paragraph 6.06.B), whether initially or as a replacement, against whom Owner

may have reasonable objection. Contractor shall not be required to employ any Subcontractor, Supplier, or other individual or entity to furnish or perform any of the Work against whom Contractor has reasonable objection.

- B. If the Supplementary Conditions require the identity of certain Subcontractors, Suppliers, or other individuals or entities to be submitted to Owner in advance for acceptance by Owner by a specified date prior to the Effective Date of the Agreement, and if Contractor has submitted a list thereof in accordance with the Supplementary Conditions, Owner's acceptance (either in writing or by failing to make written objection thereto by the date indicated for acceptance or objection in the Bidding Documents or the Contract Documents) of any such Subcontractor, Supplier, or other individual or entity so identified may be revoked on the basis of reasonable objection after due investigation. Contractor shall submit an acceptable replacement for the rejected Subcontractor, Supplier, or other individual or entity, and the Contract Price will be adjusted by the difference in the cost occasioned by such replacement, and an appropriate Change Order will be issued. No acceptance by Owner of any such Subcontractor, Supplier, or other individual or entity, whether initially or as a replacement, shall constitute a waiver of any right of Owner or Engineer to reject defective Work.
- C. Contractor shall be fully responsible to Owner and Engineer for all acts and omissions of the Subcontractors, Suppliers, and other individuals or entities performing or furnishing any of the Work just as Contractor is responsible for Contractor's own acts and omissions. Nothing in the Contract Documents:
 - 1. shall create for the benefit of any such Subcontractor, Supplier, or other individual or entity any contractual relationship between Owner or Engineer and any such Subcontractor, Supplier or other individual or entity, nor
 - 2. shall anything in the Contract Documents create any obligation on the part of Owner or Engineer to pay or to see to the payment of any moneys due any such Subcontractor, Supplier, or other individual or entity except as may otherwise be required by Laws and Regulations.
- D. Contractor shall be solely responsible for scheduling and coordinating the Work of Subcontractors, Suppliers, and other individuals or entities performing or furnishing any of the Work under a direct or indirect contract with Contractor.
- E. Contractor shall require all Subcontractors, Suppliers, and such other individuals or entities performing or furnishing any of the Work to communicate with Engineer through Contractor.
- F. The divisions and sections of the Specifications and the identifications of any Drawings shall not control Contractor in dividing the Work among Subcontractors or Suppliers or delineating the Work to be performed by any specific trade.
- G. All Work performed for Contractor by a Subcontractor or Supplier will be pursuant to an appropriate agreement between Contractor and the Subcontractor or Supplier which specifically binds the Subcontractor or Supplier to the applicable terms and conditions of the Contract Documents for the benefit of Owner and Engineer. Whenever any such agreement is with a Subcontractor or Supplier who is listed as an additional insured on the property insurance provided in Paragraph 5.06, the agreement between the Contractor and the Subcontractor or Supplier will contain provisions whereby the Subcontractor or Supplier waives all rights against Owner, Contractor, and Engineer, and all other individuals or entities identified in the Supplementary Conditions to be listed as insureds or additional insureds (and the officers, directors, partners, employees, agents, consultants and subcontractors of each and any of them) for all losses and damages caused by, arising out of, relating to, or resulting from any of the perils or causes of loss covered by such policies and any other property insurance applicable to the Work. If the insurers on any such policies require separate waiver forms to be signed by any Subcontractor or Supplier, Contractor will obtain the same.

6.07 *Patent Fees and Royalties*

- A. Contractor shall pay all license fees and royalties and assume all costs incident to the use in the performance of the Work or the incorporation in the Work of any invention, design, process, product, or device which is the subject of patent rights or copyrights held by others. If a particular invention, design, process, product, or device is specified in the Contract Documents for use in the performance of the Work and if to the actual knowledge of Owner or Engineer its use is subject to patent rights or copyrights calling for the payment of any license fee or royalty to others, the existence of such rights shall be disclosed by Owner in the Contract Documents.
- B. To the fullest extent permitted by Laws and Regulations, Contractor shall indemnify and hold harmless Owner and Engineer, and the officers, directors, partners, employees, agents, consultants and subcontractors of each and any of them from and against all claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) arising out of or relating to any infringement of patent rights or copyrights incident to the use in the performance of the Work or resulting from the incorporation in the Work of any invention, design, process, product, or device not specified in the Contract Documents.

6.08 *Permits*

- A. Unless otherwise provided in the Supplementary Conditions, Contractor shall obtain and pay for all construction permits and licenses. Owner shall assist Contractor, when necessary, in obtaining such permits and licenses. Contractor shall pay all governmental charges and inspection fees necessary for the prosecution of the Work which are applicable at the time of opening of Bids, or, if there are no Bids, on the Effective Date of the Agreement. Owner shall pay all charges of utility owners for connections for providing permanent service to the Work.

6.09 *Laws and Regulations*

- A. Contractor shall give all notices required by and shall comply with all Laws and Regulations applicable to the performance of the Work. Except where otherwise expressly required by applicable Laws and Regulations, neither Owner nor Engineer shall be responsible for monitoring Contractor's compliance with any Laws or Regulations.
- B. If Contractor performs any Work knowing or having reason to know that it is contrary to Laws or Regulations, Contractor shall bear all claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) arising out of or relating to such Work. However, it shall not be Contractor's primary responsibility to make certain that the Specifications and Drawings are in accordance with Laws and Regulations, but this shall not relieve Contractor of Contractor's obligations under Paragraph 3.03.
- C. Changes in Laws or Regulations not known at the time of opening of Bids (or, on the Effective Date of the Agreement if there were no Bids) having an effect on the cost or time of performance of the Work shall be the subject of an adjustment in Contract Price or Contract Times. If Owner and Contractor are unable to agree on entitlement to or on the amount or extent, if any, of any such adjustment, a Claim may be made therefor as provided in Paragraph 10.05.

6.10 *Taxes*

- A. Contractor shall pay all sales, consumer, use, and other similar taxes required to be paid by Contractor in accordance with the Laws and Regulations of the place of the Project which are applicable during the performance of the Work.

6.11 *Use of Site and Other Areas*

A. *Limitation on Use of Site and Other Areas*

1. Contractor shall confine construction equipment, the storage of materials and equipment, and the operations of workers to the Site and other areas permitted by Laws and Regulations, and shall not unreasonably encumber the Site and other areas with construction equipment or other materials or equipment. Contractor shall assume full responsibility for any damage to any such land or area, or to the owner or occupant thereof, or of any adjacent land or areas resulting from the performance of the Work.
2. Should any claim be made by any such owner or occupant because of the performance of the Work, Contractor shall promptly settle with such other party by negotiation or otherwise resolve the claim by arbitration or other dispute resolution proceeding or at law.
3. To the fullest extent permitted by Laws and Regulations, Contractor shall indemnify and hold harmless Owner and Engineer, and the officers, directors, partners, employees, agents, consultants and subcontractors of each and any of them from and against all claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) arising out of or relating to any claim or action, legal or equitable, brought by any such owner or occupant against Owner, Engineer, or any other party indemnified hereunder to the extent caused by or based upon Contractor's performance of the Work.

B. *Removal of Debris During Performance of the Work:* During the progress of the Work Contractor shall keep the Site and other areas free from accumulations of waste materials, rubbish, and other debris. Removal and disposal of such waste materials, rubbish, and other debris shall conform to applicable Laws and Regulations.

C. *Cleaning:* Prior to Substantial Completion of the Work, Contractor shall clean the Site and the Work and make it ready for utilization by Owner. At the completion of the Work Contractor shall remove from the Site all tools, appliances, construction equipment and machinery, and surplus materials and shall restore to original condition all property not designated for alteration by the Contract Documents.

D. *Loading Structures:* Contractor shall not load nor permit any part of any structure to be loaded in any manner that will endanger the structure, nor shall Contractor subject any part of the Work or adjacent property to stresses or pressures that will endanger it.

6.12 *Record Documents*

A. Contractor shall maintain in a safe place at the Site one record copy of all Drawings, Specifications, Addenda, Change Orders, Work Change Directives, Field Orders, and written interpretations and clarifications in good order and annotated to show changes made during construction. These record documents together with all approved Samples and a counterpart of all approved Shop Drawings will be available to Engineer for reference. Upon completion of the Work, these record documents, Samples, and Shop Drawings will be delivered to Engineer for Owner.

6.13 *Safety and Protection*

A. Contractor shall be solely responsible for initiating, maintaining and supervising all safety precautions and programs in connection with the Work. Contractor shall take all necessary precautions for the safety of, and shall provide the necessary protection to prevent damage, injury or loss to:

1. all persons on the Site or who may be affected by the Work;
2. all the Work and materials and equipment to be incorporated therein, whether in storage on or off the Site; and

3. other property at the Site or adjacent thereto, including trees, shrubs, lawns, walks, pavements, roadways, structures, utilities, and Underground Facilities not designated for removal, relocation, or replacement in the course of construction.
- B. Contractor shall comply with all applicable Laws and Regulations relating to the safety of persons or property, or to the protection of persons or property from damage, injury, or loss; and shall erect and maintain all necessary safeguards for such safety and protection. Contractor shall notify owners of adjacent property and of Underground Facilities and other utility owners when prosecution of the Work may affect them, and shall cooperate with them in the protection, removal, relocation, and replacement of their property.
- C. All damage, injury, or loss to any property referred to in Paragraph 6.13.A.2 or 6.13.A.3 caused, directly or indirectly, in whole or in part, by Contractor, any Subcontractor, Supplier, or any other individual or entity directly or indirectly employed by any of them to perform any of the Work, or anyone for whose acts any of them may be liable, shall be remedied by Contractor (except damage or loss attributable to the fault of Drawings or Specifications or to the acts or omissions of Owner or Engineer or , or anyone employed by any of them, or anyone for whose acts any of them may be liable, and not attributable, directly or indirectly, in whole or in part, to the fault or negligence of Contractor or any Subcontractor, Supplier, or other individual or entity directly or indirectly employed by any of them).
- D. Contractor's duties and responsibilities for safety and for protection of the Work shall continue until such time as all the Work is completed and Engineer has issued a notice to Owner and Contractor in accordance with Paragraph 14.07.B that the Work is acceptable (except as otherwise expressly provided in connection with Substantial Completion).

6.14 *Safety Representative*

- A. Contractor shall designate a qualified and experienced safety representative at the Site whose duties and responsibilities shall be the prevention of accidents and the maintaining and supervising of safety precautions and programs.

6.15 *Hazard Communication Programs*

- A. Contractor shall be responsible for coordinating any exchange of material safety data sheets or other hazard communication information required to be made available to or exchanged between or among employers at the Site in accordance with Laws or Regulations.

6.16 *Emergencies*

- A. In emergencies affecting the safety or protection of persons or the Work or property at the Site or adjacent thereto, Contractor is obligated to act to prevent threatened damage, injury, or loss. Contractor shall give Engineer prompt written notice if Contractor believes that any significant changes in the Work or variations from the Contract Documents have been caused thereby or are required as a result thereof. If Engineer determines that a change in the Contract Documents is required because of the action taken by Contractor in response to such an emergency, a Work Change Directive or Change Order will be issued.

6.17 *Shop Drawings and Samples*

- A. Contractor shall submit Shop Drawings and Samples to Engineer for review and approval in accordance with the acceptable Schedule of Submittals (as required by Paragraph 2.07). Each submittal will be identified as Engineer may require.

1. *Shop Drawings*

- a. Submit number of copies specified in the General Requirements.

- b. Data shown on the Shop Drawings will be complete with respect to quantities, dimensions, specified performance and design criteria, materials, and similar data to show Engineer the services, materials, and equipment Contractor proposes to provide and to enable Engineer to review the information for the limited purposes required by Paragraph 6.17.D.
- 2. *Samples*
 - a. Submit number of Samples specified in the Specifications.
 - b. Clearly identify each Sample as to material, Supplier, pertinent data such as catalog numbers, the use for which intended and other data as Engineer may require to enable Engineer to review the submittal for the limited purposes required by Paragraph 6.17.D.
- B. Where a Shop Drawing or Sample is required by the Contract Documents or the Schedule of Submittals, any related Work performed prior to Engineer's review and approval of the pertinent submittal will be at the sole expense and responsibility of Contractor.
- C. *Submittal Procedures*
 - 1. Before submitting each Shop Drawing or Sample, Contractor shall have determined and verified:
 - a. all field measurements, quantities, dimensions, specified performance and design criteria, installation requirements, materials, catalog numbers, and similar information with respect thereto;
 - b. the suitability of all materials with respect to intended use, fabrication, shipping, handling, storage, assembly, and installation pertaining to the performance of the Work;
 - c. all information relative to Contractor's responsibilities for means, methods, techniques, sequences, and procedures of construction, and safety precautions and programs incident thereto; and
 - d. shall also have reviewed and coordinated each Shop Drawing or Sample with other Shop Drawings and Samples and with the requirements of the Work and the Contract Documents.
 - 2. Each submittal shall bear a stamp or specific written certification that Contractor has satisfied Contractor's obligations under the Contract Documents with respect to Contractor's review and approval of that submittal.
 - 3. With each submittal, Contractor shall give Engineer specific written notice of any variations, that the Shop Drawing or Sample may have from the requirements of the Contract Documents. This notice shall be both a written communication separate from the Shop Drawings or Sample submittal; and, in addition, by a specific notation made on each Shop Drawing or Sample submitted to Engineer for review and approval of each such variation.
- D. *Engineer's Review*
 - 1. Engineer will provide timely review of Shop Drawings and Samples in accordance with the Schedule of Submittals acceptable to Engineer. Engineer's review and approval will be only to determine if the items covered by the submittals will, after installation or incorporation in the Work, conform to the information given in the Contract Documents and be compatible with the design concept of the completed Project as a functioning whole as indicated by the Contract Documents.
 - 2. Engineer's review and approval will not extend to means, methods, techniques, sequences, or procedures of construction (except where a particular means, method, technique, sequence, or procedure of construction is specifically and expressly called for by the Contract Documents) or to safety precautions or programs

incident thereto. The review and approval of a separate item as such will not indicate approval of the assembly in which the item functions.

3. Engineer's review and approval shall not relieve Contractor from responsibility for any variation from the requirements of the Contract Documents unless Contractor has complied with the requirements of Paragraph 6.17.C.3 and Engineer has given written approval of each such variation by specific written notation thereof incorporated in or accompanying the Shop Drawing or Sample. Engineer's review and approval shall not relieve Contractor from responsibility for complying with the requirements of Paragraph 6.17.C.1.

E. Resubmittal Procedures

1. Contractor shall make corrections required by Engineer and shall return the required number of corrected copies of Shop Drawings and submit, as required, new Samples for review and approval. Contractor shall direct specific attention in writing to revisions other than the corrections called for by Engineer on previous submittals.

6.18 Continuing the Work

- A. Contractor shall carry on the Work and adhere to the Progress Schedule during all disputes or disagreements with Owner. No Work shall be delayed or postponed pending resolution of any disputes or disagreements, except as permitted by Paragraph 15.04 or as Owner and Contractor may otherwise agree in writing.

6.19 Contractor's General Warranty and Guarantee

- A. Contractor warrants and guarantees to Owner that all Work will be in accordance with the Contract Documents and will not be defective. Engineer and its Related Entities shall be entitled to rely on representation of Contractor's warranty and guarantee.
- B. Contractor's warranty and guarantee hereunder excludes defects or damage caused by:
 1. abuse, modification, or improper maintenance or operation by persons other than Contractor, Subcontractors, Suppliers, or any other individual or entity for whom Contractor is responsible; or
 2. normal wear and tear under normal usage.
- C. Contractor's obligation to perform and complete the Work in accordance with the Contract Documents shall be absolute. None of the following will constitute an acceptance of Work that is not in accordance with the Contract Documents or a release of Contractor's obligation to perform the Work in accordance with the Contract Documents:
 1. observations by Engineer;
 2. recommendation by Engineer or payment by Owner of any progress or final payment;
 3. the issuance of a certificate of Substantial Completion by Engineer or any payment related thereto by Owner;
 4. use or occupancy of the Work or any part thereof by Owner;
 5. any review and approval of a Shop Drawing or Sample submittal or the issuance of a notice of acceptability by Engineer;
 6. any inspection, test, or approval by others; or

7. any correction of defective Work by Owner.

6.20 *Indemnification*

- A. To the fullest extent permitted by Laws and Regulations, Contractor shall indemnify and hold harmless Owner and Engineer, and the officers, directors, partners, employees, agents, consultants and subcontractors of each and any of them from and against all claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) arising out of or relating to the performance of the Work, provided that any such claim, cost, loss, or damage is attributable to bodily injury, sickness, disease, or death, or to injury to or destruction of tangible property (other than the Work itself), including the loss of use resulting therefrom but only to the extent caused by any negligent act or omission of Contractor, any Subcontractor, any Supplier, or any individual or entity directly or indirectly employed by any of them to perform any of the Work or anyone for whose acts any of them may be liable.
- B. In any and all claims against Owner or Engineer or any of their respective consultants, agents, officers, directors, partners, or employees by any employee (or the survivor or personal representative of such employee) of Contractor, any Subcontractor, any Supplier, or any individual or entity directly or indirectly employed by any of them to perform any of the Work, or anyone for whose acts any of them may be liable, the indemnification obligation under Paragraph 6.20.A shall not be limited in any way by any limitation on the amount or type of damages, compensation, or benefits payable by or for Contractor or any such Subcontractor, Supplier, or other individual or entity under workers' compensation acts, disability benefit acts, or other employee benefit acts.
- C. The indemnification obligations of Contractor under Paragraph 6.20.A shall not extend to the liability of Engineer and Engineer's officers, directors, partners, employees, agents, consultants and subcontractors arising out of:
 - 1. the preparation or approval of, or the failure to prepare or approve, maps, Drawings, opinions, reports, surveys, Change Orders, designs, or Specifications; or
 - 2. giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage.

6.21 *Delegation of Professional Design Services*

- A. Contractor will not be required to provide professional design services unless such services are specifically required by the Contract Documents for a portion of the Work or unless such services are required to carry out Contractor's responsibilities for construction means, methods, techniques, sequences and procedures. Contractor shall not be required to provide professional services in violation of applicable law.
- B. If professional design services or certifications by a design professional related to systems, materials or equipment are specifically required of Contractor by the Contract Documents, Owner and Engineer will specify all performance and design criteria that such services must satisfy. Contractor shall cause such services or certifications to be provided by a properly licensed professional, whose signature and seal shall appear on all drawings, calculations, specifications, certifications, Shop Drawings and other submittals prepared by such professional. Shop Drawings and other submittals related to the Work designed or certified by such professional, if prepared by others, shall bear such professional's written approval when submitted to Engineer.
- C. Owner and Engineer shall be entitled to rely upon the adequacy, accuracy and completeness of the services, certifications or approvals performed by such design professionals, provided Owner and Engineer have specified to Contractor all performance and design criteria that such services must satisfy.
- D. Pursuant to this Paragraph 6.21, Engineer's review and approval of design calculations and design drawings will be only for the limited purpose of checking for conformance with performance and design criteria given and the design concept expressed in the Contract Documents. Engineer's review and approval of Shop Drawings and

other submittals (except design calculations and design drawings) will be only for the purpose stated in Paragraph 6.17.D.1.

- E. Contractor shall not be responsible for the adequacy of the performance or design criteria required by the Contract Documents.

ARTICLE 7 – OTHER WORK AT THE SITE

7.01 *Related Work at Site*

- A. Owner may perform other work related to the Project at the Site with Owner's employees, or via other direct contracts therefor, or have other work performed by utility owners. If such other work is not noted in the Contract Documents, then:
 - 1. written notice thereof will be given to Contractor prior to starting any such other work; and
 - 2. if Owner and Contractor are unable to agree on entitlement to or on the amount or extent, if any, of any adjustment in the Contract Price or Contract Times that should be allowed as a result of such other work, a Claim may be made therefor as provided in Paragraph 10.05.
- B. Contractor shall afford each other contractor who is a party to such a direct contract, each utility owner and Owner, if Owner is performing other work with Owner's employees, proper and safe access to the Site, a reasonable opportunity for the introduction and storage of materials and equipment and the execution of such other work, and shall properly coordinate the Work with theirs. Contractor shall do all cutting, fitting, and patching of the Work that may be required to properly connect or otherwise make its several parts come together and properly integrate with such other work. Contractor shall not endanger any work of others by cutting, excavating, or otherwise altering their work and will only cut or alter their work with the written consent of Engineer and the others whose work will be affected. The duties and responsibilities of Contractor under this Paragraph are for the benefit of such utility owners and other contractors to the extent that there are comparable provisions for the benefit of Contractor in said direct contracts between Owner and such utility owners and other contractors.
- C. If the proper execution or results of any part of Contractor's Work depends upon work performed by others under this Article 7, Contractor shall inspect such other work and promptly report to Engineer in writing any delays, defects, or deficiencies in such other work that render it unavailable or unsuitable for the proper execution and results of Contractor's Work. Contractor's failure to so report will constitute an acceptance of such other work as fit and proper for integration with Contractor's Work except for latent defects and deficiencies in such other work.

7.02 *Coordination*

- A. If Owner intends to contract with others for the performance of other work on the Project at the Site, the following will be set forth in Supplementary Conditions:
 - 1. the individual or entity who will have authority and responsibility for coordination of the activities among the various contractors will be identified;
 - 2. the specific matters to be covered by such authority and responsibility will be itemized; and
 - 3. the extent of such authority and responsibilities will be provided.
- B. Unless otherwise provided in the Supplementary Conditions, Owner shall have sole authority and responsibility for such coordination.

7.03 *Legal Relationships*

- A. Paragraphs 7.01.A and 7.02 are not applicable for utilities not under the control of Owner.
- B. Each other direct contract of Owner under Paragraph 7.01.A shall provide that the other contractor is liable to Owner and Contractor for the reasonable direct delay and disruption costs incurred by Contractor as a result of the other contractor's actions or inactions.
- C. Contractor shall be liable to Owner and any other contractor for the reasonable direct delay and disruption costs incurred by such other contractor as a result of Contractor's action or inactions.

ARTICLE 8 – OWNER'S RESPONSIBILITIES

8.01 *Communications to Contractor*

- A. Except as otherwise provided in these General Conditions, Owner shall issue all communications to Contractor through Engineer.

8.02 *Replacement of Engineer*

- A. In case of termination of the employment of Engineer, Owner shall appoint an engineer to whom Contractor makes no reasonable objection, whose status under the Contract Documents shall be that of the former Engineer.

8.03 *Furnish Data*

- A. Owner shall promptly furnish the data required of Owner under the Contract Documents.

8.04 *Pay When Due*

- A. Owner shall make payments to Contractor when they are due as provided in Paragraphs 14.02.C and 14.07.C.

8.05 *Lands and Easements; Reports and Tests*

- A. Owner's duties in respect of providing lands and easements and providing engineering surveys to establish reference points are set forth in Paragraphs 4.01 and 4.05. Paragraph 4.02 refers to Owner's identifying and making available to Contractor copies of reports of explorations and tests of subsurface conditions and drawings of physical conditions in or relating to existing surface or subsurface structures at or contiguous to the Site that have been utilized by Engineer in preparing the Contract Documents.

8.06 *Insurance*

- A. Owner's responsibilities, if any, in respect to purchasing and maintaining liability and property insurance are set forth in Article 5.

8.07 *Change Orders*

- A. Owner is obligated to execute Change Orders as indicated in Paragraph 10.03.

8.08 *Inspections, Tests, and Approvals*

- A. Owner's responsibility in respect to certain inspections, tests, and approvals is set forth in Paragraph 13.03.B.

8.09 *Limitations on Owner's Responsibilities*

- A. The Owner shall not supervise, direct, or have control or authority over, nor be responsible for, Contractor's means, methods, techniques, sequences, or procedures of construction, or the safety precautions and programs incident thereto, or for any failure of Contractor to comply with Laws and Regulations applicable to the performance of the Work. Owner will not be responsible for Contractor's failure to perform the Work in accordance with the Contract Documents.

8.10 *Undisclosed Hazardous Environmental Condition*

- A. Owner's responsibility in respect to an undisclosed Hazardous Environmental Condition is set forth in Paragraph 4.06.

8.11 *Evidence of Financial Arrangements*

- A. If and to the extent Owner has agreed to furnish Contractor reasonable evidence that financial arrangements have been made to satisfy Owner's obligations under the Contract Documents, Owner's responsibility in respect thereof will be as set forth in the Supplementary Conditions.

ARTICLE 9 – ENGINEER'S STATUS DURING CONSTRUCTION

9.01 *Owner's Representative*

- A. Engineer will be Owner's representative during the construction period. The duties and responsibilities and the limitations of authority of Engineer as Owner's representative during construction are set forth in the Contract Documents and will not be changed without written consent of Owner and Engineer.

9.02 *Visits to Site*

- A. Engineer will make visits to the Site at intervals appropriate to the various stages of construction as Engineer deems necessary in order to observe as an experienced and qualified design professional the progress that has been made and the quality of the various aspects of Contractor's executed Work. Based on information obtained during such visits and observations, Engineer, for the benefit of Owner, will determine, in general, if the Work is proceeding in accordance with the Contract Documents. Engineer will not be required to make exhaustive or continuous inspections on the Site to check the quality or quantity of the Work. Engineer's efforts will be directed toward providing for Owner a greater degree of confidence that the completed Work will conform generally to the Contract Documents. On the basis of such visits and observations, Engineer will keep Owner informed of the progress of the Work and will endeavor to guard Owner against defective Work.
- B. Engineer's visits and observations are subject to all the limitations on Engineer's authority and responsibility set forth in Paragraph 9.09. Particularly, but without limitation, during or as a result of Engineer's visits or observations of Contractor's Work Engineer will not supervise, direct, control, or have authority over or be responsible for Contractor's means, methods, techniques, sequences, or procedures of construction, or the safety precautions and programs incident thereto, or for any failure of Contractor to comply with Laws and Regulations applicable to the performance of the Work.

9.03 *Project Representative*

- A. If Owner and Engineer agree, Engineer will furnish a Resident Project Representative to assist Engineer in providing more extensive observation of the Work. The authority and responsibilities of any such Resident Project Representative and assistants will be as provided in the Supplementary Conditions, and limitations on the responsibilities thereof will be as provided in Paragraph 9.09. If Owner designates another representative or agent to represent Owner at the Site who is not Engineer's consultant, agent or employee, the responsibilities

and authority and limitations thereon of such other individual or entity will be as provided in the Supplementary Conditions.

9.04 *Authorized Variations in Work*

- A. Engineer may authorize minor variations in the Work from the requirements of the Contract Documents which do not involve an adjustment in the Contract Price or the Contract Times and are compatible with the design concept of the completed Project as a functioning whole as indicated by the Contract Documents. These may be accomplished by a Field Order and will be binding on Owner and also on Contractor, who shall perform the Work involved promptly. If Owner or Contractor believes that a Field Order justifies an adjustment in the Contract Price or Contract Times, or both, and the parties are unable to agree on entitlement to or on the amount or extent, if any, of any such adjustment, a Claim may be made therefor as provided in Paragraph 10.05.

9.05 *Rejecting Defective Work*

- A. Engineer will have authority to reject Work which Engineer believes to be defective, or that Engineer believes will not produce a completed Project that conforms to the Contract Documents or that will prejudice the integrity of the design concept of the completed Project as a functioning whole as indicated by the Contract Documents. Engineer will also have authority to require special inspection or testing of the Work as provided in Paragraph 13.04, whether or not the Work is fabricated, installed, or completed.

9.06 *Shop Drawings, Change Orders and Payments*

- A. In connection with Engineer's authority, and limitations thereof, as to Shop Drawings and Samples, see Paragraph 6.17.
- B. In connection with Engineer's authority, and limitations thereof, as to design calculations and design drawings submitted in response to a delegation of professional design services, if any, see Paragraph 6.21.
- C. In connection with Engineer's authority as to Change Orders, see Articles 10, 11, and 12.
- D. In connection with Engineer's authority as to Applications for Payment, see Article 14.

9.07 *Determinations for Unit Price Work*

- A. Engineer will determine the actual quantities and classifications of Unit Price Work performed by Contractor. Engineer will review with Contractor the Engineer's preliminary determinations on such matters before rendering a written decision thereon (by recommendation of an Application for Payment or otherwise). Engineer's written decision thereon will be final and binding (except as modified by Engineer to reflect changed factual conditions or more accurate data) upon Owner and Contractor, subject to the provisions of Paragraph 10.05.

9.08 *Decisions on Requirements of Contract Documents and Acceptability of Work*

- A. Engineer will be the initial interpreter of the requirements of the Contract Documents and judge of the acceptability of the Work thereunder. All matters in question and other matters between Owner and Contractor arising prior to the date final payment is due relating to the acceptability of the Work, and the interpretation of the requirements of the Contract Documents pertaining to the performance of the Work, will be referred initially to Engineer in writing within 30 days of the event giving rise to the question.
- B. Engineer will, with reasonable promptness, render a written decision on the issue referred. If Owner or Contractor believe that any such decision entitles them to an adjustment in the Contract Price or Contract Times or both, a Claim may be made under Paragraph 10.05. The date of Engineer's decision shall be the date of the event giving rise to the issues referenced for the purposes of Paragraph 10.05.B.

- C. Engineer's written decision on the issue referred will be final and binding on Owner and Contractor, subject to the provisions of Paragraph 10.05.
- D. When functioning as interpreter and judge under this Paragraph 9.08, Engineer will not show partiality to Owner or Contractor and will not be liable in connection with any interpretation or decision rendered in good faith in such capacity.

9.09 *Limitations on Engineer's Authority and Responsibilities*

- A. Neither Engineer's authority or responsibility under this Article 9 or under any other provision of the Contract Documents nor any decision made by Engineer in good faith either to exercise or not exercise such authority or responsibility or the undertaking, exercise, or performance of any authority or responsibility by Engineer shall create, impose, or give rise to any duty in contract, tort, or otherwise owed by Engineer to Contractor, any Subcontractor, any Supplier, any other individual or entity, or to any surety for or employee or agent of any of them.
- B. Engineer will not supervise, direct, control, or have authority over or be responsible for Contractor's means, methods, techniques, sequences, or procedures of construction, or the safety precautions and programs incident thereto, or for any failure of Contractor to comply with Laws and Regulations applicable to the performance of the Work. Engineer will not be responsible for Contractor's failure to perform the Work in accordance with the Contract Documents.
- C. Engineer will not be responsible for the acts or omissions of Contractor or of any Subcontractor, any Supplier, or of any other individual or entity performing any of the Work.
- D. Engineer's review of the final Application for Payment and accompanying documentation and all maintenance and operating instructions, schedules, guarantees, bonds, certificates of inspection, tests and approvals, and other documentation required to be delivered by Paragraph 14.07.A will only be to determine generally that their content complies with the requirements of, and in the case of certificates of inspections, tests, and approvals that the results certified indicate compliance with the Contract Documents.
- E. The limitations upon authority and responsibility set forth in this Paragraph 9.09 shall also apply to the Resident Project Representative, if any, and assistants, if any.

ARTICLE 10 – CHANGES IN THE WORK; CLAIMS

10.01 *Authorized Changes in the Work*

- A. Without invalidating the Contract and without notice to any surety, Owner may, subject to written approval by Agency at any time or from time to time, order additions, deletions, or revisions in the Work by a Change Order, or a Work Change Directive. Upon receipt of any such document, Contractor shall promptly proceed with the Work involved which will be performed under the applicable conditions of the Contract Documents (except as otherwise specifically provided).
- B. If Owner and Contractor are unable to agree on entitlement to, or on the amount or extent, if any, of an adjustment in the Contract Price or Contract Times, or both, that should be allowed as a result of a Work Change Directive, a Claim may be made therefor as provided in Paragraph 10.05.

10.02 *Unauthorized Changes in the Work*

- A. Contractor shall not be entitled to an increase in the Contract Price or an extension of the Contract Times with respect to any work performed that is not required by the Contract Documents as amended, modified, or supplemented as provided in Paragraph 3.04, except in the case of an emergency as provided in Paragraph 6.16 or in the case of uncovering Work as provided in Paragraph 13.04.B.

10.03 *Execution of Change Orders*

- A. Owner and Contractor shall execute appropriate Change Orders recommended by Engineer covering:
1. changes in the Work which are: (i) ordered by Owner pursuant to Paragraph 10.01.A, (ii) required because of acceptance of defective Work under Paragraph 13.08.A or Owner's correction of defective Work under Paragraph 13.09, or (iii) agreed to by the parties;
 2. changes in the Contract Price or Contract Times which are agreed to by the parties, including any undisputed sum or amount of time for Work actually performed in accordance with a Work Change Directive; and
 3. changes in the Contract Price or Contract Times which embody the substance of any written decision rendered by Engineer pursuant to Paragraph 10.05; provided that, in lieu of executing any such Change Order, an appeal may be taken from any such decision in accordance with the provisions of the Contract Documents and applicable Laws and Regulations, but during any such appeal, Contractor shall carry on the Work and adhere to the Progress Schedule as provided in Paragraph 6.18.A.

10.04 *Notification to Surety*

- A. If notice of any change affecting the general scope of the Work or the provisions of the Contract Documents (including, but not limited to, Contract Price or Contract Times) is required by the provisions of any bond to be given to a surety, the giving of any such notice will be Contractor's responsibility. The amount of each applicable bond will be adjusted to reflect the effect of any such change.

10.05 *Claims*

- A. *Engineer's Decision Required:* All Claims, except those waived pursuant to Paragraph 14.09, shall be referred to the Engineer for decision. A decision by Engineer shall be required as a condition precedent to any exercise by Owner or Contractor of any rights or remedies either may otherwise have under the Contract Documents or by Laws and Regulations in respect of such Claims.
- B. *Notice:* Written notice stating the general nature of each Claim shall be delivered by the claimant to Engineer and the other party to the Contract promptly (but in no event later than 30 days) after the start of the event giving rise thereto. The responsibility to substantiate a Claim shall rest with the party making the Claim. Notice of the amount or extent of the Claim, with supporting data shall be delivered to the Engineer and the other party to the Contract within 60 days after the start of such event (unless Engineer allows additional time for claimant to submit additional or more accurate data in support of such Claim). A Claim for an adjustment in Contract Price shall be prepared in accordance with the provisions of Paragraph 12.01.B. A Claim for an adjustment in Contract Time shall be prepared in accordance with the provisions of Paragraph 12.02.B. Each Claim shall be accompanied by claimant's written statement that the adjustment claimed is the entire adjustment to which the claimant believes it is entitled as a result of said event. The opposing party shall submit any response to Engineer and the claimant within 30 days after receipt of the claimant's last submittal (unless Engineer allows additional time).
- C. *Engineer's Action:* Engineer will review each Claim and, within 30 days after receipt of the last submittal of the claimant or the last submittal of the opposing party, if any, take one of the following actions in writing:
1. deny the Claim in whole or in part,
 2. approve the Claim, or
 3. notify the parties that the Engineer is unable to resolve the Claim if, in the Engineer's sole discretion, it would be inappropriate for the Engineer to do so. For purposes of further resolution of the Claim, such notice shall be deemed a denial.

- D. In the event that Engineer does not take action on a Claim within said 30 days, the Claim shall be deemed denied.
- E. Engineer's written action under Paragraph 10.05.C or denial pursuant to Paragraphs 10.05.C.3 or 10.05.D will be final and binding upon Owner and Contractor, unless Owner or Contractor invoke the dispute resolution procedure set forth in Article 16 within 30 days of such action or denial.
- F. No Claim for an adjustment in Contract Price or Contract Times will be valid if not submitted in accordance with this Paragraph 10.05.

ARTICLE 11 – COST OF THE WORK; ALLOWANCES; UNIT PRICE WORK

11.01 *Cost of the Work*

- A. *Costs Included:* The term Cost of the Work means the sum of all costs, except those excluded in Paragraph 11.01.B, necessarily incurred and paid by Contractor in the proper performance of the Work. When the value of any Work covered by a Change Order or when a Claim for an adjustment in Contract Price is determined on the basis of Cost of the Work, the costs to be reimbursed to Contractor will be only those additional or incremental costs required because of the change in the Work or because of the event giving rise to the Claim. Except as otherwise may be agreed to in writing by Owner, such costs shall be in amounts no higher than those prevailing in the locality of the Project, shall include only the following items, and shall not include any of the costs itemized in Paragraph 11.01.B.
 - 1. Payroll costs for employees in the direct employ of Contractor in the performance of the Work under schedules of job classifications agreed upon by Owner and Contractor. Such employees shall include, without limitation, superintendents, foremen, and other personnel employed full time at the Site. Payroll costs for employees not employed full time on the Work shall be apportioned on the basis of their time spent on the Work. Payroll costs shall include, but not be limited to, salaries and wages plus the cost of fringe benefits, which shall include social security contributions, unemployment, excise, and payroll taxes, workers' compensation, health and retirement benefits, bonuses, sick leave, vacation and holiday pay applicable thereto. The expenses of performing Work outside of regular working hours, on Saturday, Sunday, or legal holidays, shall be included in the above to the extent authorized by Owner.
 - 2. Cost of all materials and equipment furnished and incorporated in the Work, including costs of transportation and storage thereof, and Suppliers' field services required in connection therewith. All cash discounts shall accrue to Contractor unless Owner deposits funds with Contractor with which to make payments, in which case the cash discounts shall accrue to Owner. All trade discounts, rebates and refunds and returns from sale of surplus materials and equipment shall accrue to Owner, and Contractor shall make provisions so that they may be obtained.
 - 3. Payments made by Contractor to Subcontractors for Work performed by Subcontractors. If required by Owner, Contractor shall obtain competitive bids from subcontractors acceptable to Owner and Contractor and shall deliver such bids to Owner, who will then determine, with the advice of Engineer, which bids, if any, will be acceptable. If any subcontract provides that the Subcontractor is to be paid on the basis of Cost of the Work plus a fee, the Subcontractor's Cost of the Work and fee shall be determined in the same manner as Contractor's Cost of the Work and fee as provided in this Paragraph 11.01.
 - 4. Costs of special consultants (including but not limited to Engineers, architects, testing laboratories, surveyors, attorneys, and accountants) employed for services specifically related to the Work.
 - 5. Supplemental costs including the following:
 - a. The proportion of necessary transportation, travel, and subsistence expenses of Contractor's employees incurred in discharge of duties connected with the Work.

- b. Cost, including transportation and maintenance, of all materials, supplies, equipment, machinery, appliances, office, and temporary facilities at the Site, and hand tools not owned by the workers, which are consumed in the performance of the Work, and cost, less market value, of such items used but not consumed which remain the property of Contractor.
- c. Rentals of all construction equipment and machinery, and the parts thereof whether rented from Contractor or others in accordance with rental agreements approved by Owner with the advice of Engineer, and the costs of transportation, loading, unloading, assembly, dismantling, and removal thereof. All such costs shall be in accordance with the terms of said rental agreements. The rental of any such equipment, machinery, or parts shall cease when the use thereof is no longer necessary for the Work.
- d. Sales, consumer, use, and other similar taxes related to the Work, and for which Contractor is liable, imposed by Laws and Regulations.
- e. Deposits lost for causes other than negligence of Contractor, any Subcontractor, or anyone directly or indirectly employed by any of them or for whose acts any of them may be liable, and royalty payments and fees for permits and licenses.
- f. Losses and damages (and related expenses) caused by damage to the Work, not compensated by insurance or otherwise, sustained by Contractor in connection with the performance of the Work (except losses and damages within the deductible amounts of property insurance established in accordance with Paragraph 5.06.D), provided such losses and damages have resulted from causes other than the negligence of Contractor, any Subcontractor, or anyone directly or indirectly employed by any of them or for whose acts any of them may be liable. Such losses shall include settlements made with the written consent and approval of Owner. No such losses, damages, and expenses shall be included in the Cost of the Work for the purpose of determining Contractor's fee.
- g. The cost of utilities, fuel, and sanitary facilities at the Site.
- h. Minor expenses such as telegrams, long distance telephone calls, telephone service at the Site, expressages, and similar petty cash items in connection with the Work.
- i. The costs of premiums for all bonds and insurance Contractor is required by the Contract Documents to purchase and maintain.

B. *Costs Excluded:* The term Cost of the Work shall not include any of the following items:

- 1. Payroll costs and other compensation of Contractor's officers, executives, principals (of partnerships and sole proprietorships), general managers, safety managers, engineers, architects, estimators, attorneys, auditors, accountants, purchasing and contracting agents, expeditors, timekeepers, clerks, and other personnel employed by Contractor, whether at the Site or in Contractor's principal or branch office for general administration of the Work and not specifically included in the agreed upon schedule of job classifications referred to in Paragraph 11.01.A.1 or specifically covered by Paragraph 11.01.A.4, all of which are to be considered administrative costs covered by the Contractor's fee.
- 2. Expenses of Contractor's principal and branch offices other than Contractor's office at the Site.
- 3. Any part of Contractor's capital expenses, including interest on Contractor's capital employed for the Work and charges against Contractor for delinquent payments.
- 4. Costs due to the negligence of Contractor, any Subcontractor, or anyone directly or indirectly employed by any of them or for whose acts any of them may be liable, including but not limited to, the correction of

defective Work, disposal of materials or equipment wrongly supplied, and making good any damage to property.

5. Other overhead or general expense costs of any kind and the costs of any item not specifically and expressly included in Paragraphs 11.01.A and 11.01.B.
- C. **Contractor's Fee:** When all the Work is performed on the basis of cost-plus, Contractor's fee shall be determined as set forth in the Agreement. When the value of any Work covered by a Change Order or when a Claim for an adjustment in Contract Price is determined on the basis of Cost of the Work, Contractor's fee shall be determined as set forth in Paragraph 12.01.C.
- D. **Documentation:** Whenever the Cost of the Work for any purpose is to be determined pursuant to Paragraphs 11.01.A and 11.01.B, Contractor will establish and maintain records thereof in accordance with generally accepted accounting practices and submit in a form acceptable to Engineer an itemized cost breakdown together with supporting data.

11.02 *Allowances*

- A. It is understood that Contractor has included in the Contract Price all allowances so named in the Contract Documents and shall cause the Work so covered to be performed for such sums and by such persons or entities as may be acceptable to Owner and Engineer.
- B. **Cash Allowances**
 1. Contractor agrees that:
 - a. the cash allowances include the cost to Contractor (less any applicable trade discounts) of materials and equipment required by the allowances to be delivered at the Site, and all applicable taxes; and
 - b. Contractor's costs for unloading and handling on the Site, labor, installation, overhead, profit, and other expenses contemplated for the cash allowances have been included in the Contract Price and not in the allowances, and no demand for additional payment on account of any of the foregoing will be valid.
- C. **Contingency Allowance**
 1. Contractor agrees that a contingency allowance, if any, is for the sole use of Owner to cover unanticipated costs.
- D. Prior to final payment, an appropriate Change Order will be issued as recommended by Engineer to reflect actual amounts due Contractor on account of Work covered by allowances, and the Contract Price shall be correspondingly adjusted.

11.03 *Unit Price Work*

- A. Where the Contract Documents provide that all or part of the Work is to be Unit Price Work, initially the Contract Price will be deemed to include for all Unit Price Work an amount equal to the sum of the unit price for each separately identified item of Unit Price Work times the estimated quantity of each item as indicated in the Agreement.
- B. The estimated quantities of items of Unit Price Work are not guaranteed and are solely for the purpose of comparison of Bids and determining an initial Contract Price. Determinations of the actual quantities and classifications of Unit Price Work performed by Contractor will be made by Engineer subject to the provisions of Paragraph 9.07.

- C. Each unit price will be deemed to include an amount considered by Contractor to be adequate to cover Contractor's overhead and profit for each separately identified item.
- D. Owner or Contractor may make a Claim for an adjustment in the Contract Price in accordance with Paragraph 10.05 if:
 - 1. the Bid price of a particular item of Unit Price Work amounts to more than 5 percent of the Contract Price and the variation in the quantity of that particular item of Unit Price Work performed by Contractor differs by more than 25 percent from the estimated quantity of such item indicated in the Agreement; and
 - 2. there is no corresponding adjustment with respect to any other item of Work; and
 - 3. Contractor believes that Contractor is entitled to an increase in Contract Price as a result of having incurred additional expense or Owner believes that Owner is entitled to a decrease in Contract Price and the parties are unable to agree as to the amount of any such increase or decrease.

ARTICLE 12 – CHANGE OF CONTRACT PRICE; CHANGE OF CONTRACT TIMES

12.01 *Change of Contract Price*

- A. The Contract Price may only be changed by a Change Order. Any Claim for an adjustment in the Contract Price shall be based on written notice submitted by the party making the Claim to the Engineer and the other party to the Contract in accordance with the provisions of Paragraph 10.05.
- B. The value of any Work covered by a Change Order or of any Claim for an adjustment in the Contract Price will be determined as follows:
 - 1. where the Work involved is covered by unit prices contained in the Contract Documents, by application of such unit prices to the quantities of the items involved (subject to the provisions of Paragraph 11.03); or
 - 2. where the Work involved is not covered by unit prices contained in the Contract Documents, by a mutually agreed lump sum (which may include an allowance for overhead and profit not necessarily in accordance with Paragraph 12.01.C.2); or
 - 3. where the Work involved is not covered by unit prices contained in the Contract Documents and agreement to a lump sum is not reached under Paragraph 12.01.B.2, on the basis of the Cost of the Work (determined as provided in Paragraph 11.01) plus a Contractor's fee for overhead and profit (determined as provided in Paragraph 12.01.C).
- C. Contractor's Fee: The Contractor's fee for overhead and profit shall be determined as follows:
 - 1. a mutually acceptable fixed fee; or
 - 2. if a fixed fee is not agreed upon, then a fee based on the following percentages of the various portions of the Cost of the Work:
 - a. for costs incurred under Paragraphs 11.01.A.1 and 11.01.A.2, the Contractor's fee shall be 15 percent;
 - b. for costs incurred under Paragraph 11.01.A.3, the Contractor's fee shall be five percent;
 - c. where one or more tiers of subcontracts are on the basis of Cost of the Work plus a fee and no fixed fee is agreed upon, the intent of Paragraph 12.01.C.2.a is that the Subcontractor who actually performs the Work, at whatever tier, will be paid a fee of 15 percent of the costs incurred by such Subcontractor

under Paragraphs 11.01.A.1 and 11.01.A.2 and that any higher tier Subcontractor and Contractor will each be paid a fee of five percent of the amount paid to the next lower tier Subcontractor;

- d. no fee shall be payable on the basis of costs itemized under Paragraphs 11.01.A.4, 11.01.A.5, and 11.01.B;
- e. the amount of credit to be allowed by Contractor to Owner for any change which results in a net decrease in cost will be the amount of the actual net decrease in cost plus a deduction in Contractor's fee by an amount equal to five percent of such net decrease; and
- f. when both additions and credits are involved in any one change, the adjustment in Contractor's fee shall be computed on the basis of the net change in accordance with Paragraphs 12.01.C.2.a through 12.01.C.2.e, inclusive.

12.02 *Change of Contract Times*

- A. The Contract Times may only be changed by a Change Order. Any Claim for an adjustment in the Contract Times shall be based on written notice submitted by the party making the Claim to the Engineer and the other party to the Contract in accordance with the provisions of Paragraph 10.05.
- B. Any adjustment of the Contract Times covered by a Change Order or any Claim for an adjustment in the Contract Times will be determined in accordance with the provisions of this Article 12.

12.03 *Delays*

- A. Where Contractor is prevented from completing any part of the Work within the Contract Times due to delay beyond the control of Contractor, the Contract Times will be extended in an amount equal to the time lost due to such delay if a Claim is made therefor as provided in Paragraph 12.02.A. Delays beyond the control of Contractor shall include, but not be limited to, acts or neglect by Owner, acts or neglect of utility owners or other contractors performing other work as contemplated by Article 7, fires, floods, epidemics, abnormal weather conditions, or acts of God.
- B. If Owner, Engineer, or other contractors or utility owners performing other work for Owner as contemplated by Article 7, or anyone for whom Owner is responsible, delays, disrupts, or interferes with the performance or progress of the Work, then Contractor shall be entitled to an equitable adjustment in the Contract Price or the Contract Times, or both. Contractor's entitlement to an adjustment of the Contract Times is conditioned on such adjustment being essential to Contractor's ability to complete the Work within the Contract Times.
- C. If Contractor is delayed in the performance or progress of the Work by fire, flood, epidemic, abnormal weather conditions, acts of God, acts or failures to act of utility owners not under the control of Owner, or other causes not the fault of and beyond control of Owner and Contractor, then Contractor shall be entitled to an equitable adjustment in Contract Times, if such adjustment is essential to Contractor's ability to complete the Work within the Contract Times. Such an adjustment shall be Contractor's sole and exclusive remedy for the delays described in this Paragraph 12.03.B.
 - 1. delays caused by or within the control of Contractor; or
- D. Owner, Engineer and the Related Entities of each of them shall not be liable to Contractor for any claims, costs, losses, or damages (including but not limited to all fees and charges of Engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) sustained by Contractor on or in connection with any other project or anticipated project.

- E. Contractor shall not be entitled to an adjustment in Contract Price or Contract Times for delays within the control of Contractor. Delays attributable to and within the control of a Subcontractor or Supplier shall be deemed to be delays within the control of Contractor.

ARTICLE 13 – TESTS AND INSPECTIONS; CORRECTION, REMOVAL OR ACCEPTANCE OF DEFECTIVE WORK

13.01 *Notice of Defects*

- A. Prompt notice of all defective Work of which Owner or Engineer has actual knowledge will be given to Contractor. All defective Work may be rejected, corrected, or accepted as provided in this Article 13.

13.02 *Access to Work*

- A. Owner, Engineer, their consultants and other representatives and personnel of Owner, independent testing laboratories, and governmental agencies with jurisdictional interests will have access to the Site and the Work at reasonable times for their observation, inspecting, and testing. Contractor shall provide them proper and safe conditions for such access and advise them of Contractor's Site safety procedures and programs so that they may comply therewith as applicable.

13.03 *Tests and Inspections*

- A. Contractor shall give Engineer timely notice of readiness of the Work for all required inspections, tests, or approvals and shall cooperate with inspection and testing personnel to facilitate required inspections or tests.
- B. Owner shall employ and pay for the services of an independent testing laboratory to perform all inspections, tests, or approvals required by the Contract Documents except:
 - 1. for inspections, tests, or approvals covered by Paragraphs 13.03.C and 13.03.D below;
 - 2. that costs incurred in connection with tests or inspections conducted pursuant to Paragraph 13.04.B shall be paid as provided in said Paragraph 13.04.C; and
 - 3. as otherwise specifically provided in the Contract Documents.
- C. If Laws or Regulations of any public body having jurisdiction require any Work (or part thereof) specifically to be inspected, tested, or approved by an employee or other representative of such public body, Contractor shall assume full responsibility for arranging and obtaining such inspections, tests, or approvals, pay all costs in connection therewith, and furnish Engineer the required certificates of inspection or approval.
- D. Contractor shall be responsible for arranging and obtaining and shall pay all costs in connection with any inspections, tests, or approvals required for Owner's and Engineer's acceptance of materials or equipment to be incorporated in the Work; or acceptance of materials, mix designs, or equipment submitted for approval prior to Contractor's purchase thereof for incorporation in the Work. Such inspections, tests, or approvals shall be performed by organizations acceptable to Owner and Engineer.
- E. If any Work (or the work of others) that is to be inspected, tested, or approved is covered by Contractor without written concurrence of Engineer, it must, if requested by Engineer, be uncovered for observation.
- F. Uncovering Work as provided in Paragraph 13.03.E shall be at Contractor's expense unless Contractor has given Engineer timely notice of Contractor's intention to cover the same and Engineer has not acted with reasonable promptness in response to such notice.

13.04 *Uncovering Work*

- A. If any Work is covered contrary to the written request of Engineer, it must, if requested by Engineer, be uncovered for Engineer's observation and replaced at Contractor's expense.
- B. If Engineer considers it necessary or advisable that covered Work be observed by Engineer or inspected or tested by others, Contractor, at Engineer's request, shall uncover, expose, or otherwise make available for observation, inspection, or testing as Engineer may require, that portion of the Work in question, furnishing all necessary labor, material, and equipment.
- C. If it is found that the uncovered Work is defective, Contractor shall pay all claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) arising out of or relating to such uncovering, exposure, observation, inspection, and testing, and of satisfactory replacement or reconstruction (including but not limited to all costs of repair or replacement of work of others); and Owner shall be entitled to an appropriate decrease in the Contract Price. If the parties are unable to agree as to the amount thereof, Owner may make a Claim therefor as provided in Paragraph 10.05.
- D. If, the uncovered Work is not found to be defective, Contractor shall be allowed an increase in the Contract Price or an extension of the Contract Times, or both, directly attributable to such uncovering, exposure, observation, inspection, testing, replacement, and reconstruction. If the parties are unable to agree as to the amount or extent thereof, Contractor may make a Claim therefor as provided in Paragraph 10.05.

13.05 *Owner May Stop the Work*

- A. If the Work is defective, or Contractor fails to supply sufficient skilled workers or suitable materials or equipment, or fails to perform the Work in such a way that the completed Work will conform to the Contract Documents, Owner may order Contractor to stop the Work, or any portion thereof, until the cause for such order has been eliminated; however, this right of Owner to stop the Work shall not give rise to any duty on the part of Owner to exercise this right for the benefit of Contractor, any Subcontractor, any Supplier, any other individual or entity, or any surety for, or employee or agent of any of them.

13.06 *Correction or Removal of Defective Work*

- A. Promptly after receipt of notice, Contractor shall correct all defective Work, whether or not fabricated, installed, or completed, or, if the Work has been rejected by Engineer, remove it from the Project and replace it with Work that is not defective. Contractor shall pay all claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) arising out of or relating to such correction or removal (including but not limited to all costs of repair or replacement of work of others).
- B. When correcting defective Work under the terms of this Paragraph 13.06 or Paragraph 13.07, Contractor shall take no action that would void or otherwise impair Owner's special warranty and guarantee, if any, on said Work.

13.07 *Correction Period*

- A. If within one year after the date of Substantial Completion (or such longer period of time as may be prescribed by the terms of any applicable special guarantee required by the Contract Documents) or by any specific provision of the Contract Documents, any Work is found to be defective, or if the repair of any damages to the land or areas made available for Contractor's use by Owner or permitted by Laws and Regulations as contemplated in Paragraph 6.11.A is found to be defective, Contractor shall promptly, without cost to Owner and in accordance with Owner's written instructions:
 - 1. repair such defective land or areas; or

2. correct such defective Work; or
 3. if the defective Work has been rejected by Owner, remove it from the Project and replace it with Work that is not defective, and
 4. satisfactorily correct or repair or remove and replace any damage to other Work, to the work of others or other land or areas resulting therefrom.
- B. If Contractor does not promptly comply with the terms of Owner's written instructions, or in an emergency where delay would cause serious risk of loss or damage, Owner may have the defective Work corrected or repaired or may have the rejected Work removed and replaced. All claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) arising out of or relating to such correction or repair or such removal and replacement (including but not limited to all costs of repair or replacement of work of others) will be paid by Contractor.
- C. In special circumstances where a particular item of equipment is placed in continuous service before Substantial Completion of all the Work, the correction period for that item may start to run from an earlier date if so provided in the Specifications.
- D. Where defective Work (and damage to other Work resulting therefrom) has been corrected or removed and replaced under this Paragraph 13.07, the correction period hereunder with respect to such Work will be extended for an additional period of one year after such correction or removal and replacement has been satisfactorily completed.
- E. Contractor's obligations under this Paragraph 13.07 are in addition to any other obligation or warranty. The provisions of this Paragraph 13.07 shall not be construed as a substitute for or a waiver of the provisions of any applicable statute of limitation or repose.

13.08 *Acceptance of Defective Work*

- A. If, instead of requiring correction or removal and replacement of defective Work, Owner (and, prior to Engineer's recommendation of final payment, Engineer) prefers to accept it, Owner may do so. Contractor shall pay all claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) attributable to Owner's evaluation of and determination to accept such defective Work (such costs to be approved by Engineer as to reasonableness) and the diminished value of the Work to the extent not otherwise paid by Contractor pursuant to this sentence. If any such acceptance occurs prior to Engineer's recommendation of final payment, a Change Order will be issued incorporating the necessary revisions in the Contract Documents with respect to the Work, and Owner shall be entitled to an appropriate decrease in the Contract Price, reflecting the diminished value of Work so accepted. If the parties are unable to agree as to the amount thereof, Owner may make a Claim therefor as provided in Paragraph 10.05. If the acceptance occurs after such recommendation, an appropriate amount will be paid by Contractor to Owner.

13.09 *Owner May Correct Defective Work*

- A. If Contractor fails within a reasonable time after written notice from Engineer to correct defective Work or to remove and replace rejected Work as required by Engineer in accordance with Paragraph 13.06.A, or if Contractor fails to perform the Work in accordance with the Contract Documents, or if Contractor fails to comply with any other provision of the Contract Documents, Owner may, after seven days written notice to Contractor, correct or remedy any such deficiency.
- B. In exercising the rights and remedies under this Paragraph 13.09, Owner shall proceed expeditiously. In connection with such corrective or remedial action, Owner may exclude Contractor from all or part of the Site,

take possession of all or part of the Work and suspend Contractor's services related thereto, take possession of Contractor's tools, appliances, construction equipment and machinery at the Site, and incorporate in the Work all materials and equipment stored at the Site or for which Owner has paid Contractor but which are stored elsewhere. Contractor shall allow Owner, Owner's representatives, agents and employees, Owner's other contractors, and Engineer and Engineer's consultants access to the Site to enable Owner to exercise the rights and remedies under this Paragraph.

- C. All claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) incurred or sustained by Owner in exercising the rights and remedies under this Paragraph 13.09 will be charged against Contractor, and a Change Order will be issued incorporating the necessary revisions in the Contract Documents with respect to the Work; and Owner shall be entitled to an appropriate decrease in the Contract Price. If the parties are unable to agree as to the amount of the adjustment, Owner may make a Claim therefor as provided in Paragraph 10.05. Such claims, costs, losses and damages will include but not be limited to all costs of repair, or replacement of work of others destroyed or damaged by correction, removal, or replacement of Contractor's defective Work.
- D. Contractor shall not be allowed an extension of the Contract Times because of any delay in the performance of the Work attributable to the exercise by Owner of Owner's rights and remedies under this Paragraph 13.09.

ARTICLE 14 – PAYMENTS TO CONTRACTOR AND COMPLETION

14.01 *Schedule of Values*

- A. The Schedule of Values established as provided in Paragraph 2.07.A will serve as the basis for progress payments and will be incorporated into a form of Application for Payment acceptable to Engineer. Progress payments on account of Unit Price Work will be based on the number of units completed.

14.02 *Progress Payments*

A. *Applications for Payments*

- 1. At least 20 days before the date established in the Agreement for each progress payment (but not more often than once a month), Contractor shall submit to Engineer for review an Application for Payment filled out and signed by Contractor covering the Work completed as of the date of the Application and accompanied by such supporting documentation as is required by the Contract Documents. If payment is requested on the basis of materials and equipment not incorporated in the Work but delivered and suitably stored at the Site or at another location agreed to in writing, the Application for Payment shall also be accompanied by a bill of sale, invoice, or other documentation warranting that Owner has received the materials and equipment free and clear of all Liens and evidence that the materials and equipment are covered by appropriate property insurance or other arrangements to protect Owner's interest therein, all of which must be satisfactory to Owner.
- 2. Beginning with the second Application for Payment, each Application shall include an affidavit of Contractor stating that all previous progress payments received on account of the Work have been applied on account to discharge Contractor's legitimate obligations associated with prior Applications for Payment.
- 3. The amount of retainage with respect to progress payments will be as stipulated in the Agreement.

B. *Review of Applications*

- 1. Engineer will, within 10 days after receipt of each Application for Payment, either indicate in writing a recommendation of payment and present the Application to Owner or return the Application to Contractor

indicating in writing Engineer's reasons for refusing to recommend payment. In the latter case, Contractor may make the necessary corrections and resubmit the Application.

2. Engineer's recommendation of any payment requested in an Application for Payment will constitute a representation by Engineer to Owner, based on Engineer's observations on the Site of the executed Work as an experienced and qualified design professional and on Engineer's review of the Application for Payment and the accompanying data and schedules, that to the best of Engineer's knowledge, information and belief:
 - a. the Work has progressed to the point indicated;
 - b. the quality of the Work is generally in accordance with the Contract Documents (subject to an evaluation of the Work as a functioning whole prior to or upon Substantial Completion, to the results of any subsequent tests called for in the Contract Documents, to a final determination of quantities and classifications for Unit Price Work under Paragraph 9.07, and to any other qualifications stated in the recommendation); and
 - c. the conditions precedent to Contractor's being entitled to such payment appear to have been fulfilled in so far as it is Engineer's responsibility to observe the Work.
3. By recommending any such payment Engineer will not thereby be deemed to have represented that:
 - a. inspections made to check the quality or the quantity of the Work as it has been performed have been exhaustive, extended to every aspect of the Work in progress, or involved detailed inspections of the Work beyond the responsibilities specifically assigned to Engineer in the Contract Documents; or
 - b. that there may not be other matters or issues between the parties that might entitle Contractor to be paid additionally by Owner or entitle Owner to withhold payment to Contractor.
4. Neither Engineer's review of Contractor's Work for the purposes of recommending payments nor Engineer's recommendation of any payment, including final payment, will impose responsibility on Engineer:
 - a. to supervise, direct, or control the Work, or
 - b. for the means, methods, techniques, sequences, or procedures of construction, or the safety precautions and programs incident thereto, or
 - c. for Contractor's failure to comply with Laws and Regulations applicable to Contractor's performance of the Work, or
 - d. to make any examination to ascertain how or for what purposes Contractor has used the moneys paid on account of the Contract Price, or
 - e. to determine that title to any of the Work, materials, or equipment has passed to Owner free and clear of any Liens.
5. Engineer may refuse to recommend the whole or any part of any payment if, in Engineer's opinion, it would be incorrect to make the representations to Owner stated in Paragraph 14.02.B.2. Engineer may also refuse to recommend any such payment or, because of subsequently discovered evidence or the results of subsequent inspections or tests, revise or revoke any such payment recommendation previously made, to such extent as may be necessary in Engineer's opinion to protect Owner from loss because:
 - a. the Work is defective, or completed Work has been damaged, requiring correction or replacement;
 - b. the Contract Price has been reduced by Change Orders;

- c. Owner has been required to correct defective Work or complete Work in accordance with Paragraph 13.09; or
- d. Engineer has actual knowledge of the occurrence of any of the events enumerated in Paragraph 15.02.A.

C. *Payment Becomes Due*

- 1. Ten days after presentation of the Application for Payment to Owner with Engineer's recommendation, the amount recommended will (subject to the provisions of Paragraph 14.02.D) become due, and when due will be paid by Owner to Contractor.

D. *Reduction in Payment*

- 1. Owner may refuse to make payment of the full amount recommended by Engineer because:
 - a. claims have been made against Owner on account of Contractor's performance or furnishing of the Work;
 - b. Liens have been filed in connection with the Work, except where Contractor has delivered a specific bond satisfactory to Owner to secure the satisfaction and discharge of such Liens;
 - c. the Contractor's performance or furnishing of the Work is inconsistent with funding Agency requirements;
 - d. there are other items entitling Owner to a set-off against the amount recommended; or
 - e. Owner has actual knowledge of the occurrence of any of the events enumerated in Paragraphs 14.02.B.5.a through 14.02.B.5.c or Paragraph 15.02.A.
- 2. If Owner refuses to make payment of the full amount recommended by Engineer, Owner will give Contractor immediate written notice (with a copy to Engineer) stating the reasons for such action and promptly pay Contractor any amount remaining after deduction of the amount so withheld. Owner shall promptly pay Contractor the amount so withheld, or any adjustment thereto agreed to by Owner and Contractor, when Contractor corrects to Owner's satisfaction the reasons for such action.
- 3. If it is subsequently determined that Owner's refusal of payment was not justified, the amount wrongfully withheld shall be treated as an amount due as determined by Paragraph 14.02.C.1.

14.03 *Contractor's Warranty of Title*

- A. Contractor warrants and guarantees that title to all Work, materials, and equipment covered by any Application for Payment, whether incorporated in the Project or not, will pass to Owner no later than the time of payment free and clear of all Liens.

14.04 *Substantial Completion*

- A. When Contractor considers the entire Work ready for its intended use Contractor shall notify Owner and Engineer in writing that the entire Work is substantially complete (except for items specifically listed by Contractor as incomplete) and request that Engineer issue a certificate of Substantial Completion.
- B. Promptly after Contractor's notification, Owner, Agency, Contractor, and Engineer shall make a prefinal inspection of the Work to determine the status of completion. If Engineer does not consider the Work substantially complete, Engineer will notify Contractor in writing giving the reasons therefor.

- C. If Engineer considers the Work substantially complete, Engineer will deliver to Owner a tentative certificate of Substantial Completion which shall fix the date of Substantial Completion. There shall be attached to the certificate a tentative list of items to be completed or corrected before final payment. Owner shall have seven days after receipt of the tentative certificate during which to make written objection to Engineer as to any provisions of the certificate or attached list. If, after considering such objections, Engineer concludes that the Work is not substantially complete, Engineer will within 14 days after submission of the tentative certificate to Owner notify Contractor in writing, stating the reasons therefor. If, after consideration of Owner's objections, Engineer considers the Work substantially complete, Engineer will within said 14 days execute and deliver to Owner and Contractor a definitive certificate of Substantial Completion (with a revised tentative list of items to be completed or corrected) reflecting such changes from the tentative certificate as Engineer believes justified after consideration of any objections from Owner.
- D. At the time of delivery of the tentative certificate of Substantial Completion, Engineer will deliver to Owner and Contractor a written recommendation as to division of responsibilities pending final payment between Owner and Contractor with respect to security, operation, safety, and protection of the Work, maintenance, heat, utilities, insurance, and warranties and guarantees. Unless Owner and Contractor agree otherwise in writing and so inform Engineer in writing prior to Engineer's issuing the definitive certificate of Substantial Completion, Engineer's aforesaid recommendation will be binding on Owner and Contractor until final payment.
- E. Owner shall have the right to exclude Contractor from the Site after the date of Substantial Completion subject to allowing Contractor reasonable access to complete or correct items on the tentative list.

14.05 *Partial Utilization*

- A. Prior to Substantial Completion of all the Work, Owner may use or occupy any substantially completed part of the Work which has specifically been identified in the Contract Documents, or which Owner, Engineer, and Contractor agree constitutes a separately functioning and usable part of the Work that can be used by Owner for its intended purpose without significant interference with Contractor's performance of the remainder of the Work, subject to the following conditions.
 - 1. Owner at any time may request Contractor in writing to permit Owner to use or occupy any such part of the Work which Owner believes to be ready for its intended use and substantially complete. If and when Contractor agrees that such part of the Work is substantially complete, Contractor will certify to Owner and Engineer that such part of the Work is substantially complete and request Engineer to issue a certificate of Substantial Completion for that part of the Work.
 - 2. Contractor at any time may notify Owner and Engineer in writing that Contractor considers any such part of the Work ready for its intended use and substantially complete and request Engineer to issue a certificate of Substantial Completion for that part of the Work.
 - 3. Within a reasonable time after either such request, Owner, Contractor, and Engineer shall make an inspection of that part of the Work to determine its status of completion. If Engineer does not consider that part of the Work to be substantially complete, Engineer will notify Owner and Contractor in writing giving the reasons therefor. If Engineer considers that part of the Work to be substantially complete, the provisions of Paragraph 14.04 will apply with respect to certification of Substantial Completion of that part of the Work and the division of responsibility in respect thereof and access thereto.
 - 4. No use or occupancy or separate operation of part of the Work may occur prior to compliance with the requirements of Paragraph 5.10 regarding property insurance.

14.06 *Final Inspection*

- A. Upon written notice from Contractor that the entire Work or an agreed portion thereof is complete, Engineer will promptly make a final inspection with Owner, Agency, and Contractor and will notify Contractor in writing of all

particulars in which this inspection reveals that the Work is incomplete or defective. Contractor shall immediately take such measures as are necessary to complete such Work or remedy such deficiencies.

14.07 *Final Payment*

A. Application for Payment

1. After Contractor has, in the opinion of Engineer, satisfactorily completed all corrections identified during the final inspection and has delivered, in accordance with the Contract Documents, all maintenance and operating instructions, schedules, guarantees, bonds, certificates or other evidence of insurance certificates of inspection, marked-up record documents (as provided in Paragraph 6.12), and other documents, Contractor may make application for final payment following the procedure for progress payments.
2. The final Application for Payment shall be accompanied (except as previously delivered) by:
 - a. all documentation called for in the Contract Documents, including but not limited to the evidence of insurance required by Paragraph 5.04.B.7;
 - b. consent of the surety, if any, to final payment;
 - c. a list of all Claims against Owner that Contractor believes are unsettled; and
 - d. complete and legally effective releases or waivers (satisfactory to Owner) of all Lien rights arising out of or Liens filed in connection with the Work.
3. In lieu of the releases or waivers of Liens specified in Paragraph 14.07.A.2 and as approved by Owner, Contractor may furnish receipts or releases in full and an affidavit of Contractor that: (i) the releases and receipts include all labor, services, material, and equipment for which a Lien could be filed; and (ii) all payrolls, material and equipment bills, and other indebtedness connected with the Work for which Owner or Owner's property might in any way be responsible have been paid or otherwise satisfied. If any Subcontractor or Supplier fails to furnish such a release or receipt in full, Contractor may furnish a bond or other collateral satisfactory to Owner to indemnify Owner against any Lien.

B. Engineer's Review of Application and Acceptance

1. If, on the basis of Engineer's observation of the Work during construction and final inspection, and Engineer's review of the final Application for Payment and accompanying documentation as required by the Contract Documents, Engineer is satisfied that the Work has been completed and Contractor's other obligations under the Contract Documents have been fulfilled, Engineer will, within ten days after receipt of the final Application for Payment, indicate in writing Engineer's recommendation of payment and present the Application for Payment to Owner for payment. At the same time Engineer will also give written notice to Owner and Contractor that the Work is acceptable subject to the provisions of Paragraph 14.09. Otherwise, Engineer will return the Application for Payment to Contractor, indicating in writing the reasons for refusing to recommend final payment, in which case Contractor shall make the necessary corrections and resubmit the Application for Payment.

C. Payment Becomes Due

1. Thirty days after the presentation to Owner of the Application for Payment and accompanying documentation, the amount recommended by Engineer, less any sum Owner is entitled to set off against Engineer's recommendation, including but not limited to liquidated damages, will become due and will be paid by Owner to Contractor.

14.08 *Final Completion Delayed*

- A. If, through no fault of Contractor, final completion of the Work is significantly delayed, and if Engineer so confirms, Owner shall, upon receipt of Contractor's final Application for Payment (for Work fully completed and accepted) and recommendation of Engineer, and without terminating the Contract, make payment of the balance due for that portion of the Work fully completed and accepted. If the remaining balance to be held by Owner for Work not fully completed or corrected is less than the retainage stipulated in the Agreement, and if bonds have been furnished as required in Paragraph 5.01, the written consent of the surety to the payment of the balance due for that portion of the Work fully completed and accepted shall be submitted by Contractor to Engineer with the Application for such payment. Such payment shall be made under the terms and conditions governing final payment, except that it shall not constitute a waiver of Claims. The remaining balance of any sum included in the final Application for Payment but held by OWNER for Work not fully completed and accepted will become due when the Work is fully completed and accepted.

14.09 *Waiver of Claims*

- A. The making and acceptance of final payment will constitute:
1. a waiver of all Claims by Owner against Contractor, except Claims arising from unsettled Liens, from defective Work appearing after final inspection pursuant to Paragraph 14.06, from failure to comply with the Contract Documents or the terms of any special guarantees specified therein, or from Contractor's continuing obligations under the Contract Documents; and
 2. a waiver of all Claims by Contractor against Owner other than those previously made in accordance with the requirements herein and expressly acknowledged by Owner in writing as still unsettled.

ARTICLE 15 – SUSPENSION OF WORK AND TERMINATION

15.01 *Owner May Suspend Work*

- A. At any time and without cause, Owner may suspend the Work or any portion thereof for a period of not more than 90 consecutive days by notice in writing to Contractor and Engineer which will fix the date on which Work will be resumed. Contractor shall resume the Work on the date so fixed. Contractor shall be granted an adjustment in the Contract Price or an extension of the Contract Times, or both, directly attributable to any such suspension if Contractor makes a Claim therefor as provided in Paragraph 10.05.

15.02 *Owner May Terminate for Cause*

- A. The occurrence of any one or more of the following events will justify termination for cause:
1. Contractor's persistent failure to perform the Work in accordance with the Contract Documents (including, but not limited to, failure to supply sufficient skilled workers or suitable materials or equipment or failure to adhere to the Progress Schedule established under Paragraph 2.07 as adjusted from time to time pursuant to Paragraph 6.04);
 2. Contractor's disregard of Laws or Regulations of any public body having jurisdiction;
 3. Contractor's disregard of the authority of Engineer; or
 4. Contractor's violation in any substantial way of any provisions of the Contract Documents.
- B. If one or more of the events identified in Paragraph 15.02.A occur, Owner may, after giving Contractor (and surety) seven days written notice of its intent to terminate the services of Contractor:

1. exclude Contractor from the Site, and take possession of the Work and of all Contractor's tools, appliances, construction equipment, and machinery at the Site, and use the same to the full extent they could be used by Contractor (without liability to Contractor for trespass or conversion),
 2. incorporate in the Work all materials and equipment stored at the Site or for which Owner has paid Contractor but which are stored elsewhere, and
 3. complete the Work as Owner may deem expedient.
- C. If Owner proceeds as provided in Paragraph 15.02.B, Contractor shall not be entitled to receive any further payment until the Work is completed. If the unpaid balance of the Contract Price exceeds all claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) sustained by Owner arising out of or relating to completing the Work, such excess will be paid to Contractor. If such claims, costs, losses, and damages exceed such unpaid balance, Contractor shall pay the difference to Owner. Such claims, costs, losses, and damages incurred by Owner will be reviewed by Engineer as to their reasonableness and, when so approved by Engineer, incorporated in a Change Order. When exercising any rights or remedies under this Paragraph Owner shall not be required to obtain the lowest price for the Work performed.
- D. Notwithstanding Paragraphs 15.02.B and 15.02.C, Contractor's services will not be terminated if Contractor begins within seven days of receipt of notice of intent to terminate to correct its failure to perform and proceeds diligently to cure such failure within no more than 30 days of receipt of said notice.
- E. Where Contractor's services have been so terminated by Owner, the termination will not affect any rights or remedies of Owner against Contractor then existing or which may thereafter accrue. Any retention or payment of moneys due Contractor by Owner will not release Contractor from liability.
- F. If and to the extent that Contractor has provided a performance bond under the provisions of Paragraph 5.01.A, the termination procedures of that bond shall supersede the provisions of Paragraphs 15.02.B, and 15.02.C.

15.03 *Owner May Terminate For Convenience*

- A. Upon seven days written notice to Contractor and Engineer, Owner may, without cause and without prejudice to any other right or remedy of Owner, terminate the Contract. In such case, Contractor shall be paid for (without duplication of any items):
1. completed and acceptable Work executed in accordance with the Contract Documents prior to the effective date of termination, including fair and reasonable sums for overhead and profit on such Work;
 2. expenses sustained prior to the effective date of termination in performing services and furnishing labor, materials, or equipment as required by the Contract Documents in connection with uncompleted Work, plus fair and reasonable sums for overhead and profit on such expenses;
 3. all claims, costs, losses, and damages (including but not limited to all fees and charges of engineers, architects, attorneys, and other professionals and all court or arbitration or other dispute resolution costs) incurred in settlement of terminated contracts with Subcontractors, Suppliers, and others; and
 4. reasonable expenses directly attributable to termination.
- B. Contractor shall not be paid on account of loss of anticipated profits or revenue or other economic loss arising out of or resulting from such termination.

15.04 *Contractor May Stop Work or Terminate*

- A. If, through no act or fault of Contractor, (i) the Work is suspended for more than 90 consecutive days by Owner or under an order of court or other public authority, or (ii) Engineer fails to act on any Application for Payment within 30 days after it is submitted, or (iii) Owner fails for 30 days to pay Contractor any sum finally determined to be due, then Contractor may, upon seven days written notice to Owner and Engineer, and provided Owner or Engineer do not remedy such suspension or failure within that time, terminate the Contract and recover from Owner payment on the same terms as provided in Paragraph 15.03.
- B. In lieu of terminating the Contract and without prejudice to any other right or remedy, if Engineer has failed to act on an Application for Payment within 30 days after it is submitted, or Owner has failed for 30 days to pay Contractor any sum finally determined to be due, Contractor may, seven days after written notice to Owner and Engineer, stop the Work until payment is made of all such amounts due Contractor, including interest thereon. The provisions of this Paragraph 15.04 are not intended to preclude Contractor from making a Claim under Paragraph 10.05 for an adjustment in Contract Price or Contract Times or otherwise for expenses or damage directly attributable to Contractor's stopping the Work as permitted by this Paragraph.

ARTICLE 16 – DISPUTE RESOLUTION

16.01 *Methods and Procedures*

- A. Owner and Contractor may mutually request mediation of any Claim submitted to Engineer for a decision under Paragraph 10.05 before such decision becomes final and binding. The mediation will be governed by the Construction Industry Mediation Rules of the American Arbitration Association in effect as of the Effective Date of the Agreement. The request for mediation shall be submitted in writing to the American Arbitration Association. Timely submission of the request shall stay the effect of Paragraph 10.05.E.
- B. Owner and Contractor shall participate in the mediation process in good faith. The process shall be concluded within 60 days of filing of the request. The date of termination of the mediation shall be determined by application of the mediation rules referenced above.
- C. If the claim is not resolved by mediation, Engineer's action under Paragraph 10.05.C or a denial pursuant to Paragraphs 10.05.C.3 or 10.05.D shall become final and binding 30 days after termination of the mediation unless, within that time period, Owner or Contractor:
 - 1. elects in writing to invoke any dispute resolution process provided for in the Supplementary Conditions, or
 - 2. agrees with the other party to submit the Claim to another dispute resolution process, or
 - 3. gives written notice to the other party of their intent to submit the Claim to a court of competent jurisdiction.

ARTICLE 17 – MISCELLANEOUS

17.01 *Giving Notice*

- A. Whenever any provision of the Contract Documents requires the giving of written notice, it will be deemed to have been validly given if:
 - 1. delivered in person to the individual or to a member of the firm or to an officer of the corporation for whom it is intended, or
 - 2. delivered at or sent by registered or certified mail, postage prepaid, to the last business address known to the giver of the notice.

17.02 *Computation of Times*

- A. When any period of time is referred to in the Contract Documents by days, it will be computed to exclude the first and include the last day of such period. If the last day of any such period falls on a Saturday or Sunday or on a day made a legal holiday by the law of the applicable jurisdiction, such day will be omitted from the computation.

17.03 *Cumulative Remedies*

- A. The duties and obligations imposed by these General Conditions and the rights and remedies available hereunder to the parties hereto are in addition to, and are not to be construed in any way as a limitation of, any rights and remedies available to any or all of them which are otherwise imposed or available by Laws or Regulations, by special warranty or guarantee, or by other provisions of the Contract Documents. The provisions of this Paragraph will be as effective as if repeated specifically in the Contract Documents in connection with each particular duty, obligation, right, and remedy to which they apply.

17.04 *Survival of Obligations*

- A. All representations, indemnifications, warranties, and guarantees made in, required by, or given in accordance with the Contract Documents, as well as all continuing obligations indicated in the Contract Documents, will survive final payment, completion, and acceptance of the Work or termination or completion of the Contract or termination of the services of Contractor.

17.05 *Controlling Law*

- A. This Contract is to be governed by the law of the state in which the Project is located.

17.06 *Headings*

- A. Article and paragraph headings are inserted for convenience only and do not constitute parts of these General Conditions.

ARTICLE 18 – FEDERAL REQUIREMENTS

18.01 *Agency Not a Party*

- A. This Contract is expected to be funded in part with funds provided by Agency. Neither Agency, nor any of its departments, entities, or employees is a party to this Contract.

18.02 *Contract Approval*

- A. Owner and Contractor will furnish Owner's attorney such evidence as required so that Owner's attorney can complete and execute the following "Certificate of Owner's Attorney" (Exhibit GC-A) before Owner submits the executed Contract Documents to Agency for approval.
- B. Concurrence by Agency in the award of the Contract is required before the Contract is effective.

18.03 *Conflict of Interest*

- A. Contractor may not knowingly contract with a supplier or manufacturer if the individual or entity who prepared the plans and specifications has a corporate or financial affiliation with the supplier or manufacturer.
- B. Owner's officers, employees, or agents shall not engage in the award or administration of this Contract if a conflict of interest, real or apparent, would be involved. Such a conflict would arise when: (i) the employee,

officer or agent; (ii) any member of their immediate family; (iii) their partner or (iv) an organization that employs, or is about to employ, any of the above, has a financial interest in Contractor. Owner's officers, employees, or agents shall neither solicit nor accept gratuities, favors or anything of monetary value from Contractor or subcontractors.

18.04 *Gratuities*

- A. If Owner finds after a notice and hearing that Contractor, or any of Contractor's agents or representatives, offered or gave gratuities (in the form of entertainment, gifts, or otherwise) to any official, employee, or agent of Owner or Agency in an attempt to secure this Contract or favorable treatment in awarding, amending, or making any determinations related to the performance of this Contract, Owner may, by written notice to Contractor, terminate this Contract. Owner may also pursue other rights and remedies that the law or this Contract provides. However, the existence of the facts on which Owner bases such findings shall be an issue and may be reviewed in proceedings under the dispute resolution provisions of this Contract.
- B. In the event this Contract is terminated as provided in paragraph 18.04.A, Owner may pursue the same remedies against Contractor as it could pursue in the event of a breach of this Contract by Contractor. As a penalty, in addition to any other damages to which it may be entitled by law, Owner may pursue exemplary damages in an amount (as determined by Owner) which shall not be less than three nor more than ten times the costs Contractor incurs in providing any such gratuities to any such officer or employee.

18.05 *Audit and Access to Records*

- A. For all negotiated contracts and negotiated modifications (except those of \$10,000 or less), Owner, Agency, the Comptroller General, or any of their duly authorized representatives, shall have access to any books, documents, papers, and records of the Contractor, which are pertinent to the Contract, for the purpose of making audits, examinations, excerpts and transcriptions. Contractor shall maintain all required records for three years after final payment is made and all other pending matters are closed.

18.06 *Small, Minority and Women's Businesses*

- A. If Contractor intends to let any subcontracts for a portion of the work, Contractor shall take affirmative steps to assure that small, minority and women's businesses are used when possible as sources of supplies, equipment, construction, and services. Affirmative steps shall consist of: (1) including qualified small, minority and women's businesses on solicitation lists; (2) assuring that small, minority and women's businesses are solicited whenever they are potential sources; (3) dividing total requirements when economically feasible, into small tasks or quantities to permit maximum participation of small, minority, and women's businesses; (4) establishing delivery schedules, where the requirements of the work permit, which will encourage participation by small, minority and women's businesses; (5) using the services and assistance of the Small Business Administration and the Minority Business Development Agency of the U.S. Department of Commerce; (6) requiring each party to a subcontract to take the affirmative steps of this section; and (7) Contractor is encouraged to procure goods and services from labor surplus area firms.

18.07 *Anti-Kickback*

- A. Contractor shall comply with the Copeland Anti-Kickback Act (18 USC 874 and 40 USC 276c) as supplemented by Department of Labor regulations (29 CFR Part 3, "Contractors and Subcontractors on Public Buildings or Public Works Financed in Whole or in Part by Loans or Grants of the United States"). The Act provides that Contractor or subcontractor shall be prohibited from inducing, by any means, any person employed in the construction, completion, or repair of public facilities, to give up any part of the compensation to which they are otherwise entitled. Owner shall report all suspected or reported violations to Agency.

18.08 *Clean Air and Pollution Control Acts*

- A. If this Contract exceeds \$100,000, Contractor shall comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act (42 USC 7401 *et seq.*) and the Federal Water Pollution Control Act as amended (33 USC 1251 *et seq.*). Contractor will report violations to the Agency and the Regional Office of the EPA.

18.09 *State Energy Policy*

- A. Contractor shall comply with the Energy Policy and Conservation Act (P.L. 94-163). Mandatory standards and policies relating to energy efficiency, contained in any applicable State Energy Conservation Plan, shall be utilized.

18.10 *Equal Opportunity Requirements*

- A. If this Contract exceeds \$10,000, Contractor shall comply with Executive Order 11246, "Equal Employment Opportunity," as amended by Executive Order 11375, "Amending Executive Order 11246 Relating to Equal Employment Opportunity," and as supplemented by regulations at 41 CFR part 60, "Office of Federal Contract Compliance Programs, Equal Employment Opportunity, Department of Labor."
- B. Contractor's compliance with Executive Order 11246 shall be based on its implementation of the Equal Opportunity Clause, specific affirmative active obligations required by the Standard Federal Equal Employment Opportunity Construction Contract Specifications, as set forth in 41 CFR Part 60-4 and its efforts to meet the goals established for the geographical area where the Contract is to be performed. The hours of minority and female employment and training must be substantially uniform throughout the length of the Contract, and in each trade, and Contractor shall make a good faith effort to employ minorities and women evenly on each of its projects. The transfer of minority or female employees or trainees from Contractor to Contractor or from project to project for the sole purpose of meeting Contractor's goals shall be a violation of the Contract, the Executive Order, and the regulations in 41 CFR Part 60-4. Compliance with the goals will be measured against the total work hours performed.
- C. Contractor shall provide written notification to the Director of the Office of Federal Contract Compliance Programs within 10 working days of award of any construction subcontract in excess of \$10,000 at any tier for construction work under the Contract resulting from this solicitation. The notification shall list the name, address, and telephone number of the subcontractor; employer identification number; estimated dollar amount of subcontract; estimated starting and completion dates of the subcontract; and the geographical area in which the Contract is to be performed.

18.11 *Restrictions on Lobbying*

- A. Contractor and each subcontractor shall comply with Restrictions on Lobbying (Public Law 101-121, Section 319) as supplemented by applicable Agency regulations. This Law applies to the recipients of contracts and subcontracts that exceed \$100,000 at any tier under a Federal loan that exceeds \$150,000 or a Federal grant that exceeds \$100,000. If applicable, Contractor must complete a certification form on lobbying activities related to a specific Federal loan or grant that is a funding source for this Contract. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant, or any other award covered by 31 USC 1352. Each tier shall disclose any lobbying with non-Federal funds that takes place in connection with obtaining any Federal award. Certifications and disclosures are forwarded from tier to tier up to the Owner. Necessary certification and disclosure forms shall be provided by Owner.

18.12 *Environmental Requirements*

- A. When constructing a project involving trenching and/or other related earth excavations, Contractor shall comply with the following environmental constraints:
1. Wetlands – When disposing of excess, spoil, or other construction materials on public or private property, Contractor shall not fill in or otherwise convert wetlands.
 2. Floodplains – When disposing of excess, spoil, or other construction materials on public or private property, Contractor shall not fill in or otherwise convert 100 year floodplain areas delineated on the latest Federal Emergency Management Agency Floodplain Maps, or other appropriate maps, i.e., alluvial soils on NRCS Soil Survey Maps.
 3. Historic Preservation – Any excavation by Contractor that uncovers an historical or archaeological artifact shall be immediately reported to Owner and a representative of Agency. Construction shall be temporarily halted pending the notification process and further directions issued by Agency after consultation with the State Historic Preservation Officer (SHPO).
 4. Endangered Species – Contractor shall comply with the Endangered Species Act, which provides for the protection of endangered and/or threatened species and critical habitat. Should any evidence of the presence of endangered and/or threatened species or their critical habitat be brought to the attention of Contractor, Contractor will immediately report this evidence to Owner and a representative of Agency. Construction shall be temporarily halted pending the notification process and further directions issued by Agency after consultation with the U.S. Fish and Wildlife Service.

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

SECTION 01010

SUMMARY OF WORK

PART I

1. GENERAL

1.1 RELATED DOCUMENTS

- A. Drawings and general provisions of the Contract, including General and Supplementary Conditions and other Division 1 Specifications Sections, apply to this Section.

1.2 WORK COVERED BY CONTRACT DOCUMENTS

- A. Street and Drainage Improvements
1. Project Location: **Pierce County, Georgia**
 2. Owner: **Pierce County, Georgia
312 Nicholls Street, Suite 5
Blackshear, Georgia 31516**
- B. Contract Documents, dated **January 2026**, were prepared for the Project by Statewide Engineering, Inc., 516 East Ashley Street, Douglas, Ga. 31533.
- C. The work will be constructed under one prime contract.

1.3 WORK SEQUENCE

- A. Work shall be conducted in one phase.
1. **Rehabilitation improvements for Tiger Field Recreation Park for the county's awarded, Land and Water Conservation Fund Project, Grant Number: 13-01090 (P24AP01327). Project shall be funded from the Department of Natural Resources and /or other local funds specified).**

1.4 CONTRACTOR USE OF PREMISES

- A. Use of the Site: Limit use of the premises to work in area indicated. Confine operations to areas within contract limits indicated. Do not disturb portions of the site beyond the areas in which the Work is indicated.
1. Owner Occupancy: Allow for Owner occupancy and use by the public.
 2. Driveways and Entrances: Keep driveways and entrances serving the premises clear and available to the Owner, the Owner's employees, emergency vehicles, and local residents at all times. Do not use these areas for parking or storage of materials. Schedule deliveries to minimize space and time requirements for storage of materials and equipment on site.

1.5 OCCUPANCY REQUIREMENTS

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

- A. Partial Owner Occupancy: The Owner reserves the right to occupy and to place and install equipment in completed areas prior to Substantial Completion, provided such occupancy does not interfere with completion of the Work. Such placing of equipment and partial occupancy shall not constitute acceptance of the total Work.
 - 1. The Engineer will prepare a Certificate of Substantial Completion for each specific portion of the Work to be occupied prior to Owner occupancy.
 - 2. Prior to partial Owner occupancy, all required inspections and tests shall have been successfully completed.

1.6 MISCELLANEOUS PROVISION

- A. The Contractor shall be responsible for scheduling and coordination for the relocation of utility poles where required within the construction limits. Fees charged by the appropriate utility shall be billed directly to the Owner.

1.7 CONSTRUCTION STANDARDS

- A. Materials and Installation shall be in strict conformance with applicable sections of the Georgia Department of Transportation's Standard Specifications for the Construction of Roads and Bridges, latest edition.
- B. In addition to the Georgia Department of Transportation's Standard Specifications Latest Edition, any applicable Supplemental Specification shall be a part of this contract.

PART II

2. PRODUCTS (Not Applicable)

PART III

3. EXECUTION (Not Applicable)

END OF SECTION

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

SECTION 01150

MEASUREMENT AND PAYMENT

PART 1 - GENERAL

1.01 SCOPE

- A. This Section describes the methods by which measurement will be made of the quantities for which payment will be made for the Project.
- B. The project is to be bid as one contract.
- C. Defect assessment and non-payment for rejected work.

1.02 MEASUREMENT OF WORK

- A. Work shall be reviewed by the Engineer or his representative with assistance from the Contractor prior to preparation of a payment request by the Contractor. Engineer shall make necessary observations and measurements to verify that payment is commensurate with work in place.
- B. Materials that must be measured as delivered shall be measured at the time of delivery by the Engineer or his representative; the Contractor shall provide sufficient advance notice so that such measurements can be made.
- C. Work completed shall be measured for completion against the schedule of values provided by the Contractor in accordance with the General Conditions. Related work necessary for a complete and operational job, not specifically identified as a pay item shall be included in the unit price or lump sum bid. No additional payments will be made for such activities.

1.03 PROGRESS PAYMENTS

- A. Progress payments shall be based on the quantity of units installed or percentage complete.
- B. All items of Work not specifically listed in the Bid Schedule shall be considered incidental to the construction, and the cost of all such work and material shall be included in the prices bid for various items listed.
- C. All items listed for measurement and payment shall include all machinery, plant, materials and labor, etc., to successfully and satisfactorily complete Work specified.
- D. Payment – The Contractor will receive payment only for the items listed in the Bid Schedule of his contract, and no separate payments will be made for the work under any section of the Contract Documents except as provided for in the Bid Proposal. Where measurements are required to be made by the Engineer, for the payment of a pay item, the failure of the Contractor to give the adequate notification or failure of the Contractor to give the engineer assistance for the measurement shall result in the forfeiture of payment for the work or item which was not measured.

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

- E. Work to be paid for as a “Lump Sum” shall be measured for completion against the “Schedule of Values” provided by the Contractor. The “Schedule of Values” shall be submitted at the Preconstruction Conference and shall include quantities and prices of items aggregating the total “Lump Sum” and will subdivide the work into component parts in sufficient detail to serve as the basis for progress payments against the Lump Sum Bid during construction.

PART 2 – PRODUCTS

2.01 STORED MATERIALS

- A. Partial payment shall be made for approved materials stored at the project site, provided invoices for said materials are furnished in accordance with payment request and submittal and shop drawings for said materials have been approved.

END OF SECTION

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

SECTION 01252

WEATHER DELAYS

PART 1 - GENERAL

1.01 EXTENSIONS OF CONTRACT TIME

- A. An extension of contract time on the basis of adverse weather may be granted only for the number of Weather Delay Days in excess of the number of days listed as the Standard Baseline for that month.

1.02 STANDARD BASELINE

- A. Standard Baseline is defined as the normal number of workdays (excluding holidays as defined in Section 00520 & weekends) for each month during which construction activity exposed to weather conditions is expected to be prevented and suspended due to adverse weather. Suspension of construction activity for the number of days each month as listed in the Standard Baseline is included in the Work and is not eligible for extension of contract time. The monthly totals shown in the Standard Baseline were taken from Ga. DOT Construction Manual Weather Chart for Zone 3. Regardless of project location, the Standard Baseline listed below shall be utilized for this Project.

- B. Standard Baseline is as follows:

Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec
6	5	4	3	2	3	4	3	3	2	2	4

- C. When the scheduled starting and/or completions date fall within a given month, the number of weather days allowed in the chart above shall be prorated based on the number of days within that month and round to the nearest whole day.

1.03 ADVERSE WEATHER and WEATHER DELAY DAYS

- A. Adverse Weather is defined as the occurrence of one or more of the following conditions within a twenty-four (24) hour day that prevents construction activity due to weather conditions:
- Precipitation (rain, snow, or ice) in excess of one-tenth inch (0.10") liquid measure.
 - Temperatures that do not rise above that required for the day's construction activity, if such temperature requirement is specified or accepted as industry practice.

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

- B. Adverse Weather may include, if appropriate, “dry-out” or “mud” days:
 - a. resulting from precipitation days that occur beyond the standard baseline;
 - b. Only if there is a hinderance to site access or sitework and Contractor has taken all reasonable accommodations to avoid such hinderance; and,
 - c. At a rate no greater than 1 “dry-out” or “mud” day per precipitation event that is 1.0 inches or more and only when the Standard Baseline has been exceed for that month, unless specifically recommended otherwise by Owner or Engineer.
- C. A Weather Delay Day may be counted if adverse weather prevents work on the project for more than 1/2 of the contractor’s scheduled workday. Weather Delay Days shall only be counted if Contractor is mobilized and actively working on the Project the workday immediately preceding the adverse weather.
- D. Contractor shall take into account that certain construction activities are more affected by adverse weather and seasonal conditions than other activities, and that “dry-out” or “mud” days are not eligible to be counted as a Weather Delay Day until the Standard Baseline is exceeded for the month. Hence, Contractor should allow for an appropriate number of additional days associated with the Standard Baseline days in which such applicable construction activities are expected to be prevented or suspended.

1.04 DOCUMENTATION and SUBMITTALS

- A. Precipitation at the Project shall be monitored and recorded daily. Submit daily precipitation logs, as required by the NPDES permit, along with jobsite work logs showing which and to what extent construction activities have been affected by weather on a monthly basis. Pay requests will not be approved if precipitation reporting has not been submitted.
- B. Submit actual weather data to support claim for time extension obtained from nearest NOAA weather station or other independently verified source approved by Engineer at beginning of project.
- C. Use Standard Baseline data provided in the Section when documenting actual Weather Delay Days due to adverse weather.
- D. Organize claim & documentation to facilitate evaluation on a basis of calendar month periods and submit to Engineer by the 15th of the following month.

1.05 CONSIDERATION FOR TIME EXTENSIONS

- A. A running tally of Weather Delay Days will be tracked as work progresses and as evidenced by the monthly submittals.
- B. Within 30 days of the scheduled project completion date, the Engineer will review the total Weather Delay Day tally to determine if a contract time extension is warranted due to excessive Weather Delay Days.

1.06 EXAMPLE:

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

- A. Contract start date of March 9th with Contract end date of September 12th.
- B. Adjust Standard Baseline days for partial months:
- a. March:
The Contract time includes 22 days of March.
March Standard Baseline = 4 days
 $22 \text{ days} / 31 \text{ days} = 0.71$
 $0.71 * 4 \text{ Standard Baseline Days} = 2.84$. Round to nearest whole number of 3.0 results in a prorated Standard Baseline of 3 days for March.
 - b. September:
The Contract time includes 12 days of September
September Standard Baseline = 3 days
 $12 \text{ days} / 30 \text{ days} = 0.40$
 $0.40 * 3 \text{ Standard Baseline Days} = 1.2$. Round to nearest whole number of 1.0 results in a prorated Standard Baseline of 1 day for September.
- C. Prorated Standard Baseline therefore is as shown below for a total of 19 allowable Weather Delay Days for Example Project.

Mar	Apr	May	Jun	Jul	Aug	Sep
3	3	2	3	4	3	1

- D. Summation of Weather Delay Days

Month	Actual Weather Delay Days Due from Adverse Weather	Weather Delay Days Allowed by Standard Baseline	Additional Days Warranted (Actual – Std. Baseline)
Mar	4	3	1
Apr	5	3	2
May	2	2	0
Jun	2	3	-1
Jul	3	4	-1
Aug	4	3	1
Sep	3	1	2
Total	23	19	4

- E. Based on the example project conditions, a total of 4 additional days of contract time would be warranted.

END OF SECTION

TIGER FIELD REHABILITATION IMPROVEMENTS

SECTION 01300

SUBMITTALS

1.01 RELATED WORK

- A. Drawings and general provisions of Contract, including General and Supplementary Conditions and other Division-1 Specification Sections, apply to this Section.

1.02 SUMMARY

- A. This Section specifies administrative and procedural requirements for submittals required for performance of the Work, including;
 - 1. Soil Test Reports.
 - 2. Shop Drawings.
 - 3. Product Data.
- B. Administrative Submittals: Refer to other Division-1 Sections and other Contract Documents for requirements for administrative submittals. Such submittals include, but are not limited to:
 - 1. Permits.
 - 2. Applications for payment.
 - 3. Performance and payment bonds.
 - 4. Insurance certificates.
 - 5. List of Subcontractors.

1.03 SUBMITTAL PROCEDURES

- A. Coordination: Coordinate preparation and processing of submittals with performance of construction activities. Transmit each submittal sufficiently in advance of performance of related construction activities to avoid delay.
 - 1. Coordinate each submittal with fabrication, purchasing, testing, delivery, other submittals and related activities that require sequential activity.
 - 2. Coordinate transmittal of different types of submittals for related elements of the Work so processing will not be delayed by the need to review submittals concurrently for coordination.
 - a. The Engineer reserves the right to withhold action on a submittal requiring coordination with other submittals until related submittals are received.
 - 3. Processing: Allow sufficient review time so that installation will not be delayed as a

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

result of the time required to process submittals, including time for resubmittals.

- a. Allow one week for initial review. Allow additional time if processing must be delayed to permit coordination with subsequent submittals. The Engineer will promptly advise the Contractor when a submittal being processed must be delayed for coordination.
 - b. If an intermediate submittal is necessary, process the same as the initial submittal.
 - c. Allow two weeks for reprocessing each submittal.
 - d. No extension of Contract Time will be authorized because of failure to transmit submittals to the Engineer sufficiently in advance of the Work to permit processing.
- B. Submittal Preparation: Place a permanent label or title block on each submittal for identification. Indicate the name of the entity that prepared each submittal on the label or title block.
1. Provide a space approximately 4" x 5" on the label or beside the title block on Shop Drawings to record the Contractor's review and approval markings and the action taken.
 2. Include the following information on the label for processing and recording action taken.
 - a. Project name.
 - b. Date.
 - c. Name and address of Engineer.
 - d. Name and address of Contractor.
 - e. Name and address of subcontractor.
 - f. Name and address of supplier.
 - g. Name of manufacturer.
 - h. Number and title of appropriate Specification Section.
 - i. Drawing number and detail references, as appropriate.
- C. Submittal Transmittal: Package each submittal appropriately for transmittal and handling. Transmit each submittal from Contractor to Engineer using a transmittal form. Submittals received from sources other than the Contractor will be returned without action.
1. On the transmittal Record relevant information and requests for data. On the form, or separate sheet, record deviations from Contract Document requirements, including minor variations and limitations. Include Contractor's certification that information complies with Contract Document requirements.

1.04 SHOP DRAWINGS

- A. Submit newly prepared information, drawn to accurate scale. Highlight, encircle, or otherwise indicate deviations from the Contract Documents. Do not reproduce Contract Documents or copy standard information as the basis of Shop Drawings. Standard information prepared without specific reference to the Project is not considered Shop Drawings.

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

- B. Shop Drawings include fabrication and installation drawings, setting diagrams, schedules, patterns, templates and similar drawings. Include the following information:
1. Dimensions.
 2. Identification of products and materials included.
 3. Compliance with specified standards.
 4. Notation of coordination requirements.
 5. Notation of dimensions established by field measurement.
 6. Sheet Size: Except for templates, patterns and similar full- size Drawings, submit Shop Drawings on sheets at least 8-1/2" x 11" but no larger than 30" x 42".
 7. Initial Submittal: Submit 2 blue- or black-line prints for the Engineer's review; one will be returned.
 8. Final Submittal: Submit 3 blue- or black-line prints and 2 additional prints where required for maintenance manuals, plus the number of prints needed by the Engineer for distribution. 2 prints will be retained; the remainder returned.
 - a. One of the prints returned shall be marked-up and maintained as a "Record Document".
 9. Do not use Shop Drawings without an appropriate final stamp indicating action taken in connection with construction.

1.05 PRODUCT DATA

- A. Collect Product Data into a single submittal for each element of construction or system. Product Data includes printed information such as manufacturer's installation instructions, catalog cuts, standard color charts, roughing-in diagrams and templates, standard wiring diagrams and performance curves. Where Product Data must be specially prepared because standard printed data is not suitable for use, submit as "Shop Drawings."
1. Mark each copy to show applicable choices and options. Where printed Product Data includes information on several products, some of which are not required, mark copies to indicate the applicable information. Include the following information:
 - a. Manufacturer's printed recommendations.
 - b. Compliance with recognized trade association standards.
 - c. Compliance with recognized testing agency standards.
 - d. Application of testing agency labels and seals.
 - e. Notation of dimensions verified by field measurement.
 - f. Notation of coordination requirements.
 2. Do not submit Product Data until compliance with requirements of the Contract Documents has been confirmed.
 3. Preliminary Submittal: Submit a preliminary single-copy of Product Data where selection of options is required.
 4. Submittals: Submit 2 copies of each required submittal; submit 4 copies where required for maintenance manuals. The Engineer will retain one and will return the other marked

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

with action taken and corrections or modifications required.

- a. Unless noncompliance with Contract Document provisions is observed, the submittal may serve as the final submittal.
5. Distribution: Furnish copies of final submittal to installers, subcontractors, suppliers, manufacturers, fabricators and others required for performance of construction activities. Show distribution on transmittal forms.
 - a. Do not proceed with installation until an applicable copy of Product Data is in the installer's possession.
 - b. Do not permit use of unmarked copies of Product Data in connection with construction.

1.06 ENGINEER'S ACTION

- A. Except for submittals for record, information or similar purposes, where action and return is required or requested, the Engineer will review each submittal, mark to indicate action taken and return promptly.
 1. Compliance with specified characteristics is the Contractor's responsibility.
- B. The Engineer will mark each submittal as follows, to indicate the action taken:
 1. Final Unrestricted Release: Where submittals are marked "Accepted," that part of the Work covered by the submittal may proceed provided it complies with requirements of the Contract Documents; final acceptance will depend upon that compliance.
 2. Final-But-Restricted Release: When submittals are marked "Accepted as Noted," that part of the Work covered by the submittal may proceed provided it complies with notations or corrections on the submittal and requirements of the Contract Documents; final acceptance will depend on that compliance.
 3. Returned for Resubmittal: When submittal is marked "Not Accepted, Revise and Resubmit," do not proceed with that part of the Work covered by the submittal, including purchasing, fabrication, delivery, or other activity. Revise or prepare a new submittal in accordance with the notations; resubmit without delay. Repeat if necessary to obtain a different action mark.
 - a. Do not permit submittals marked "Not Accepted, Revise and Resubmit" to be used at the Project site, or elsewhere where Work is in progress.
 4. Other Action: Where a submittal is primarily for information or record purposes, special processing or other activity, the submittal will be returned, marked "Action Not Required".

2.01 PRODUCTS (Not Applicable).

3.01 EXECUTION (Not Applicable).

END OF SECTION

TIGER FIELD REHABILITATION IMPROVEMENTS

SECTION 01340

SHOP DRAWINGS, PROJECT DATA AND SAMPLES

PART 1 - GENERAL

1.1 DESCRIPTION:

- A. Work included: Submit shop drawings, fabrication drawings, manufacturer's installation drawings, materials descriptions, performance data and samples necessary to demonstrate the quality and quantity of materials and products and proposed fabrication of work by the Contractor.

PART 2 - PRODUCTS

2.1 SHOP DRAWINGS

- A. Shop drawings and descriptive materials shall conform to the requirements of the general conditions of these specifications.

PART 3 - EXECUTION

3.1 SHOP DRAWING SUBMITTALS & APPROVAL OF MATERIALS & EQUIPMENT

- A. Within 30 days of receipt of Notice to Proceed, and before starting installation of any materials and equipment, the Contractor shall submit to the Engineer for approval, submittals indicated hereinafter. Five (5) copies of submittals are required. If departures from contract drawings are deemed necessary by the Contractor, details of such departures, including changes in related portions of the project and reasons therefore, shall be submitted with the shop drawings. Listings of items that function as parts of an integrated system shall be furnished at one time. If the Contractor disagrees with any aspect of the work as shown on the contract drawings and specified herein, which will affect his responsibility for successful installation of the work or cause him to take exceptions to the final certification of the system, such objections and exceptions shall be submitted with the shop drawings. Shop drawing submittal data shall include, but not be limited to the following:
 - 1. Standard specifications data for each component to be supplied, along with complete installation instructions.

END OF SECTION

TIGER FIELD REHABILITATION IMPROVEMENTS

SECTION 01600

GENERAL MATERIALS STIPULATIONS

PART 1 - GENERAL

1.1 SCOPE

These General Materials Stipulations apply, in general, to all equipment and piping. They supplement the detailed specifications, but in case of conflict, the detailed specifications shall govern.

1.2 COORDINATION

The Contractor shall assume full responsibility for the coordination of the installation of all materials and products furnished under these Contract Documents. The Contractor shall be completely responsible for verification that all structures, piping and components furnished by him and/or his Sub-contractors and Suppliers are compatible. The Contractor shall start up each system and shall make all necessary adjustments to place each system in proper operating condition.

1.3 PATENT ROYALTIES

The Contractor shall include in his bid prices all royalties and fees for patents covering materials, articles, apparatus, devices, or equipment. Attention is directed to the requirements of the "Supplementary General Conditions" concerning patents.

1.4 GUARANTEE

A material guarantee against faulty or inadequate design, improper assembly or erection, defective materials, defective workmanship, breakage or other failures shall be furnished by the Contractor. The guarantee period shall be defined in the section entitled "Guarantees and Warranties" of these Specifications.

1.5 WORKMANSHIP AND MATERIALS

- A. All material shall be designed, fabricated, and assembled in accordance with the best modern engineering and shop practice. Individual parts shall be manufactured to standard sizes and gages so that repairs, required at any time, can be performed in the field. Like parts of duplicate units shall be interchangeable. Material shall be new and not have been in service at any time prior to delivery, except as required by tests. All bolts, nuts, fastenings, pipe and fittings shall be manufactured in conformance with the United States system of measurement.
- B. Materials shall be suitable for service conditions. Iron castings shall be tough, close grained, gray iron free from blowholes, flaws, or excessive shrinkage and shall conform to ASTM A 48, Class 30 minimum. Plugging of defective castings shall not be permitted. Castings shall be annealed to remove internal stresses prior to machining and shall have the mark number and heat number cast on them.

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

- C. Unless otherwise specified, structural and miscellaneous fabricated steel shall conform to the Standards of the American Institute of Steel Construction.

1.6 PROTECTION AND STORAGE

- A. All materials shall be boxed, crated, or completely enclosed and protected during shipment, handling, and storage. All materials shall be protected from exposure to the elements and shall be kept thoroughly dry at all times. All materials shall be stored above ground level and adequately supported on wood blocking or other approved support material. Printed storage instructions of the manufacturers shall be strictly adhered to.
- B. Painted, anodized, or otherwise coated surfaces shall be protected against impact, abrasion, discoloration, and other damage. All coated surfaces damaged prior to acceptance shall be cleaned and coated/painted to the satisfaction of the Engineer with the same or equivalent coating used in the original application.

END OF SECTION

TIGER FIELD REHABILITATION IMPROVEMENTS

SECTION 01610

TRANSPORTATION AND HANDLING

PART 1 – GENERAL

1.1 TRANSPORTATION

The Contractor shall provide transportation of all equipment, materials, and products furnished under these Contract Documents to the work site.

- A. All material shall be suitably boxed, crated, or otherwise protected during transportation.
- B. The Contractor shall be responsible for ensuring that the equipment is assembled and transported in such a manner so as to clear buildings, power lines, bridges, and similar structures encountered during shipment or delivery to the work site.

1.2 STORAGE

The Contractor shall provide preparation for shipment and storage, unloading, handling and re-handling, short-term storage, extended storage, storage facilities, maintenance and protection during storage, preparation for installation, and all other work and incidental items necessary or convenient to the Contractor for the satisfactory prosecution and completion of the work.

1.3 HANDLING

- A. All equipment, materials, and products shall be carefully handled to prevent damage or excessive deflections during unloading or transportation. All equipment, materials, and products damaged during transportation or handling shall be repaired or replaced by the Contractor at no additional cost to the Owner prior to being incorporated into the work.
- B. Under no circumstances shall equipment or products such as pipe, structural steel, casting, reinforcement, etc, be thrown or rolled off of trucks onto the ground.
- C. Items such as nonmetallic pipe, shall be handled using nonmetallic slings or straps.

END OF SECTION

TIGER FIELD REHABILITATION IMPROVEMENTS

SECTION 01620

STORAGE AND PROTECTION

PART 1 - GENERAL

- A. Material shall be received, inspected, unloaded, handled, stored, maintained, and protected by the Contractor until such time as installation is required.
- B. Storage and protection of Contractor furnished material shall be in strict conformance with the requirements of the section entitled "General Materials Stipulations" of these Specifications.

1.1 STORAGE

- A. The Contractor shall provide satisfactory storage facilities which are acceptable to the Engineer. In the event that satisfactory facilities cannot be provided on site, satisfactory warehouse, acceptable to the Engineer, will be provided by the Contractor for such time until the equipment, materials, and products can be accommodated at the site.
- B. Equipment, materials and products which are stored in a satisfactory warehouse acceptable to the Engineer will be eligible for progress payments as though they had been delivered to the job site.
- C. The Contractor shall be responsible for the maintenance and protection of all equipment, materials, and products placed in storage and shall bear all costs of storage, preparation for transportation, re-handling, and preparation for installation.
- D. Equipment and products stored outdoors shall be supported above the ground on suitable wooden blocks or braces arranged to prevent excessive deflection or bending between supports. Items such as pipe, structural steel, and sheet construction products shall be stored with one end elevated to facilitate drainage.
- E. Tarps and other coverings shall be supported above the stored materials on wooden strips to provide ventilation under the cover and minimize condensation. Tarps and covers shall be arranged to prevent ponding of water.

END OF SECTION

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

SECTION 01720

PROJECT RECORD DOCUMENTS

PART 1 - GENERAL

1.1 GENERAL

Accurate record documents related to the furnishing and installation of equipment, materials, and products at the site of the project during the course of the work shall be maintained by the Contractor.

1.2 MAINTENANCE OF DOCUMENTS

One (1) record copy of each of the following shall be maintained at the project site by the Contractor:

1. Contract Drawings
2. Specifications
3. Addenda
4. Reviewed Shop Drawings
5. Change Orders
6. Other Modifications to Contract Documents
7. Field Test Records

Project record documents shall be stored in suitable files and racks in a satisfactory location and shall be available at all times to the Engineer. The documents shall be maintained in a clean, dry, legible condition and shall not be used for construction purposes.

1.3 RECORDING

The Contractor shall label each document "Project Record" in one-inch high letters. Record documents shall be kept current and work shall not be permanently concealed until the required information has been recorded.

- A. Contract Drawings: The Contractor shall legibly mark to record the actual construction on the project record set of prints of the Contract Drawings, including reviewed shop drawings, the following:
 1. Horizontal and vertical location of existing and new underground utilities and appurtenances referenced to mean sea level or permanent surface improvements.

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

2. Field changes of dimension and detail, including elevations of foundations.
 3. Changes made by change order or field order.
 4. Details not on original Drawings.
- B. Specifications and Addenda: The Contractor shall legibly mark up each section to record:
1. Manufacturer, trade name, catalog number, and supplier of each product and item of equipment actually installed.
 2. Changes made by change order or field order.
 3. Other matters not originally specified.

1.4 SUBMITTAL

Prior to final acceptance by the Owner, the Contractor shall deliver the Project Record Documents to the Engineer. The Project Record Documents shall be acceptable to the Engineer before final payment is made.

With the submittal of the Project Record Documents, the Contractor shall submit a list of each document submitted and a certification that each document as submitted is complete and accurate.

END OF SECTION

TIGER FIELD REHABILITATION IMPROVEMENTS

SECTION 01750

GUARANTEES AND WARRANTIES

PART 1 - GENERAL

1.1 GENERAL WARRANTY

- A. The Contractor shall warrant all equipment, material, products, and workmanship provided under these Contract Documents for a period of twelve (12) months after the date of final acceptance of the work by the Owner. The twelve (12) month contractual warranty shall not affect in any way equipment manufacturers' extended warranties.
- B. If, during the warranty period (a) any equipment, materials, or products furnished and/or installed by the Contractor are found to be defective in service by reason of faulty process, structural and/or mechanical design or specifications, or (b) any equipment, materials, or products furnished and/or installed by the Contractor are found to be defective by reason of defects in material or workmanship, the Contractor shall, as soon as possible after receipt of written notice from the Owner, repair or cause to be repaired such defective equipment, materials or products.
- C. The Contractor shall not be obligated to make replacements which become necessary because of ordinary wear and tear, or as a result of improper operation or maintenance, or as a result of improper work or damage by another Contractor or the Owner, or to perform any work which is normally performed by a maintenance crew during operation.
- D. Neither the foregoing paragraphs nor any provision in the Contract Documents, nor any special guarantee time limit implies any limitation of the Contractor's liability with the law of the place of construction.

END OF SECTION

TIGER FIELD REHABILITATION IMPROVEMENTS

ATTACHMENT “A”

APPLICABLE GDOT SPECIAL/SUPPLEMENTAL PROVISIONS

GDOT Special Provisions can also be find at Georgia DOT’s Website-

<https://www.dot.ga.gov/GDOT/Pages/TheSource.aspx>

Section 150 - Traffic Control

Section 301 – Soil Cement Construction

Section 820 Asphalt Cement

GDOT 2024 Supplemental Specifications can also be find at Georgia DOT’s Website-

<https://www.dot.ga.gov/GDOT/Pages/TheSource.aspx>

Section 802 -Aggregates for Asphaltic Concrete

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

TIGER FIELD REHABILITATION IMPROVEMENTS

DEPARTMENT OF TRANSPORTATION

STATE OF GEORGIA

SPECIAL PROVISION

**PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552**

SECTION 108-PROSECUTION AND PROGRESS

ADD THE FOLLOWING TO SUBSECTION 108.08:

C. Intermediate Completion Schedule

And overall Completion Date is established for this project. However, it is necessary to complete certain portions of the work at an earlier time.

For this project, the following items of work and corresponding intermediate completion times are required:

1. Shoulder Reconstruction

Failure to complete shoulder reconstruction work within thirty (30) Calendar days after completion of resurfacing the roadway will result in the assessment of Liquidated Damages at a rate of \$500.00 per calendar day.

2. Complete Paving Operation

Failure to complete all paving operations (e.g., milling resurfacing, etc.) within (90) calendar days, from Contractor's actual start date of paving operations, will result in the assessment of Liquidated Damages at the rate of \$500.00 per calendar date.

3. Permanent Striping Placement

Failure to ensure placement of permanent striping does not begin until thirty (30) calendar days after completion of final surface course and completed within forty-five (45) calendar days after completion of the final surface course will result in liquidated damages at the rate of \$1,000.00 per calendar day.

These rates are in addition to Liquidated Damages that may be assessed in accordance with Subsection 108.08 for failure to complete the overall project.

PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

DEPARTMENT OF TRANSPORTATION

STATE OF GEORGIA

SPECIAL PROVISION

SECTION 400-HOT MIX ASPHALTIC CONCRETE CONSTRUCTION

DELETE SECTION 400.4 A.2.B TABLE 11 AND SUBSTITUTE THE FOLLOWING

Table 11-Thickness and Spread Rate Tolerance at any Given Location

Course	Thickness Specified	Spread Rate Specified
Asphaltic concrete base course	+/- 0.04 in (1.27 mm)	+/- 5 lbs, -5 lbs (2.27 kg-2.27 kg)
Intermediate and /or wearing course	+/- 0.04 in (1.27 mm)	+/- 5 lbs, -5 lbs (2.27 kg-2.27 kg)
Overall of any combination of 1 and 2	+/- 0.04 in (1.27 mm)	+/- 5 lbs, -5 lbs (2.27 kg-2.27 kg)

ATTACHMENT “B”

**FAILURE OR DELAY IN COMPLETING WORK ON TIME
AND LIQUIDATED DAMAGES**

It is essential this project be completed within the allowable time for completion. The allowable time provides for more than adequate time to complete the required work under typical weather patterns.

For this reason, The Contractor shall pay the Owner liquidated damages in the amount of **\$3,500.00 per calendar day** for failure or delay in completing the work within the allowable time provided for **all work for the ballfield and northern parking lot that is required to be completed prior to September 1, 2026 which will allow for the 2026 recreational football season and all its amenities to be in place and operational. All remaining items** the Contractor shall pay the Owner liquidated damages in the amount of **\$2,000.00 per calendar day** for failure or delay in completing the work within the allowable time provided.

The Engineer has no authority to issue a time extension for this project. The Engineer will not attempt to negotiate any time extension with the Owner, this is the sole responsibility of the Contractor.

ATTACHMENT “C”

PAY REQUEST FORM

**(This form must be used for all
Contractor’s Applications for Payment)**

TO ENSURE PROMPT PROCESSING OF REQUISITIONS, PLEASE:

Email invoices to by the 25th of the month in 'pdf' format.

- *Any late bills received after the 25th will be processed in the subsequent month .*
- *Do not mail or fax a copy in addition to the email; we are paperless.*

- *Do not send multiple e-mails. Send one e-mail with all required parties on copy.*

Use AIA forms G702 and G703; samples are included for your use.

- *Please complete fully, including notarized signature on G702.*
- *List your detailed 'schedule of values' on G703.*
- *Include a break-down of labor, material, and tax on G703.*

Include a corresponding 'Conditional Lien Waiver' (Form 1) with each requisition.

THE FOLLOWING PAPERWORK MUST BE SUBMITTED PRIOR TO STARTING WORK:

Signed contract / purchase order

Signed change orders (if applicable)

Valid insurance certificate (see Form 3A for requirements & 3B for additional insureds)

List of suppliers and subcontractors (Form 4)

Out-of-state paperwork (applicable to non-resident contractors)

W-9 form (only need to submit once, not for each project)

Providing the above documentation is a contract requirement. Missing paperwork will delay payment.

Thank you in advance for your cooperation!

APPLICATION AND CERTIFICATION FOR PAYMENT

AIA DOCUMENT G702

PAGE ONE OF

PAGES

TO:

Pierce County Board of Commissioners
312 Nichols Street, Suite 5
Blackshear, Georgia 31516

FROM SUBCONTRACTOR:

PROJECT: Pierce County, Georgia

Tiger Field Rehabilitation Improvements

Address: 312 Nichols Street, Suite 5

Blackshear, Georgia 31516

VIA ENGINEER Statewide Engineering, Inc.

516 E Ashley Street

Douglas, GA 31533

APPLICATION NO:

PERIOD TO:

PROJECT NO: 13-01090 (P24AP01327)

Distribution to:

☒	OWNER
☒	ENGINEER
☒	CONTRACTOR
☐	
☐	

CONTRACT FOR: Tiger Field Rehabilitation Improvements

CONTRACT DATE:

CONTRACTOR'S APPLICATION FOR PAYMENT

Application is made for payment, as shown below, in connection with the Contract.
Continuation Sheet, AIA Document G703, is attached.

1. ORIGINAL CONTRACT SUM	\$	0.00
2. Net change by Change Orders	\$	0.00
3. CONTRACT SUM TO DATE (Line 1 + 2)	\$	0.00
4. TOTAL COMPLETED & STORED TO DATE (Column G on G703)	\$	0.00
5. RETAINAGE:		
a. 10 % of Completed Work (Column D + E on G703)	\$	0.00
b. % of Stored Material (Column F on G703)	\$	
Total Retainage (Lines 5a + 5b or Total in Column I of G703)	\$	0.00
6. TOTAL EARNED LESS RETAINAGE (Line 4 Less Line 5 Total)	\$	0.00
7. LESS PREVIOUS CERTIFICATES FOR PAYMENT (Line 6 from prior Certificate)	\$	0.00
8. CURRENT PAYMENT DUE	\$	0.00
9. BALANCE TO FINISH, INCLUDING RETAINAGE (Line 3 less Line 6)	\$	0.00

The undersigned Contractor certifies that to the best of the Contractor's knowledge, information and belief the Work covered by this Application for Payment has been completed in accordance with the Contract Documents, that all amounts have been paid by the Contractor for Work for which previous Certificates for Payment were issued and payments received from the Owner, and that current payment shown herein is now due.

SUBCONTRACTOR:

By: _____ Date: _____

State of: _____ County of: _____
Subscribed and sworn to before me this _____ day of _____
Notary Public:
My Commission expires: _____

ENGINEER'S CERTIFICATE FOR PAYMENT

In accordance with the Contract Documents, based on on-site observations and the data comprising the application, the Architect certifies to the Owner that to the best of the Architect's knowledge, information and belief the Work has progressed as indicated, the quality of the Work is in accordance with the Contract Documents, and the Contractor is entitled to payment of the AMOUNT CERTIFIED.

AMOUNT CERTIFIED \$ _____

(Attach explanation if amount certified differs from the amount applied. Initial all figures on this Application and on the Continuation Sheet that are changed to conform with the amount certified.)

ARCHITECT:

By: _____ Date: _____

This Certificate is not negotiable. The AMOUNT CERTIFIED is payable only to the Contractor named herein. Issuance, payment and acceptance of payment are without prejudice to any rights of the Owner or Contractor under this Contract.

CHANGE ORDER SUMMARY	ADDITIONS	DEDUCTIONS
Total changes approved in previous months by Owner	\$0.00	\$0.00
Total approved this Month	\$0.00	\$0.00
TOTALS	\$0.00	\$0.00
NET CHANGES by Change Order	\$0.00	

CONTINUATION SHEET
AIA DOCUMENT G703

PAGE OF PAGES

AIA Document G702, APPLICATION AND CERTIFICATION FOR PAYMENT, containing

Contractor's signed certification is attached.

In tabulations below, amounts are stated to the nearest dollar.

Use Column I on Contracts where variable retainage for line items may apply.

APPLICATION NO:

APPLICATION DATE: 1/0/1900

PERIOD TO: 1/0/1900

PROJECT NO: DWLSL2022078

A ITEM NO.	B DESCRIPTION OF WORK	C SCHEDULED VALUE	D WORK COMPLETED		F MATERIALS PRESENTLY STORED (NOT IN D OR E)	G		H BALANCE (C - G)	I RETAINAGE (IF VARIABLE RATE)
			FROM PREVIOUS APPLICATION (D + E)	THIS PERIOD		TOTAL COMPLETED AND STORED TO DATE (D+E+F)	% (G ÷ C)		
1000	Temporary Grassing	\$ -	\$ -	\$ -		\$ -			\$ -
1010	Mulch	\$ -	\$ -	\$ -		\$ -			\$ -
1020	Construct and Remove Temporary Sediment Barrier or Baled Straw Check Dam	\$ -	\$ -	\$ -		\$ -			\$ -
1030	Construct and Remove Construction Exits	\$ -	\$ -	\$ -		\$ -			\$ -
1040	Maintenance of Type A Silt Fence	\$ -	\$ -	\$ -		\$ -			\$ -
1050	Maint of Erosion Control Check Dams/Ditch Checks	\$ -	\$ -	\$ -		\$ -			\$ -
1060	Maintenance of Construction Exit	\$ -	\$ -	\$ -		\$ -			\$ -
1070	Water Quality Monitoring and Sampling	\$ -	\$ -	\$ -		\$ -			\$ -
1080	Water Quality Inspection	\$ -	\$ -	\$ -		\$ -			\$ -
1090	Prepare & Submit Notice of Intent and Notice of Termination to EPD GEOS as Responsible Official, Including payment of EPD Land Disturbance Fees (5.36 ac. x \$80/ac = \$428.80)	\$ -	\$ -	\$ -		\$ -			\$ -
1100	Temp Silt Fence Type A	\$ -	\$ -	\$ -		\$ -			\$ -
1110	Grading Complete	\$ -	\$ -	\$ -		\$ -			\$ -
1120	Soil Cement Base Course 6 Inch	\$ -	\$ -	\$ -		\$ -			\$ -
1130	Portland Cement	\$ -	\$ -	\$ -		\$ -			\$ -
1140	Recycled Asph Conc 12.5 MM SuperPave GP 1 or 2 Incl Bitum Matl, & H Lime (NEW PARKING LOTS)	\$ -	\$ -	\$ -		\$ -			\$ -
1150	Recycled Asph Conc 12.5 MM SuperPave GP 1 or 2 Incl Bitum Matl, & H Lime (RESURFACING)	\$ -	\$ -	\$ -		\$ -			\$ -

CONTINUATION SHEET
AIA DOCUMENT G703

PAGE OF PAGES

AIA Document G702, APPLICATION AND CERTIFICATION FOR PAYMENT, containing

Contractor's signed certification is attached.

In tabulations below, amounts are stated to the nearest dollar.

Use Column I on Contracts where variable retainage for line items may apply.

APPLICATION NO:

APPLICATION DATE: 1/0/1900

PERIOD TO: 1/0/1900

PROJECT NO: DWLSL2022078

A ITEM NO.	B DESCRIPTION OF WORK	C SCHEDULED VALUE	D WORK COMPLETED		F MATERIALS PRESENTLY STORED (NOT IN D OR E)	G		H BALANCE (C - G)	I RETAINAGE (IF VARIABLE RATE)
			FROM PREVIOUS APPLICATION (D + E)	THIS PERIOD		TOTAL COMPLETED AND STORED TO DATE (D+E+F)	% (G ÷ C)		
1160	Tack Coat	\$ -	\$ -	\$ -		\$ -			\$ -
1170	Asphaltic Concrete Open Graded Cracked Relief Interlayer (Leveling, Roadway)	\$ -	\$ -	\$ -		\$ -			\$ -
1180	Asphaltic Concrete Open Graded Cracked Relief Interlayer (Leveling, Walking Track)	\$ -	\$ -	\$ -		\$ -			\$ -
1190	Asphalt Milling at Variable Depth	\$ -	\$ -	\$ -		\$ -			\$ -
1200	Conc Sidewalk, 4 In	\$ -	\$ -	\$ -		\$ -			\$ -
1210	Storm Drain Pipe 12 Inch (HDPE)	\$ -	\$ -	\$ -		\$ -			\$ -
1220	Storm Drain Pipe 15 Inch (HDPE)	\$ -	\$ -	\$ -		\$ -			\$ -
1230	Storm Drain Pipe 18 Inch (HDPE)	\$ -	\$ -	\$ -		\$ -			\$ -
1240	Storm Drain Pipe 24 Inch (HDPE)	\$ -	\$ -	\$ -		\$ -			\$ -
1250	Storm Drain Pipe 30 Inch (HDPE)	\$ -	\$ -	\$ -		\$ -			\$ -
1260	Stone Dumped Rip Rap Type 3	\$ -	\$ -	\$ -		\$ -			\$ -
1270	Plastic Filter Fabric	\$ -	\$ -	\$ -		\$ -			\$ -
1280	Thermoplastic Solid Traffic Stripe, 24 In White	\$ -	\$ -	\$ -		\$ -			\$ -
1290	Thermoplastic Solid Traffic Stripe, 6 In, White	\$ -	\$ -	\$ -		\$ -			\$ -
1300	Thermoplastic Traffic Striping, White	\$ -	\$ -	\$ -		\$ -			\$ -
1310	Catch Basin, GP 1	\$ -	\$ -	\$ -		\$ -			\$ -
1320	Drop Inlet, GP 1 (Std 9031- S)	\$ -	\$ -	\$ -		\$ -			\$ -

CONTINUATION SHEET

AIA DOCUMENT G703

PAGE OF PAGES

AIA Document G702, APPLICATION AND CERTIFICATION FOR PAYMENT, containing

Contractor's signed certification is attached.

In tabulations below, amounts are stated to the nearest dollar.

Use Column I on Contracts where variable retainage for line items may apply.

APPLICATION NO:

APPLICATION DATE: 1/0/1900

PERIOD TO: 1/0/1900

PROJECT NO: DWLSL2022078

A ITEM NO.	B DESCRIPTION OF WORK	C SCHEDULED VALUE	D WORK COMPLETED		F MATERIALS PRESENTLY STORED (NOT IN D OR E)	G		H BALANCE (C - G)	I RETAINAGE (IF VARIABLE RATE)
			FROM PREVIOUS APPLICATION (D + E)	THIS PERIOD		TOTAL COMPLETED AND STORED TO DATE (D+E+F)	% (G ÷ C)		
1330	Permanent Grassing	\$ -	\$ -	\$ -		\$ -			\$ -
1340	Fertilizer, Mixed Grade	\$ -	\$ -	\$ -		\$ -			\$ -
1350	Wood Fiber Blanket, Tp 2 Shoulder	\$ -	\$ -	\$ -		\$ -			\$ -
1360	ADS Nyoplast Drain Basin (Drop Inlet)	\$ -	\$ -	\$ -		\$ -			\$ -
1370	ADS Nyoplast Yard Drain	\$ -	\$ -	\$ -		\$ -			\$ -
1380	Tiger Field Commercial Name Sign	\$ -	\$ -	\$ -		\$ -			\$ -
1390	Galvanized Chainlink Man Gate 4'	\$ -	\$ -	\$ -		\$ -			\$ -
1400	Galvanized Chainlink Man Gate 6'	\$ -	\$ -	\$ -		\$ -			\$ -
1410	Galvanized Chainlink Sliding Gate 28'	\$ -	\$ -	\$ -		\$ -			\$ -
1420	Chainlink Double Swing Gate 12' (24' Opening)	\$ -	\$ -	\$ -		\$ -			\$ -
1430	Chainlink Fence 4'	\$ -	\$ -	\$ -		\$ -			\$ -
1440	Chainlink Fence 6'	\$ -	\$ -	\$ -		\$ -			\$ -
1450	KorKat 5 Row Delux Bleachers (NA-0515DLX-CL)	\$ -	\$ -	\$ -		\$ -			\$ -
1460	KorKat Bleacher Shade 5-Row (HC261411SG)	\$ -	\$ -	\$ -		\$ -			\$ -
1470	Sanitary Sewer Service 4" PVC	\$ -	\$ -	\$ -		\$ -			\$ -
1480	Sanitary Sewer Clean-out	\$ -	\$ -	\$ -		\$ -			\$ -
1490	Concrete Steps w/ Handrail	\$ -	\$ -	\$ -		\$ -			\$ -
1500	Sidewalk Handrail	\$ -	\$ -	\$ -		\$ -			\$ -
1510	Concrete 4 In Slab	\$ -	\$ -	\$ -		\$ -			\$ -
1520	Concrete Wheel Stops	\$ -	\$ -	\$ -		\$ -			\$ -
1530	Handicap Symbol Thermoplastic Pavement Mrk.	\$ -	\$ -	\$ -		\$ -			\$ -
1540	Handicap Parking Sign	\$ -	\$ -	\$ -		\$ -			\$ -
1550	Field Testing	\$ -	\$ -	\$ -		\$ -			\$ -
10	CHANGE ORDERS (IF APPLICABLE):		\$ -	\$ -		\$ -			\$ -
	PLEASE BREAKDOWN THE TOTAL SCHEDULED VALUE (INCLUDING CHANGE ORDERS)								
	Total Materials:	\$ -							
	Total Tax:	\$ -							
	Total Scheduled Value:								
						\$ -	\$0	\$ -	\$ -
	GRAND TOTALS	\$ -	\$ -	\$ -	\$ -	\$ -	0.00%	\$ -	\$ -

ATTACHMENT “D”

PROMPT PAYMENT SPECIAL PROVISION

SPECIAL PROVISION

PROMPT PAYMENT:

Prime Contractors, who sublet a portion of their work, shall pay their subcontractors for satisfactory performance of their contracts no later than **10 calendar days** from receipt of each payment made to them.

Any delay or postponement of payment among the parties may take place only for good cause with prior written approval from the engineer.

If the contractor is found to be in noncompliance with these provisions, it shall constitute a breach of contract and further payments for any work performed may be withheld until corrective action is taken. If corrective action is not taken, it may result in termination of the contract.

All subcontract agreements shall contain this requirement.

ATTACHMENT “E”

RETAINAGE

The rate of retainage is 10% on all progress payments. If stored materials are submitted for payment the rate of retainage for the material stored only is 0%.

Once project is completed and accepted by the owner, the owner shall release the retainage within thirty (30) days after receiving the contractor's final invoice.

ATTACHMENT “F”

INTERIM WAIVER AND RELEASE OF PAYMENT

INTERIM WAIVER AND RELEASE OF PAYMENT

State of Georgia
County of _____

The undersigned mechanic and/or materialman has been employed by _____
_____ (name of contractor) to furnish _____
_____ (describe materials and/or
labor) for the construction of improvements known as the "**Pierce County, Georgia, Tiger Field
Rehabilitation Improvements**" (title of the project) which is located in **Pierce County**, and is
owned by the **Pierce County** (name of owner) and more particularly described as follows:

Tiger Field Rehabilitation Improvements located at 834 East Main Street Blackshear, Ga
31516

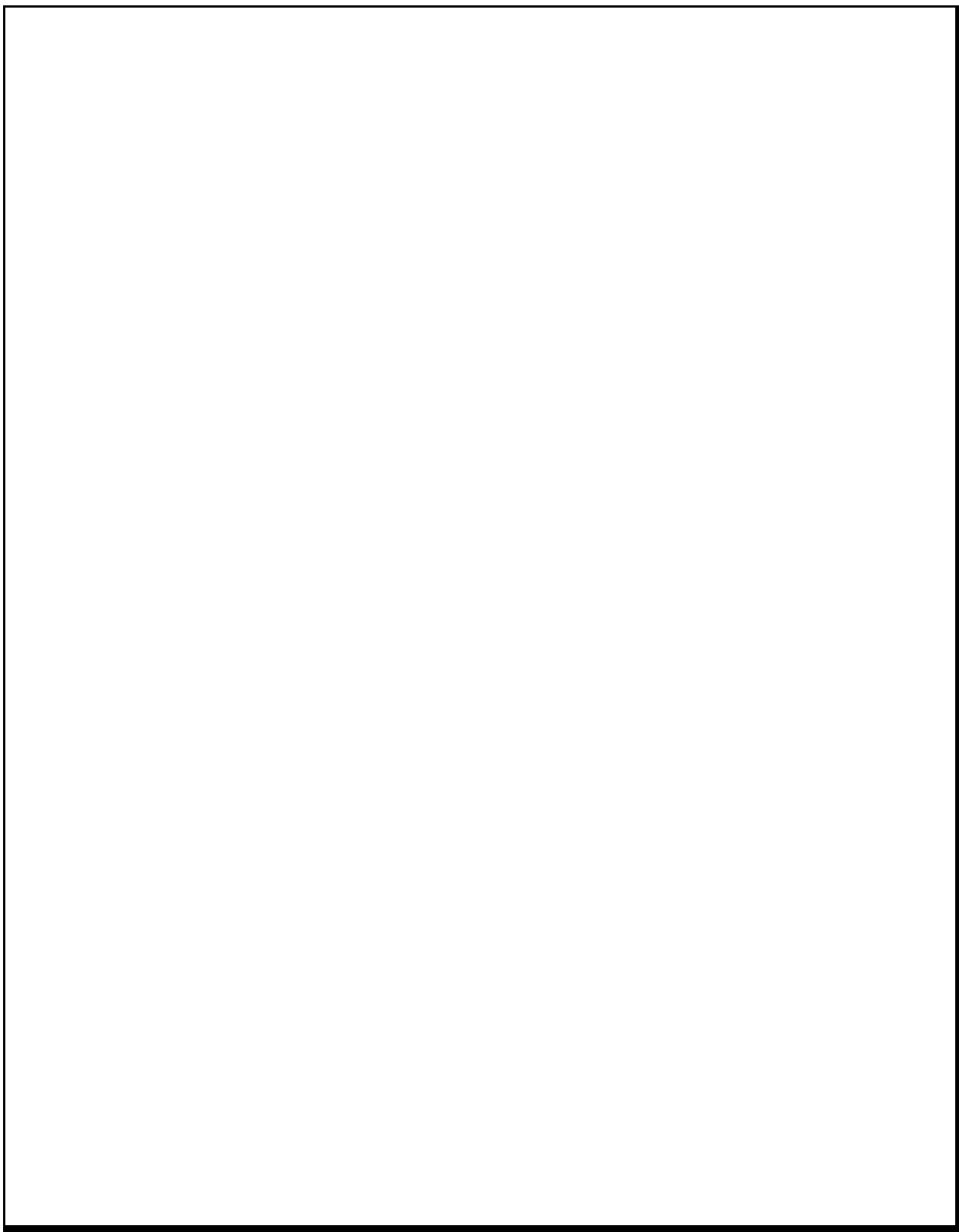
(describe the property upon which the improvements were made by using either a metes and
bounds description, the land lot district, block and lot number, or street address of the project.)

Upon the receipt of the sum of \$ _____, the mechanic and/or materialman waives
and releases any and all liens or claims of liens it has upon the foregoing described property or
any rights against any labor and/or material bond through the date of
(date) and excepting those rights and liens that the mechanic and/or materialman might have in
any retained amounts, on account of labor or materials, or both, furnished by the undersigned to
or on account of said contractor for said building or premises.

Given under hand and seal this _____ day of _____, 20____.

By: _____ (seal)
Name: _____
Witness: _____
Address: _____

Notice: when you execute and submit this document, you shall be conclusively deemed to have
been paid in full the amount stated above, even if you have not actually received such payment,
60 days after the date stated above unless you file either an Affidavit of Nonpayment or a claim
of lien prior to the expiration of such 60-day period. The failure to include this notice language on
the face of the form shall render the form unenforceable and invalid as a waiver and release under
O.C.G.A. Section 44-14-366.



ATTACHMENT “G”

FINAL RELEASE OF LIENS AND CLAIMS

CONDITIONAL FINAL WAIVER OF LIEN RIGHTS
TO ALL WHOM IT MAY CONCERN:

The undersigned ("Contractor") is a contractor / subcontractor, materialman or other person furnishing services or labor or material in the construction or repair of improvements upon real estate owned by Pierce County, Georgia ("Owner") and described as follows:

"Pierce County Georgia Tiger Field Rehabilitation Improvements"

Upon receipt by _____ (Contractor) of a check from the Pierce County Board of Commissioners, in the sum of \$ _____ and when the check has been paid by the bank upon which it is drawn, the undersigned does: (i) hereby waive, release and quitclaim in favor of the owner or owners of said real estate and in favor of each and every party making a loan on said real estate, as improved and his or its successors and assigns, all right that the undersigned may have to a lien upon the land and improvements above described; and (ii) hereby releases

_____ (Contractor), its officers, shareholders, directors, members, employees, agents, assigns, predecessor-, successor-, affiliated-, subsidiary-, and parent corporations (and the officers, directors and employees of such corporations) from any and all claims, counterclaims, demands, causes of action, obligations, damages and liabilities of every kind arising out of or relating to the transactions, goods, or services provided to or for the benefit of or pursuant to agreement with Pierce County prior to the date of. IT IS UNDERSTOOD AND AGREED THAT WAIVER AND RELEASE IS FOR ALL SERVICES RENDERED, WORK DONE AND MATERIAL FURNISHED PRIOR TO THE DATE HEREOF and is for all such services rendered, work done and material furnished for the particular project indicated above. Additionally, the undersigned agrees to serve a new Notice of Furnishing if the undersigned furnishes additional material or performs additional labor or work on or to the aforementioned project after the date hereof, and for which the undersigned wishes to reserve lien rights against said project.

Total Contract Amount \$ _____

Total Payments Received to Date on Contract \$ _____

THE INDIVIDUAL SIGNING THIS LIEN WAIVER ON BEHALF OF THE UNDERSIGNED WARRANTS THAT HE/SHE HAS FULL AUTHORITY TO EXECUTE THIS LIEN WAIVER.

Dated this _____ day of _____, 20_____.

Contractor: _____

By: _____

STATE OF _____

COUNTY OF _____

Subscribed and acknowledged in my presence as being the free and voluntary act and deed of _____ (Contractor) for the use and purposes therein mentioned on the _____ day of _____, 20_____.

Notary Public
SEAL

ATTACHMENT “H”

INSURANCE REQUIREMENTS

Insurance Requirements

The amounts and types of insurance shall conform to the following minimum requirements. Current Insurance Service Office (ISO) policies, forms and endorsements or broader shall be used where applicable. Notwithstanding the foregoing, the wording of all policies forms and endorsements, and companies providing such coverages must be acceptable to the Owner.

- a) **Worker's Compensation and Employer's Liability Insurance** shall be purchased and maintained by the Contractor and be in force during the term of this Contract, in accordance with the Laws of the State of Georgia. The amount of Employer's Liability Insurance shall not be less than:

Worker's Compensation	\$1,000,000 Limit Each Accident
Employer's Liability	\$1,000,000 Limit Disease Aggregate
	\$1,000,000 Limit Disease Each Employee

- b) **Commercial General Liability Insurance** shall be purchased and maintained by the Contractor during the period of construction. Coverage shall include but not be limited to Premises and Operation, Per Project Aggregate, Personal Injury, Contractual for this Contract, Independent Contractors Broad from Property Damage and Products and Completed Operations Coverage and shall not exclude coverage for the "X" (Explosion), "C" (Collapse), and "U" (Underground Property Damages Liability Exposures). Limits of Coverages shall be at least:

Bodily Injury and Property	\$1,000,000 Combined Single Limit
Damage Liability	Occurrence
	\$2,000,000 Combined Single Limit
	Aggregate

- c) **Business Automobile Liability Insurance** shall be purchased and maintained by the Contractor as to ownership, maintenance, and use of all owned, non-owned, leased or hired vehicles with limits of not less than:

Bodily Injury and Property	\$1,000,000 Limit Each Person
Damage Liability	\$1,000,000 Limit Each Accident

or

Bodily Injury and Property	\$1,000,000 Combined Single Limit Each
Damage Liability	Accident

- d) **Commercial Umbrella Insurance** shall be purchased and maintained by the Contractor and be in force during the term of this Contract. The amount of the Commercial Umbrella shall not be less than:

Commercial Umbrella \$1,000,000 Per Occurrence

All policies, except for Worker's Compensation policies, shall name the Owner as an additional insured (including completed operations) with primary and non-contributory coverage (with any third-party coverage provided for the Owner to be deemed as excess only) and name the Owner with a waiver of subrogation. All insurance shall expressly provide that no amendment or cancellation of any policy shall be effective until 30 days written notice to the Owner, and that the Owner is an additional insured to the extent that the Contractor is required to provide insurance coverages of the Owner under the contract. Before starting the work, and at any time Owner so request, the **Contractor shall furnish certificates of insurance and policy endorsements satisfactory to the Owner evidencing the required insurance.** The failure of the Contractor to supply such certificates of insurance, or any payment by the Owner prior to receipt of certificates of insurance, shall not diminish Contractor's duty to maintain the required insurance or to supply such certificates of insurance.

The insurance provided to the additional insured shall apply to "bodily injury" or "property damage" caused by "contractor's work" and included in the "products completed operations hazard".

ATTACHMENT “I”

CONTRACTOR QUALIFICATIONS & PRE-QUALIFICATION PACKAGE

CONTRACTOR QUALIFICATION REQUIREMENTS

The bidder shall provide documentation and information as requested relating to the history of its company that includes its' philosophy of doing business, its' background, expertise, experience, past performance, ability to provide the qualified construction and services proposed herein. This reference material shall include evidence of having performed satisfactory construction of work similar in scope and magnitude. Inclusive in this evidence shall be a list of projects, date completed, nature, size, and value of the project; and complete names, mailing addresses, and telephone numbers of contact persons for the owner and the design professional for each of the projects, also include equipment list.

A list of all supervisory personnel to be engaged on this project shall be submitted listing name, education, experience, and licensure/certifications. If the Contractor has recently purchased an established business and has proof of prior success in either this business or a closely related business or has proof of the qualifications of a superintendent, contractor may provide written documentation and verification.

The Georgia Department of Transportation Standard Specifications, 2021 Edition, any applicable Supplemental Specifications, Special Provisions, or any other provision contained within this contract will be applicable to this project. All materials, workmanship, testing, etc. shall meet the Georgia Department of Transportation Specifications.

Any work required in excess of 4 feet deep shall be performed by a contractor or subcontractor having a valid Georgia Utility License. This requirement is defined in Chapter 14 of Title 43 of the Official Code of Georgia and issued by the State of Georgia Secretary of State. Even though this project may not reach nor exceed minimum requirements such as depth of trench, project construction cost, etc. as described by the Chapter 14 of Title 43 of the Official Code of Georgia, the prime contractor submitting the bid or the subcontractor performing the utility related work must hold a valid Georgia Utility Contractor License. The utility license number must be placed with the bid or the bid will be rejected.

Bidder Qualification Form - Construction

(Firm must prepare this statement in the form shown)

The undersigned bidder certifies that the information herein is true, correct, complete and accurate. (Elaboration on the following information or additional information deemed to be useful for evaluation of bidders capabilities or to prevent misleading representations may be attached to this form).

Date: _____

Bidder (Legal Name of Firm): _____

GA Secretary of State Registration or License Number: _____

Federal ID No.: _____

Address _____

City _____ State _____ Zip Code _____

Phone Number: _____

Fax Number: _____ Email: _____

President (or Managing Partner, etc.): _____

Years in Business Under Present Name: _____

List all other names under which your business has operated in the last ten years _____

Work Presently Under Contract (\$): _____

Work in place last year (\$): _____

Total Bonding Capacity, if Applicable (\$): _____

(Attach a letter from Bonding Co. evidencing bonding capacity, if Applicable)

Value of Work Presently Bonded (\$): _____

Bonding Company: _____

Bonding Agent: Insurance Company: _____

Insurance Agent: _____

Total Staff Employed by Firm (Break down by Managers and Trades on separate sheet): _____

Contracting Specialty (Indicate trades in which bidder performs): _____

Years Performing Work Specialty: _____ Percentage of Work Performed by Firm's Own Forces: _____

Has the firm or predecessor firm been involved in a bankruptcy or reorganization? Yes No

(If the answer is yes, please attach summary of details on a separate sheet)

Bidder should have successfully completed (substantially on-schedule, on-budget) at least three projects of similar size and nature for which they are submitting qualifications. List projects on a separate sheet with the following information on each and attach hereto:

Project Name, Location and Contact

Engineer/Architect

Contract Amount

Date Completed

(Month/Year)

Scope of Work

Equipment List

List below any/all Contract(s) awarded to Bidder which it has failed to complete (If applicable, attach a separate sheet):

Project (Name and Location):

Contract with:

Brief Explanation of Cause and Resolution:

List on a sheet attached hereto all judgements, claims, arbitration proceedings, or suits pending or outstanding against bidder over the last five (5) years with amount of claim and brief description.

List on a sheet attached hereto all law suits or requested arbitration with regard to construction contracts which bidder has initiated within the last five (5) years and brief explanation of claim and outcome.

Signature: _____

Title: _____

Date: _____

AFFIDAVIT OF

_____, an individual over the age of twenty-one (21)
years, residing at

[street address], [city], [county], [state], [zip code]

being duly sworn or affirmed this _____ day of _____, 20____,
before the Georgia licensed notary public whose acknowledgement appears herein below, deposes
and says that:

1. I am the _____ of _____
[title] [contractor's company name]

a _____ duly formed and existing under the laws of Georgia
[legal form of entity]

and authorized to do business in Georgia with its principal place of business located at _____
_____ and, as
[contractor address]

such, I have the requisite knowledge and authority to provide and certify the truthfulness, correctness,
completeness and accuracy of the information in this affidavit.

2. The Contractor has prepared for submission this Qualification Form for consideration by the **City
of Douglas, Georgia.**

3. The Contractor's experience statement is attached to the form as called for on the Bidder
Qualification Form.

4. I certify such experience and financial statements to be true, correct, complete and accurate as of
their respective date and true, correct complete and accurate without material change as of the date
hereof.

5. I understand and acknowledge that falsification of any requested information may result in the
rejection of Qualification to Bid.

6. I understand and acknowledge that the owner will rely on this affidavit and the truthfulness,
correctness, completeness and accuracy of the information in this affidavit.

Respectfully submitted by:

Name _____
Signature _____

(Title) _____

(SEAL - if bid is by a corporation)

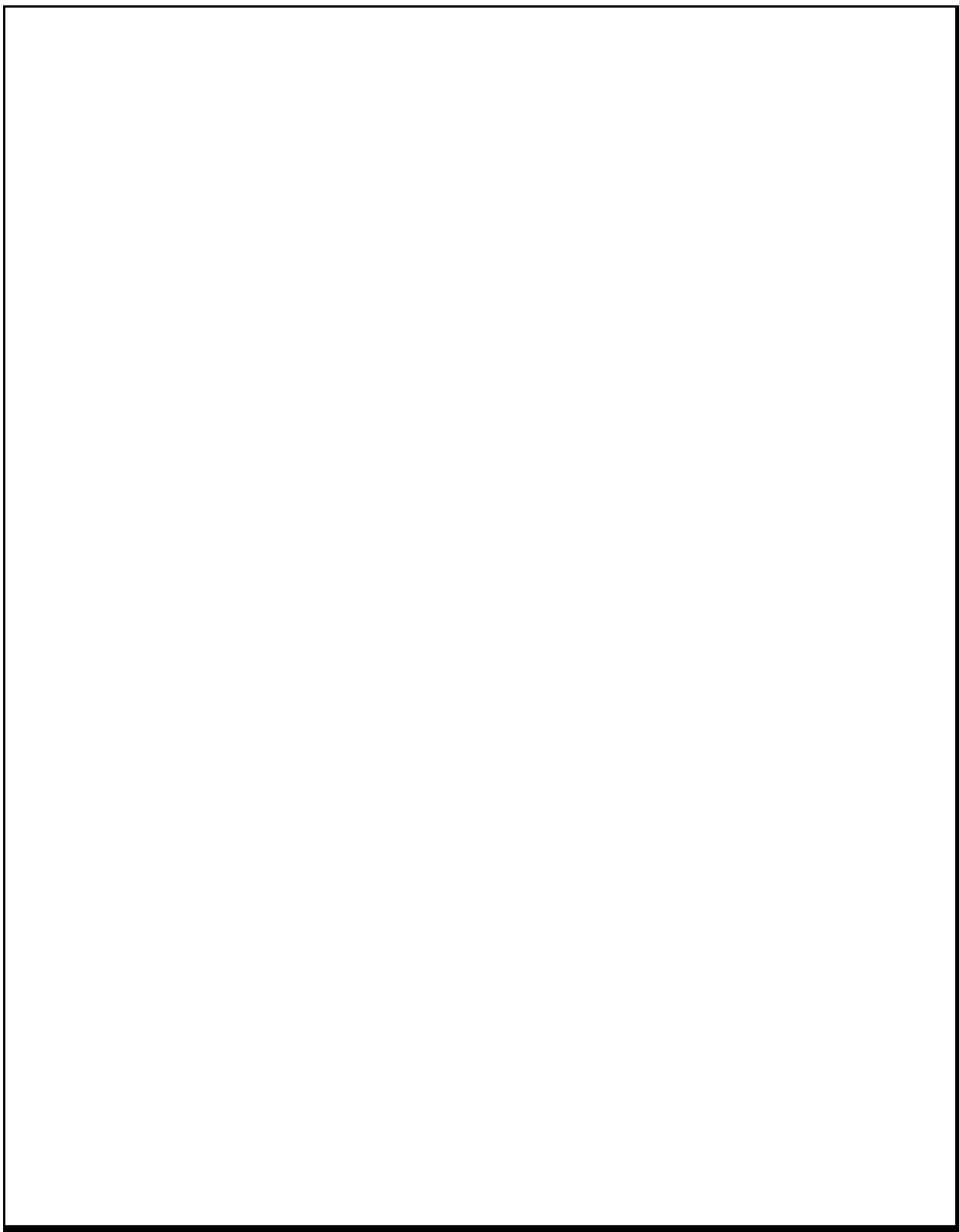
Name of Company _____

SUBSCRIBED AND SWORN BEFORE ME ON
THIS THE _____ DAY OF _____, 20____

Notary Public
My Commission Expires:

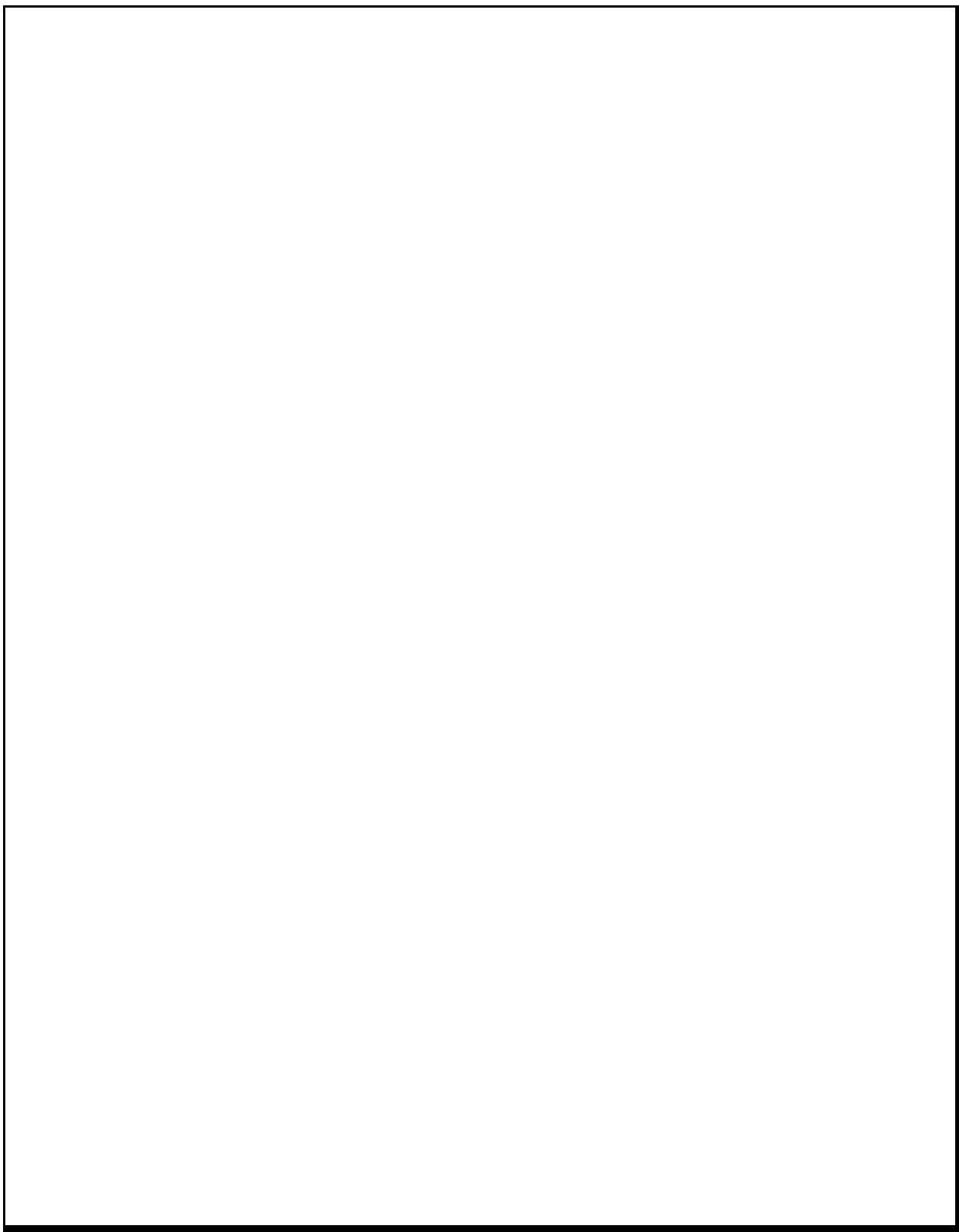
ATTACHMENT “J”

PROJECT ADDENDUM(S)
(IF APPLICABLE TO THE PROJECT)



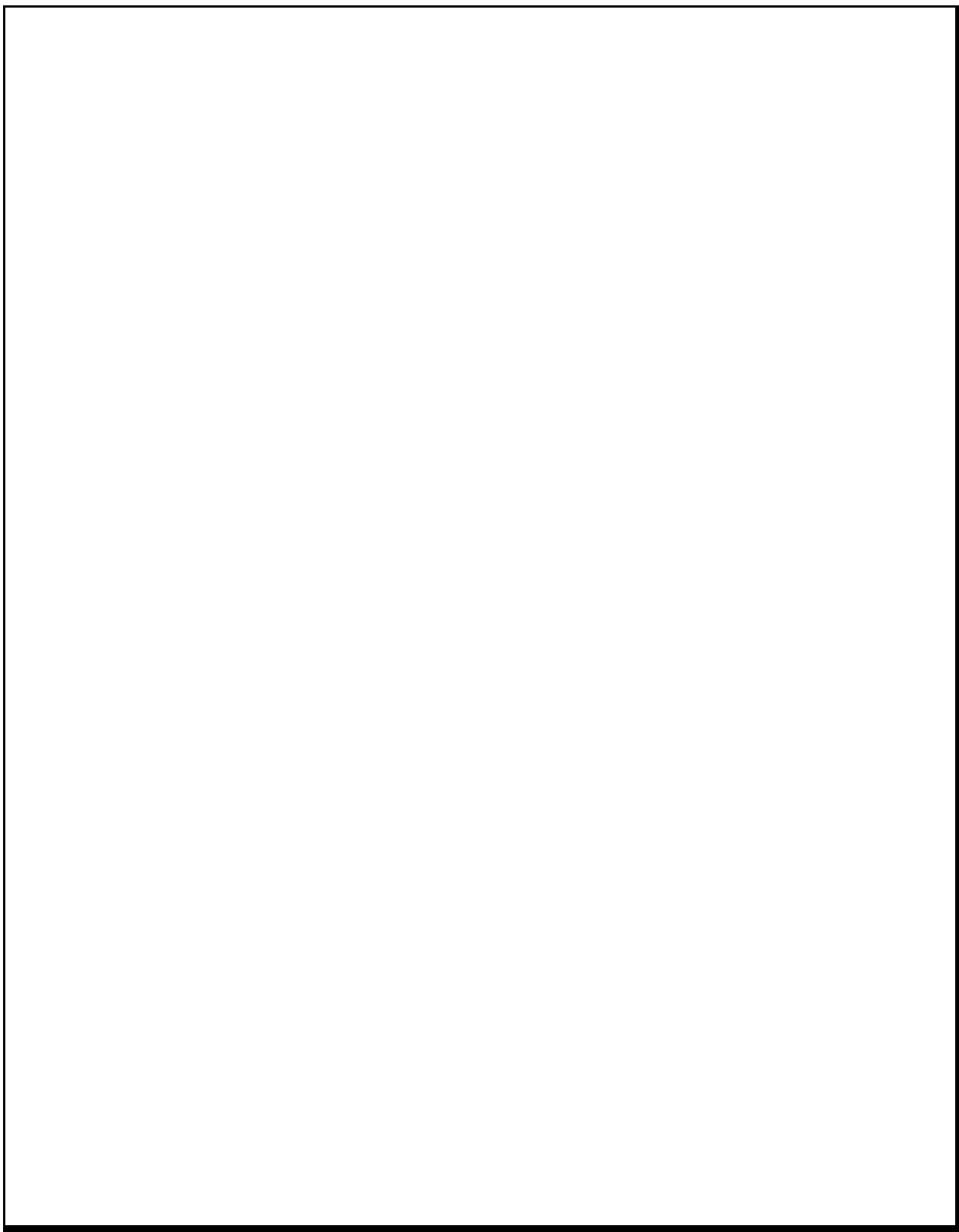
ATTACHMENT “K”

**PROJECT CHANGE ORDER(S)
(IF APPLICABLE TO THE PROJECT)**



ATTACHMENT “L”

BID AWARD RECOMMENDATIONS



ATTACHMENT “M”

BUY AMERICAN CLAUSE

Contractors are hereby notified that they are encouraged, to the greatest extent practicable, to purchase American- made equipment and products with funding provided under this award.

ATTACHMENT “N”

LWCF Plaque Order Form

LAND & WATER CONSERVATION FUND (LWCF) PLAQUE ORDER FORM

Revised 11/1/19



Plaque approximately 9"W x 8 1/2"H (at largest points)

This order form ensures you will receive the correct aluminum plaque required by the Georgia Department of Natural Resources, LWCF Grant Program. Please fill out & either email, fax or mail to address listed.

PAYMENT OPTIONS (check one)

Plaques cost \$210/ea including UPS Shipping

☐ Credit Card (Visa, Master card, Discover)

We will contact you upon receipt of this form to initiate credit card payment.

☐ Check / Money Order Enclosed

Please make check payable to "East Point Foundry" and mail with this form.

☐ Bill Me Later

If your purchasing department does not allow pre-payments, we will invoice you at the billing address you provide below.

BILL TO:

Name: _____

Address: _____

City/ST/Zip: _____

Phone: _____

Email: _____

Attn: _____

P.O. # _____

SHIP TO:

Name: _____

Address: _____

City/ST/Zip: _____

Phone: _____

Email: _____

Attn: _____

P.O. # _____

Email, fax or mail order to:

sales@eastpointfoundry.com

East Point Foundry

4279 Roswell Rd.

Ste. 208, #181

Atlanta, GA 30342

404-762-1738 (fax) / 404-762-1737 (ph)

Processing time is no later than 4 weeks after order is placed. If you need it sooner, please indicate that on form & we will contact you.

MANDATORY PRE-BID CONFERENCE
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

DATE: FEBRUARY 16, 2026 TIME: 11:00 A.M.

<u>NO.</u>	<u>PERSON REPRESENTING COMPANY</u>	<u>COMPANY</u>	<u>ADDRESS</u>	<u>CITY</u>	<u>STATE</u>	<u>ZIP</u>	<u>PHONE</u>	<u>EMAIL ADDRESS</u>
1	WILLIAM THOMAS	THE SCRUGGS COMPANY	216 W. BLACKSHEAR AVE.	WAYCROSS	GA	31501	(912) 387-8444	bwallace@scruggscompany.com
2	Konner Stephens	J+W Farms	14167 lanes bridge road	Odum	GA	31555	912-202-8387	mysamsung150@gmail.com
3	Ian Jackson	Statewide Eng.						
4	Shannon Bradford	Statewide Eng.	516 E. Ashley St Douglas, Ga. 31533	Douglas	Ga	31533	912-384-7723	shannon.bradford@swecivil.com
5	MARK DILL	STATEWIDE Eng	516 EAST ASHLEY ST	DOUGLAS	GA	31533	912-384-7723	mark.dill@swecivil.com
6	NEAL Bennett	PCBO Commission					912-281-6600	
7	Donna Golding	PCBO/County Clerk	312 Nichols St. Blackshear	Blackshear	Ga	31516	912-447-2032	donna.golding@piercecoun.ga.gov
8	Thomas Emler	PCBOC/Ca. manager	312 Nichols St.	Blackshear	GA	31516	912-449-2011	caemgmanager@piercecoun.ga.gov
9	Randy Dixon	PCBOC/District 3	4735 Sheppard Rd	Blackshear	GA	31516	912-282-1386	randypiercetimber.com
10	Zack Daniel	R.H. Tyson Const.	6155 Sundance Rd	Blackshear	GA	31516	912-449-3633	zack@rhtyson-co.

Josh Leach

<u>NO.</u>	<u>PERSON REPRESENTING COMPANY</u>	<u>COMPANY</u>	<u>ADDRESS</u>	<u>CITY</u>	<u>STATE</u>	<u>ZIP</u>	<u>PHONE</u>	<u>EMAIL ADDRESS</u>
11	Joshua Lead	Thrift Brothers	3810 Needham Rd	Waycross	GA	3503	912-281 2191	estimating @ thriftbrothersllc.com
12	Bruce Greene	Demoché, LLC	P.O. Box 5007 Fitzgerald GA 31750	Fitzgerald	GA	31750	229-424- 2382	brgreene@windstream.net
13	TS Harris	Tyco Construction, Inc.	6191 Bowen Rd Blackshear, GA 31516	Blackshear	GA	31516	(404) 416-2003 (912) 296-2758	tyco construction tyco@tycoconstruction.net
14								
15								
16								
17								
18								
19								
20								
21								
22								
23								
24								

RE-BID
ADVERTISEMENT FOR BID
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

The Pierce County Board of Commissioners will receive separate, sealed bids until **11:00am** (local-time), **Thursday, April 30, 2026**, for furnishing all materials, labor, tools, equipment, and incidentals necessary for the installation of **rehabilitation improvements for Tiger Field Recreation Park for the county's awarded, Land and Water Conservation Fund Project, Grant Number: 13-01090 (P24AP01327). Project shall be funded from the Department of Natural Resources and /or other local funds specified).**as funded by the Georgia Department of Community Affairs. Bids will be opened and read.

The meeting will be held at **Pierce County Board of Commissioners' Office** and will be opened to the public. Proposals can be mailed or delivered to the attention of **Donna Golding, County Clerk** for the **Pierce County Board of Commissioners, 312 Nichols Street, Suite 5 Blackshear, Georgia 31516**. Proposals received after the designated time will not be considered. **The Pierce County Board of Commissioners** may select a successful low bidder after evaluation of all bids.

The Scope of Work Includes:

Rehabilitation improvements for Tiger Field Recreation Park.

All proposals shall be accompanied by a Bid Bond in favor of the Owner in the amount of at least five percent (5%) of the lump sum bid for the complete work: such Bid Bond representing that the Bidder, if awarded a Contract, will promptly enter into a Contract and furnish Performance Bond and Payment Bonds as provided by the law and approved by the Attorney for the Owner. Performance Bond shall be equal to 100 Percent (100%) of the contract amount and Payment Bond shall be equal to 100 percent (100%) of the Contract amount.

The Bid Bond shall be forfeited to the Owner as liquidated damages if the Bidder fails to execute the Contract and provide Performance and Payment Bonds within (10) days after being notified that he has been awarded the Contract.

All work on the project must be completed within **270 consecutive calendar days of the Notice to Proceed Date**. Phasing of the project shall be as follows: Required work on the southern portion of the project which includes walking track and southern parking lot construction will receive a Notice to Proceed after the awarding of the project. The required work on the northern portion of the project, which includes the ball field, drainage, fencing, and parking lot construction will receive a Notice to Proceed beginning on December 1, 2026. Contract Time will be stopped and recorded once the southern portion work is completed and then time will resume on December 1, 2026.

Copies of the plans and specifications may be obtained from Statewide Engineering, Inc., 516 East Ashley Street, Douglas, Georgia 31533, 912-384-7723 for \$200.00 per set for full printed specification and plans, or \$50.00 for specifications and plans emailed in pdf format (non-refundable). Plans and Specifications are also on file (for view only) at the **Pierce County Board of Commissioners' Office**. **All Bidders must receive a bid package from the Engineer in order to be considered certified. Bids from non-certified Bidders will not be considered.**

Contractors shall submit all questions in writing to Mark Dill via email or fax. Email address is mark.dill@swecivil.com. Fax number is 912-383-6895. Deadline for all questions is **Friday, April 24, 2026 at 9:00am**). All questions received and answers will be provided to all contractors in an addendum and listed on the Georgia Procurement Registry.

This agreement is for services related to a project that is subject to the Build America, Buy America Act (BABAA) requirements under Title IX of the Infrastructure Investment and Jobs Act ("IIJA"), Pub. L. 177-58. Absent an approved waiver, all iron, steel, manufactured products, and construction materials used in this project must be produced in the United States, as further outlined by the Office of Management and Budget's Memorandum M-22-11, Initial Implementation Guidance on Application of Buy America Preference in Federal Financial Assistance Programs for Infrastructure, April 18, 2022.

The Georgia Department of Transportation Standard Specifications, 2021 Edition, any applicable Supplemental Specifications, 2024 Edition, Special Provisions, or any other provision contained within this contract will be applicable to this project. All materials, workmanship, testing, etc. shall meet the Georgia Department of Transportation Specifications.

The Owner reserves the right to reject all bids and to waive informalities, and to accept any Bid which in its opinion may be in the best interest of the Owner. The Owner has the right to add or to delete from the Contract once it has been awarded. No bids shall be withdrawn for a period of 60 days after the opening of the bids.

Pierce County Board of Commissioners

By:

Chairman: Neal Bennett



RE-BID
ADVERTISEMENT FOR BID
PIERCE COUNTY, GEORGIA
GEORGIA OUTDOOR STEWARDSHIP TRUST FUND PROJECT
GEORGIA DEPARTMENT OF NATURAL RESOURCES
LAND AND WATER CONSERVATION FUND PROJECT
GRANT NUMBER: 13-01090 (P24AP01327)
SWE PROJECT # 24-3552

TIGER FIELD REHABILITATION IMPROVEMENTS

The Pierce County Board of Commissioners will receive separate, sealed bids until **11:00am** (local-time), **Tuesday June 16, 2026**, for furnishing all materials, labor, tools, equipment, and incidentals necessary for the installation of **rehabilitation improvements for Tiger Field Recreation Park for the county's awarded, Land and Water Conservation Fund Project, Grant Number: 13-01090 (P24AP01327). Project shall be funded from the Department of Natural Resources and /or other local funds specified).**as funded by the Georgia Department of Community Affairs. Bids will be opened and read.

The meeting will be held at **Pierce County Board of Commissioners' Office** and will be opened to the public. Proposals can be mailed or delivered to the attention of **Donna Golding, County Clerk** for the **Pierce County Board of Commissioners, 312 Nichols Street, Suite 5 Blackshear, Georgia 31516**. Proposals received after the designated time will not be considered. **The Pierce County Board of Commissioners** may select a successful low bidder after evaluation of all bids.

The Scope of Work Includes:

Rehabilitation improvements for Tiger Field Recreation Park.

All proposals shall be accompanied by a Bid Bond in favor of the Owner in the amount of at least five percent (5%) of the lump sum bid for the complete work: such Bid Bond representing that the Bidder, if awarded a Contract, will promptly enter into a Contract and furnish Performance Bond and Payment Bonds as provided by the law and approved by the Attorney for the Owner. Performance Bond shall be equal to 100 Percent (100%) of the contract amount and Payment Bond shall be equal to 100 percent (100%) of the Contract amount.

The Bid Bond shall be forfeited to the Owner as liquidated damages if the Bidder fails to execute the Contract and provide Performance and Payment Bonds within (10) days after being notified that he has been awarded the Contract.

All work on the project must be completed within **270 consecutive calendar days of the Notice to Proceed Date**. Phasing of the project shall be as follows: Required work on the southern portion of the project which includes walking track and southern parking lot construction will receive a Notice to Proceed to start work August 3, 2026. The required work on the northern portion of the project, which includes the ball field, drainage, fencing, and parking lot construction will receive a Notice to Proceed beginning on December 1, 2026. Contract Time will be stopped and recorded, if applicable once the southern portion work is completed and then time will resume on December 1, 2026.

Copies of the plans and specifications may be obtained from Statewide Engineering, Inc., 516 East Ashley Street, Douglas, Georgia 31533, 912-384-7723 for \$200.00 per set for full printed specification and plans, or \$50.00 for specifications and plans emailed in pdf format (non-refundable). Plans and Specifications are also on file (for view only) at the **Pierce County Board of Commissioners' Office**. **All Bidders must receive a bid package from the Engineer in order to be considered certified. Bids from non-certified Bidders will not be considered.**

Contractors shall submit all questions in writing to Mark Dill via email or fax. Email address is mark.dill@swecivil.com. Fax number is 912-383-6895. Deadline for all questions is **Tuesday, June 9, 2026 at 9:00am**. All questions received and answers will be provided to all contractors in an addendum and listed on the Georgia Procurement Registry.

This agreement is for services related to a project that is subject to the Build America, Buy America Act (BABAA) requirements under Title IX of the Infrastructure Investment and Jobs Act ("IIJA"), Pub. L. 177-58. Absent an approved waiver, all iron, steel, manufactured products, and construction materials used in this project must be produced in the United States, as further outlined by the Office of Management and Budget's Memorandum M-22-11, Initial Implementation Guidance on Application of Buy America Preference in Federal Financial Assistance Programs for Infrastructure, April 18, 2022.

The Georgia Department of Transportation Standard Specifications, 2021 Edition, any applicable Supplemental Specifications, 2024 Edition, Special Provisions, or any other provision contained within this contract will be applicable to this project. All materials, workmanship, testing, etc. shall meet the Georgia Department of Transportation Specifications.

The Owner reserves the right to reject all bids and to waive informalities, and to accept any Bid which in its opinion may be in the best interest of the Owner. The Owner has the right to add or to delete from the Contract once it has been awarded. No bids shall be withdrawn for a period of 60 days after the opening of the bids.

Pierce County Board of Commissioners

By:

Chairman: Neal Bennett

